**PUBLIC VERSION**
**CONTAINS REQUEST FOR PRIVILEGED TREATMENT**
**PURSUANT TO 18 C.F.R. SECTION 388.112**
**CONFIDENTIAL INFORMATION HAS BEEN REDACTED**

**UNITED STATES OF AMERICA**
**BEFORE THE**
**FEDERAL ENERGY REGULATORY COMMISSION**

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| **Cottonwood Energy Company LP**<br>**Entergy Louisiana, LLC** | )<br>)<br>)<br>) | **Docket No. EC26-_____** |

# JOINT APPLICATION FOR TRANSACTION AUTHORIZATION PURSUANT TO SECTION 203 OF THE FEDERAL POWER ACT AND REQUEST FOR WAIVERS AND CONFIDENTIAL TREATMENT

Cottonwood Energy Company LP ("Cottonwood Energy"), and Entergy Louisiana, LLC ("Entergy Louisiana") (each an "Applicant", and together, "Applicants"), respectfully request authorization by the Federal Energy Regulatory Commission ("Commission") under Section 203(a)(1) of the Federal Power Act ("FPA") for a Proposed Transaction in which Cottonwood Energy will sell, and Entergy Louisiana will acquire, the Cottonwood Energy Project ("Cottonwood Project") and associated facilities and equipment ("Proposed Transaction").[1] The Cottonwood Project is an electric generating facility located in Deweyville, Texas.[2]

The Proposed Transaction is consistent with the public interest. It will not have an adverse effect on competition, rates, or regulation and will not cause cross-subsidization of any non-utility associate company or any pledge or encumbrance of utility assets for the benefit of an associate company. For the reasons explained in this application and the accompanying analysis and supporting materials, the Commission should conclude that the Proposed Transaction is consistent

1. The Applicants request approval under FPA Sections 203(a)(1)(A) and 203(a)(1)(B) for the transfer of Commission-jurisdictional interconnection facilities associated with the Cottonwood Project, and under FPA Section 203(a)(1)(D) for Entergy Louisiana's acquisition of an existing generation facility with a value in excess of $10 million that is used to make Commission-jurisdictional wholesale sales.

2. The Cottonwood Project is a natural gas-fired combined cycle combustion turbine ("CCCT") power generation facility with a design capacity of 1,263 megawatts (MW) (nominal). It is located in the Midcontinent Independent System Operator, Inc. ("MISO"), balancing authority area ("BAA") and is interconnected with the transmission system of Entergy Texas, Inc. ("Entergy Texas").

with the public interest and authorize it without conditions (other than those customarily imposed in FPA Section 203 orders) or hearing. The Applicants respectfully request the Commission issue an order granting the requested approval within 180 days of this application, as contemplated by FPA Section 203(a)(5).[3] The Applicants also request limited waivers as identified below and confidential treatment for Exhibit I, the commercially-sensitive Asset Purchase Agreement that governs the Proposed Transaction.

## I. INTRODUCTION AND SUMMARY

Entergy Louisiana has a need for additional generation capacity to meet projected load requirements, reliably serve customers, and continue to support economic expansion and energy security in Louisiana. Entergy Louisiana's acquisition of the Cottonwood Project represents a reasonable cost investment to meet Entergy Louisiana's resource planning needs. The Proposed Transaction provides Entergy Louisiana the opportunity to acquire approximately 1,200 MW of additional generating capacity at a time when Entergy Louisiana's forecasts show a need for such capacity.

The Applicants provide a comprehensive generation market power study prepared by Dr. John R. Morris and Keith Everhart of Secretariat Advisors LLC[4] that concludes that the Proposed Transaction will not create or enhance market power in wholesale energy, capacity, and ancillary services markets in the MISO BAA, the relevant geographic market for the market power analysis.

3. The Applicants will provide notification of the Proposed Transaction to the United States Department of Justice and Federal Trade Commission pursuant to the Hart-Scott-Rodino Antitrust Improvements Act ("HSR Act"). Entergy Louisiana has requested the Louisiana Public Service Commission ("LPSC") to approve the Proposed Transaction by October 2026 in LPSC Docket No. U-37801.

4. The Applicants provide the Morris/Everhart competition analysis ("Competition Analysis") and supporting exhibits as Attachments JM-1 through JM-9.

The Competition Analysis utilizes the Commission's delivered price test ("DPT") required as a screen analysis under Appendix A of the Commission's *Merger Policy Statement*.[5] The Competition Analysis concludes that "Entergy Louisiana's acquisition of Cottonwood creates no risk of anticompetitive effects."[6]

The Competition Analysis concludes that all of MISO is the relevant destination market for the Proposed Transaction and provides data and analysis supporting this destination market definition conclusion that is consistent with recent Commission precedent.[7] It also provides DPT screening results for the MISO BAA region. The results confirm that the Proposed Transaction will not result in Entergy Louisiana or its affiliates ("Entergy Entities") having market power for short-term products in the MISO market. The Competition Analysis for MISO Economic Capacity ("EC") shows that post-acquisition, the MISO market is unconcentrated, with Herfindahl-Hirschman Index ("HHI") levels of 672 or lower and HHI changes of 45 or lower in all time periods across all studied price sensitivities. Similarly, the DPT analysis for MISO Available Economic Capacity ("AEC") shows that post-acquisition, the MISO market is unconcentrated,

5. *See Inquiry Concerning the Commission's Merger Policy Under the Federal Power Act: Policy Statement*, Order No. 592, 61 FR 68,595 (Dec. 30, 1996), FERC Stats. and Regs. ¶ 31,044 (1996), *reconsideration denied*, Order No. 592-A, 62 FR 33,340 (June 19, 1997), 79 FERC ¶ 61,321 (1997) ("*Merger Policy Statement*"); *see also Revised Filing Requirements Under Part 33 of the Commission's Regulations*, Order No. 642, FERC Stats. & Regs. ¶ 31,111 (2000) ("Order No. 642"); *FPA Section 203 Supplemental Policy Statement*, FERC Stats. & Regs. ¶ 31,253, P 60 (2007) ("*Supplemental Merger Policy Statement*"), *order on clarification and reconsideration*, 122 FERC ¶ 61,157 (2008); *Analysis of Horizontal Market Power under the Federal Power Act*, 138 FERC ¶ 61,109 (2012) ("*Analysis of Horizontal Market Power*"). The DPT utilizes HHI level calculations to screen for potential increases in market power from a proposed transaction.

6. Exhibit JM-1 at 9.

7. *Tenaska Frontier Partners, Ltd.*, 191 FERC ¶ 61,037 at P 26 (2025) ("Tenaska Frontier") (in the context of a proposed transaction involving the sale and purchase of a generating facility located in the West of the Atchafalaya Basin ("WOTAB") subregion of MISO, in which the Cottonwood Project also is located, concluding that WOTAB is not a distinct submarket for purposes of the applicants' competition analysis under FPA Section 203 and finding "the MISO-wide market to be the relevant geographic market for purposes of assessing the Proposed Transaction's effect on competition.").

with HHI levels of 305 or lower and HHI changes of 25 or lower in all time periods across all studied price sensitivities. Because the market for both products is unconcentrated in each period, there is a presumption of no anticompetitive impact, and no further analysis is needed to conclude that the acquisition will not give Entergy Louisiana or its affiliates market power for these products.[8]

The Competition Analysis also addresses capacity and ancillary services markets and vertical market power issues and concludes the Proposed Transaction will not have an adverse effect on competition in those markets. This application and the Competition Analysis further demonstrate that the Proposed Transaction will have no negative effect on wholesale or transmission rates, no effect on regulation, and will not cause cross-subsidization of any non-utility associate company or any pledge or encumbrance of utility assets for the benefit of an associate company. Consistent with these showings, the Applicants request the Commission to authorize the Proposed Transaction pursuant to FPA Section 203 without conditions (other than those customarily imposed in FPA Section 203 orders) or hearing.

## II. DESCRIPTION OF THE APPLICANTS

### A. Cottonwood Energy

Cottonwood Energy (the owner of the Cottonwood Project) is an exempt wholesale generator authorized to make wholesale sales of energy, capacity, and ancillary services at market-based rates.[9]

8. Exhibit JM-1 at 20.

9. *Cottonwood Energy Co. LP*, 93 FERC ¶ 62,231 (2000) (granting exempt wholesale generator status); *Cottonwood Energy Co. LP*, Letter Order in Docket No. ER01-642-000 (January 30, 2001) (granting market-based rate authority).

The partnership interests of Cottonwood Energy are owned by: (1) Cottonwood Generating Partners I LLC ("Cottonwood Partners I") (two percent), (2) Cottonwood Generating Partners II LLC ("Cottonwood Partners II") (49 percent), and (3) Cottonwood Generating Partners III LLC ("Cottonwood Partners III") (49 percent). All of the membership interests of each of Cottonwood Partners I, Cottonwood Partners II and Cottonwood Partners III are owned by Cottonwood Development LLC, all of whose membership interests are owned by South Central Generating LLC. South Central Generating LLC is wholly owned by Pelican South Central LLC, which is wholly owned by Pelican Power LLC ("Pelican Power").

Pelican Power is a wholly owned, direct subsidiary of Pelican Frontier Holdings LLC, which is itself a wholly owned direct subsidiary of Pelican Power Holdings LLC, which is itself a wholly owned direct subsidiary of ACR IV Pelican Holdings LLC ("ACR IV Pelican"). ACR IV Pelican has two upstream members: (1) Atlas Capital Resources (P) IV LP, a Delaware limited partnership which owns approximately 2.4 percent of the membership interests in ACR IV Pelican and (2) ACR IV (A7) Pelican LP, a Delaware limited partnership which owns 97.6 percent of the membership interests in ACR IV Pelican. Atlas Capital GP IV LP, a Delaware limited partnership, is the general partner of Atlas Capital Resources (P) IV LP. Atlas Capital GP IV LP also serves as the general partner of ACR IV (A7) Pelican LP. Atlas Capital Resources GP IV LLC ("Atlas IV LLC") is, in turn, the general partner of Atlas Capital GP IV LP.

Atlas IV LLC is a Delaware limited liability company and is affiliated with a United States Securities and Exchange Commission registered investment adviser. Atlas IV LLC and its affiliates manage several private equity funds that have controlling investments in a diversified group of manufacturing, distribution, service, and trading businesses that operate in the automotive, building materials, business solutions, energy, industrial services, metals, packaging,

pulp, paper, and tissue, and logistics, supply chain management and distribution segments. Atlas GP Global Holdings LLC, a Delaware limited liability company ("Atlas Global Holdings"), Andrew M. Bursky, Timothy J. Fazio, Philip E. Schuch, and Jacob Hudson (the "Members") are the members of Atlas IV LLC. The result of this structure is that Atlas Global Holdings ultimately exerts control over ACR IV Pelican.

After consummation of the Proposed Transaction, Pelican Power, the Members, and Atlas Global Holdings will no longer be affiliated with Cottonwood Energy. Applicants therefore respectfully request waiver of Section 33.2(c)(2) of the Commission's regulations to the extent it would require submission of additional information about the affiliates of Pelican Power, the Members, and Atlas Global Holdings.

**B. Entergy Louisiana**

Entergy Louisiana is a Texas limited liability company and an indirect subsidiary of Entergy Corporation, a holding company. Entergy Louisiana is a public utility that is affiliated with the other Entergy Operating Companies[10] and other market-regulated power sales affiliates.[11] The Entergy Operating Companies and their affiliates that own generation in MISO and first-tier areas are referred to in this application collectively as the "Entergy Entities."

Entergy Louisiana is a traditional franchised public utility that provides electric generation, transmission, distribution, and electric power service to retail customers in Louisiana, all of which loads reside in MISO Load Resource Zone ("LRZ") 9.[12] Entergy Louisiana serves approximately

10. The Entergy Operating Companies are Entergy Arkansas, LLC ("Entergy Arkansas"); Entergy Louisiana; Entergy Mississippi, LLC ("Entergy Mississippi"); Entergy New Orleans, LLC ("Entergy New Orleans"); and Entergy Texas, Inc. ("Entergy Texas").

11. Entergy Louisiana's energy affiliates are identified in Attachment B.

12. Energy Louisiana owns 50 percent of the Union Power Station generating facility in Arkansas (Entergy Arkansas and Entergy New Orleans own the remaining interests in Union Power

1.1 million retail customers in Louisiana.

Entergy Louisiana, and each of the other Entergy Operating Companies, is a transmission-owning member of MISO, a regional transmission operator that maintains functional control over the facilities of its transmission-owning members and provides open access transmission service pursuant to MISO's Open Access Transmission, Energy and Operating Reserve Markets Tariff ("MISO Tariff"). Entergy Louisiana recovers the costs of owning, operating, and maintaining its transmission facilities pursuant to a cost-based formula rate under the MISO Tariff that is on file with the Commission.[13] Entergy Louisiana owns and operates approximately 4,200 circuit miles of transmission lines and associated transmission substations and other equipment that are under MISO's functional control.

Entergy Louisiana and the other Entergy Operating Companies participate in the energy and capacity markets administered by MISO pursuant to the MISO Tariff, which are subject to Commission-approved market monitoring and mitigation measures.[14] The Entergy Operating Companies maintain cost-based and market-based rate schedules and tariffs on file with the Commission pursuant to which they make wholesale sales of capacity, energy, and ancillary services.

In addition to selling capacity, energy, and ancillary services in the MISO markets, Entergy Louisiana purchases wholesale capacity, energy, and ancillary services in the MISO markets to help serve its customers.

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Station). All other Energy Louisiana generating assets are located in LRZ 9. Entergy Louisiana's retail operations, including its ownership of generation assets, are subject to regulation by the LPSC.

13. The transmission formula rates of the Entergy Operating Companies originally were filed with the Commission in Docket No. ER13-948-000. *ITC Holdings Corp.*, 143 FERC ¶ 61,257 (2013).

14. *Midwest Independent Transmission System Operator, Inc.*, 108 FERC ¶ 61,163 (2004), *order on reh'g*, 109 FERC ¶ 61,157 (2004).

# III. DESCRIPTION OF THE COTTONWOOD PROJECT AND THE PROPOSED TRANSACTION

## A. The Cottonwood Project

The Cottonwood Project is an approximately 1,263 MW (nominal) generating plant located in Deweyville, Texas. Its seasonal rated capacity is 1,145 MW in summer and 1,195 MW in winter.

The facility is a natural gas-fired CCCT plant configured in four 1x1 power blocks consisting of four General Electric Company ("GE") Frame 7FA.03 combustion turbines ("CTs"), four Foster Wheeler heat recovery steam generators ("HRSGs") with duct firing, four Alstom condensing steam turbines ("STs"), and four split box condensers. The CTs are controlled via a GE MK VI control system. The STs are controlled by an Alstom P320 control system. To control the formation of nitrogen oxide ("NOx") emissions, the CTs are equipped with dry low-NOx combustors. The HRSGs include selective catalytic reduction systems for additional control of NOx, and duct firing for additional steam flow to the STs.

Other equipment at the facility includes cooling towers and auxiliary equipment and water and wastewater treatment systems. The Cottonwood Project is interconnected with the Entergy Texas transmission system under MISO's functional control.

## B. Entergy Louisiana's Need for Additional Generating Capacity and Benefits from Acquiring the Cottonwood Project

Entergy Louisiana engages in resource planning processes to deliver a resource portfolio that is centered on customer outcomes and the safe, reliable delivery of electricity at the lowest reasonable cost. Entergy Louisiana balances three key objectives as part of its resource planning processes: reliability, affordability, and sustainability. This balance looks at both the near-term and long-term benefits and risks associated with each key objective.

The key elements of Entergy Louisiana's resource planning process are: (1) a determination of the capability of the company's current resources, (2) a forecast of the peak load plus reserve margin and energy that the company expects to serve over the planning horizon, and (3) a determination of the amount and types of additional supply-side and demand-side resources that will be needed to meet the company's load and energy requirements. As part of its resource planning efforts, Entergy Louisiana has developed and continues to refine an Integrated Resource Plan ("IRP"), which is filed at the LPSC. Entergy Louisiana's most recent submission of an IRP to the LPSC was on May 22, 2023 ("2023 IRP").[15]

Entergy Louisiana's 2023 IRP identifies a need for Entergy Louisiana to procure additional generating capacity over the course of the long-term planning horizon to replace deactivated capacity and address load growth to reliably serve customers.[16] Subsequent to its development of the 2023 IRP, Entergy Louisiana received requests for service from additional large load customers that recently have announced near-term plans to build large manufacturing and other facilities across Louisiana,[17] further expanding the need for additional generating capacity. Entergy

15. *See Entergy Louisiana, LLC, IRP Final Report* (May 22, 2023), *Ex Parte: In re: 2021 Integrated Resource Planning Process for Entergy Louisiana, LLC Pursuant to the General Order No. R-30021*, Docket No. I-36181. The Final 2023 IRP was acknowledged by the LPSC on February 21, 2024.

16. *Id*. *See also Application of Entergy Louisiana, LLC for Approval to Acquire Cottonwood Generation Facility and for Cost Recovery*, LPSC Docket No. U-37801 (December 3, 2025) ("LPSC Application"). In the Direct Testimony of Laura K. Beauchamp, Entergy Louisiana's Vice President for Business Operations and Strategy, provided as part of the LPSC Application ("Beauchamp Direct Testimony"), Ms. Beauchamp explains that Entergy Louisiana "continues to have an urgent need for additional long-term generation capacity in order to meet projected load requirements, reliably serve customers, and continue to support economic expansion and energy security in Louisiana. In addition, . . . market conditions in the [MISO] South region are expected to continue to tighten." Beauchamp Direct Testimony at 4.

17. *Id*. at 20 (CF Industries, Hyundai Steel Company, and Air Products have announced the development of large manufacturing and other facilities in Louisiana). In addition, Meta is developing a data center project that is one of the largest economic development initiatives in Louisiana's history. *News Release, Entergy Louisiana receives LPSC approval for major infrastructure investments to support Meta's data center and improve reliability* (August 20, 2025) (https://www.entergy.com/news/entergy-louisiana-

Louisiana anticipates that commercial and industrial load growth in its service area will continue given Louisiana's attractiveness for energy-intensive industrial and manufacturing operations due to low rates for electricity, geographic location, world-class infrastructure and access to deep water ports, and workforce availability.[18] Entergy Louisiana's proposed acquisition of the Cottonwood Project, together with other investments in generating capacity and transmission infrastructure, will allow it to reliably serve the anticipated load growth and continue to reliably serve its existing customers.[19]

Entergy Louisiana concluded that acquiring the Cottonwood Project would satisfy its planning objectives with respect to reliability, affordability, and sustainability. With respect to reliability, the Proposed Transaction will provide approximately 1,200 MW of additional generating capacity at a time when Entergy Louisiana's planning forecasts show a need for such capacity.[20] With respect to affordability, the Proposed Transaction is consistent with Entergy Louisiana's principle of planning to meet customers' needs at a reasonable cost, will mitigate the exposure of Entergy Louisiana's customers to capacity prices and to spikes in the market price for energy, and is projected to result in net economic benefits to Entergy Louisiana's customers.[21] And with respect to sustainability, the Cottonwood Project is expected to remain available to serve Entergy Louisiana's customers through 2044, providing Entergy Louisiana with a sustainable long-life asset that is expected to bring customers increased benefits, help manage long-term risk and provide cost stability, and preserve Entergy Louisiana's ability to operate its system more

receives-lpsc-approval-for-major-infrastructure-investments-to-support-metas-data-center-and-improve-reliability).

18. *Id.*

19. Beauchamp Direct Testimony at 20-21.

20. *Id.* at 21.

21. *Id.*

reliably and with greater resilience to the effects of climate change.[22] Overall, Entergy Louisiana's acquisition of the Cottonwood Project will contribute to system reliability by adding needed capacity to the Entergy Louisiana supply plan and supplying energy to help cover the company's growing energy needs.[23] In addition, Entergy Louisiana's acquisition of the Cottonwood Project will mitigate hard-to-quantify risks such as from reduced operational reliability arising from a deficit in Entergy Louisiana's supply plan,[24] higher scarcity energy pricing,[25] curtailment risk,[26] and the risk of higher demand and ultimately higher capacity clearing prices in LRZ9, which would result in higher clearing prices in MISO's Planning Reserve Auction.[27]

### C. Terms of the Proposed Transaction

In January 2025, Entergy Louisiana received an unsolicited offer from Cottonwood Energy's parent for the purchase and sale of the Cottonwood Project and related assets. Entergy timely responded to the unsolicited offer, electing to proceed with discussions, due diligence, and an arms' length negotiation process. The Applicants entered into an Asset Purchase Agreement governing the Proposed Transaction on November 25, 2025.[28]

The Proposed Transaction is structured as the sale of the Cottonwood Project and related assets, including, among other things, generator interconnection facilities and natural gas

22. *Id*.

23. *Id*. at 22.

24. *Id*. at 11.

25. *Id.*

26. *Id.*

27. *Id.*

28. The Applicants provide the Asset Purchase Agreement as Exhibit I. The parties to the Asset Purchase Agreement are Cottonwood Energy, Entergy Louisiana, and for limited purposes with respect to provisions governing solicitations, public announcements, and general considerations, Pelican Power LLC.

interconnection facilities; associated real estate interests; air permits; emissions allowances; administrative buildings; and other assorted assets. Entergy Louisiana will acquire the Cottonwood Project for a negotiated aggregate base purchase price of $1.43 billion, subject to adjustments prescribed by the Asset Purchase Agreement.

## IV. THE PROPOSED TRANSACTION IS CONSISTENT WITH THE PUBLIC INTEREST

The Proposed Transaction is consistent with the public interest and will not have an adverse effect on competition, rates, or regulation and will not cause cross-subsidization of any non-utility associate company or any pledge or encumbrance of utility assets for the benefit of an associate company. The Applicants request the Commission to authorize the Proposed Transaction pursuant to FPA Section 203 without conditions (other than those customarily imposed in FPA Section 203 orders) or hearing.

FPA Section 203(a)(4) provides that "the Commission shall approve the proposed disposition . . . if it finds that the Proposed Transaction will be consistent with the public interest." Applicants must demonstrate that the Proposed Transaction is "consistent with the public interest," *i.e.*, that the Proposed Transaction does not harm the public interest.[29] In reviewing proposed transactions under FPA Section 203, the Commission considers three primary factors: (1) the effect on competition; (2) the effect on rates; and (3) the effect on regulation.[30] In addition, the Commission considers whether the Proposed Transaction will result in cross-subsidization of a

29. *See e.g., Texas-New Mexico Power Co.*, 105 FERC ¶ 61,028 at P 23 n.14 (2003) (citing *Pacific Power & Light Co. v. FPC*, 111 F.2d 1014, 1016-17 (9th Cir. 1940)).

30. 18 C.F.R. § 2.26(b).

non-utility associate company or pledge or encumbrance of utility assets for the benefit of an associate company at the time of the Proposed Transaction or in the future.[31]

### A. The Proposed Transaction Will Have No Adverse Effect on Competition

The Commission's objective in analyzing the effect on competition is to determine whether the proposed transfer will result in higher prices of reduced output in electricity markets.[32] Order No. 642 identifies two types of analyses relevant to determining whether a transfer subject to Commission approval under Section 203 may pose potential adverse effects on competition: horizontal market power analysis and vertical market power analysis. As explained below and in the Competition Analysis, the Proposed Transaction will not have an adverse effect on horizontal or vertical competition in MISO.

With respect to horizontal competition, the Competition Analysis explains that long-term capacity and energy markets are not a competitive concern because the Commission has consistently found that long-term markets for capacity and energy are inherently competitive,[33] so the analysis does not consider long-term capacity and long-term energy products. The Competition Analysis therefore focuses on competitive impacts for short-term energy sales, capacity, and ancillary services.

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31. 18 C.F.R. § 2.26(f).

32. 18 C.F.R. § 2.26; *see also* Order No. 642, at 31,879.

33. Exhibit JM-1 at 15. *See also Market-Based Rates for Wholesale Sales of Electric Energy, Capacity and Ancillary Services by Public Utilities,* Order No. 697, 119 FERC ¶ 61,295, at P 66 (2007); *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Services by Public Utilities; Recovery of Stranded Costs by Public Utilities and Transmitting Utilities*, Order No. 888, FERC Stats. & Regs. 31,036, at 31,649 (1996); *Kansas City Power & Light*, 67 FERC ¶ 61,183, at 61,557 (1994).

The Competition Analysis provides a screening analysis conducted in accordance with Appendix A of the Commission's *Merger Policy Statement*.[34] The Competition Analysis uses the Commission's DPT and HHI analysis to screen for potential increases in market power from the acquisition and considers both the AEC and EC product markets.[35] As the Competition Analysis notes, AEC is a more appropriate measure than EC to review competitive effects given Entergy Louisiana's retail load obligations.[36] On the basis of this comprehensive analysis as explained below, the Competition Analysis concludes that the Proposed Transaction will not have an adverse effect on competition in MISO.

1. MISO Is the Relevant Destination Market for the Proposed Transaction

The Competition Analysis undertakes a market definition analysis to assess the relevant destination market for the Proposed Transaction. The Commission has concluded that relevant destination markets for a transaction are the areas in which the two entities compete for

34. Under the *1992 Merger Guidelines* adopted by the Commission in the *Merger Policy Statement*, markets with an HHI of less than 1,000 are unconcentrated and ordinarily require no further analysis because any mergers or acquisitions are unlikely to have adverse competitive effects. A market is moderately concentrated when the post-merger HHI is between 1,000 and 1,800. Mergers or asset acquisitions that result in an increase in the HHI of less than 100 points in moderately concentrated markets are unlikely to have adverse competitive consequences and ordinarily require no further analysis. Markets with a post- merger HHI over 1,800 are deemed to highly concentrated, but even if such markets, a transaction producing an increase in the HHI of less than 50 points is recognized as being unlikely to have adverse competitive consequences and ordinarily requiring further analysis. These market concentration levels and changes establish a "safe harbor" where the Commission may reasonably conclude, absent additional information, that a merger or asset acquisition is unlikely to result in anticompetitive effects. *See Merger Policy Statement*, at 30,119 ("The Commission believes that the screen will be a valuable analytical tool in all cases. It is conservative enough so that parties and the Commission can be confident that an application that clears the screen would have no adverse effect on competition.").

35. Exhibit JM-1 at 17-21.

36. *Id*. at 19-20. *See, e.g., Nevada Power*, 113 FERC ¶ 61,265, at P 15; *Kansas City Power & Light Co.*, 113 FERC ¶ 61,074, at PP 31, 35 (2005).

customers.[37] The Competition Analysis explains that MISO is the only BAA in which the output of the Cottonwood Project has been sold and Entergy Louisiana and its affiliates have sold energy.[38]

In analyzing the competitive effects of proposed transactions, "[t]he Commission evaluates relevant geographic markets on a case-by-case basis."[39] The Commission has recognized that the existence of a submarket can be demonstrated through evidence of binding transmission constraints at historical seasonal peaks and price separation data.[40] The Commission also, however, has "consistently declined to establish submarkets where an applicant presented only evidence of price separation, but no evidence of binding transmission constraints."[41]

The Competition Analysis assesses whether relevant destination submarkets exist within the MISO BAA and concludes that neither MISO South nor the WOTAB[42] region of MISO constitute relevant submarkets.

37. *Id*. at 15 (citing Order No. 642, at 31,884-31,885); 18 C.F.R. § 33.3(a)(2) ("A horizontal Competitive Analysis Screen need not be filed if the applicant: (i) Affirmatively demonstrates that the merging entities do not currently conduct business in the same geographic markets…").

38. *Id*.

39. *Bayou Cove Peaking Power, LLC,* 165 FERC ¶ 61,226, at P 68 (2018) ("*Bayou Cove*") (citing *Merger Policy Statement,* at 30,118). The Commission has further stated that it "will remain flexible in its approach and will reevaluate whether a previously recognized submarket continues to exist if the evidence shows that the persistent transmission constraints that led to the recognition of that submarket are no longer present." *Analysis of Horizontal Market Power under the Federal Power Act*, 138 FERC ¶ 61,109 at P 43 (2012).

40. *Bayou Cove,* at P 67 (citing *NRG Energy Holdings, Inc.*, 146 FERC ¶ 61,196, at P 80 (2014) ("The Commission has stated that any proposal to use an alternative geographic market must include a demonstration regarding whether there are frequently binding transmission constraints during historical seasonal peaks and at other competitively significant times that prevent competing supply from reaching within the proposed alternative geographic market.")

41. *Id*. at P 67, n. 66.

42. The Cottonwood Project is located in the WOTAB region.

The Commission has in the past considered MISO South, a region comprising Mississippi, Louisiana, Arkansas, and a portion of eastern Texas, to be a separate destination market, but more recently it concluded that MISO South was not a default destination market.[43] The Competition Analysis concludes that "[w]e are not aware of any facts that have changed since the Commission's September 19, 2019, decision in *NRG Wholesale Generation* that would lead us to a different conclusion."[44]

Similarly, the Competition Analysis concludes that the WOTAB region of MISO is not a relevant destination market for the Proposed Transaction. In *Tenaska Frontier*, issued in April 2025, the Commission concluded that WOTAB is not a distinct submarket for purposes of the applicants' competition analysis in that proceeding involving a transaction for a generating facility located in WOTAB.[45] The Commission reached its conclusion on the basis of an analysis of transmission constraints into WOTAB. The initial step of that analysis showed a decline of 77% in the number of hours constrained in the twelve-month period from September through August between 2017 and 2024, from 854 hours to 205 hours (from 9.7% to 2.3% of the hours in the year).[46] The second step of that analysis evaluated the price correlations inside and outside of WOTAB during hours in which WOTAB is constrained and showed that the price differences do not clearly delineate a separate market in WOTAB.[47] The Commission accepted the analysis and concluded for purposes of the transaction in that proceeding that the MISO-wide market was the

43. *NRG Wholesale Generation LP*, 168 FERC ¶ 61,166, at P 35 (2019) ("NRG Wholesale Generation").

44. Exhibit JM-1 at 9.

45. *Id*. at 15-16, citing *Tenaska Frontier* at P 26.

46. *Id*. at 16.

47. *Id*.

relevant geographic market for purposes of assessing the transaction's effect on competition.[48]

For purposes of the Proposed Transaction in the instant proceeding, the Competition Analysis updates the *Tenaska Frontier* destination market definition analysis using the most recent twelve month period.[49] That updated analysis shows a further decline from 205 hours to 95 hours of transmission constraints into WOTAB, or from 2.3% to 1.1% of the hours in the year.[50] The Competition Analysis notes that the decline in the incidence of constraints and high price correlation between WOTAB and areas outside of WOTAB in MISO coincides with the entry into operation of significant new, highly efficient generation capacity in the WOTAB area.[51] On the basis of the Commission's recent holding in *Tenaska Frontier* and the updated market definition analysis, the Competition Analysis concludes that "WOTAB should not be considered a relevant submarket within MISO that might require a separate analysis."[52] The Commission should conclude that MISO as a whole is the relevant destination for purposes of its analysis of the competitive effects of the Proposed Transaction.

b. The Proposed Transaction Raises No Competitive Issues within MISO

The Competition Analysis's DPT analysis for MISO shows that after Entergy Louisiana's acquisition of the Cottonwood Project, the MISO market remains unconcentrated, with post-transaction HHI levels of 672 or lower in all time periods.[53] These HHI levels are well below the

48. *Tenaska Frontier* at P 26.
49. Exhibit JM-1 at 16.
50. *Id.*
51. *Id.*
52. *Id.* at 17.
53. *Id.* at 20-21.

Commission's initial screening hurdle of a post-transaction HHI of 1,000 or higher.[54]

Specifically, the Competition Analysis for EC shows that post-acquisition, the MISO market is unconcentrated, with HHI levels of 672 or lower and HHI changes of 45 or lower in all time periods across all studied price sensitivities.[55] Similarly, the DPT analysis for AEC shows that post-acquisition, the MISO market is unconcentrated, with HHI levels of 305 or lower and HHI changes of 25 or lower in all ten time periods across all studied price sensitivities.[56] Because the market for both products is unconcentrated in each period, there is a presumption of no anticompetitive impact, and no further analysis is needed to conclude that the acquisition will not give Entergy Louisiana or its affiliates market power for these products.[57]

The Competition Analysis also concludes that historical data verify the results of the DPT analysis based on HHI calculations using Electric Quarterly Reports ("EQR") data for the two year period between Q4 2023 and Q3 2025 for deliveries in MISO.[58] Those calculations show the HHI is less than 700 in MISO, with a change in HHI below 20 on both a revenue and quantity basis.[59] The Competition Analysis further provides an alternative historical HHI calculation based on EIA Form 923 data for 2023-2024 that shows that the HHI in MISO at 548, and an HHI change of 30.[60] These historical data confirm that the Entergy Entities' market concentration will remain low in

54. *See Merger Policy Statement*, at 30,129 ("… if the post-merger HHI is below 1000, regardless of the change in HHI the merger is unlikely to have adverse competitive effects.").

55. Exhibit JM-1 at 20-21.

56. *Id*.

57. *Id*.

58. *Id*. at 22.

59. *Id*. The Competition Analysis assumes that the post-Proposed Transaction market share of the Entergy Entities is calculated using a conservative assumption that Entergy Louisiana will acquire all assets currently owned by the Pelican Entities in MISO, so the calculated market concentration likely overstates the actual competitive impact of the Proposed Transaction. *Id*.

60. *Id.*

MISO following the Proposed Transaction.

3. The Proposed Transaction Will Not Have a Negative Effect on the Market for Ancillary Services

The Competition Analysis concludes that Entergy Louisiana's acquisition of the Cottonwood Project is unlikely to generate negative impact on markets for ancillary services, noting that Entergy Louisiana sold only $1.4 million worth of ancillary services in 2024.[61]

4. The Proposed Transaction Will Not Have a Negative Effect on the Market for Capacity

The Competition Analysis concludes that the Proposed Transaction will have little effect on capacity markets because the Proposed Transaction will help Entergy Louisiana meet its capacity obligations.[62] Accordingly, it is likely that but for the acquisition of the Cottonwood Project, Entergy Louisiana would seek to acquire other capacity via contract or other means.[63]

The Competition Analysis further explains that withholding the Cottonwood Project from MISO's capacity auctions would be against Entergy Louisiana's interests as a load-serving entity.[64]

5. The Proposed Transaction Presents No Vertical Market Power Concerns

The Proposed Transaction does not involve any electric transmission facilities, other than facilities used to interconnect generating facilities with the transmission grid, or any upstream inputs to electricity products, and therefore it presents no vertical market power concerns. Moreover, while the Entergy Operating Companies own electric transmission facilities, those facilities are under MISO's operational control, and service is available over those facilities on an

61. *Id*. at 24.

62. *Id*. at 23-24.

63. *Id*. *See also* Section III.B, above, discussing Entergy Louisiana's need to acquire generating capacity to satisfy its significant load growth obligations.

64. *Id*.

open-access transmission basis pursuant to the MISO Tariff, which the Commission has recognized as sufficient to "mitigate vertical market power by a transmission provider and its affiliates in a particular market."[65]

a. Electric Transmission Market Power

The transmission facilities owned by the Entergy Operating Companies are under MISO's functional control and MISO provides open access transmission service over those facilities pursuant to the MISO Tariff.[66] The Proposed Transaction will not increase any potential ability of the Entergy Operating Companies to use their ownership of transmission facilities to give themselves an advantage in energy markets.

b. Barriers to Entry

The Commission also considers whether applicants have the ability to erect barriers to entry by other suppliers in terms of such things as control of sites for new capacity development other than those that may exist at the sites being acquired; control of fuel inputs to generation; and control of any equipment suppliers or facilities used to transport fuels or other inputs to generation. Entergy Louisiana and its affiliates do not have dominant control over power plant sites for new capacity development in relevant markets.

65. *Market-Based Rates for Wholesale Sales of Elec. Energy, Capacity & Ancillary Servs. by Pub. Utils.*, Order No. 697, 119 FERC ¶ 61,295, at P 425 ("Order No. 697"), *on reh'g*, Order No. 697-A, 123 FERC ¶ 61,055, *on reh'g*, Order No. 697-B, 125 FERC ¶ 61,326 (2008), *on reh'g*, Order No. 697-C, 127 FERC ¶ 61,284 (2009), *on reh'g*, Order No. 697-D, 130 FERC ¶ 61,206 (2010), *aff'd sub nom. Montana Consumer Counsel v. FERC*, 659 F.3d 910 (9th Cir. 2011), *cert. denied Public Citizen, Inc. v. FERC*, 133 S. Ct. 26 (2012).

66. The Commission deems the availability of open access transmission service to mitigate any transmission market power held by a seller. *Id.*

Entergy Louisiana does not directly or indirectly own interstate natural gas transportation and storage facilities.[67] There are abundant alternatives for generators to receive gas supplies in the region. Entergy Louisiana and its affiliates also do not control coal supplies or barges and rail cars used for the transportation of coal supplies, except rail cars owned or leased solely to deliver fuel for its coal-fired generating plant.

The Applicants note that in the Entergy Operating Companies' recent triennial market power update filing for the Central region in connection with their market-based rate authority, the Entergy Operating Companies and their affiliates made the requisite affirmative statement that they and their affiliates have not erected any barriers to entry into any geographic market and will not erect such barriers to entry.[68]

67. Entergy Louisiana's affiliate, Entergy Texas, owns the Spindletop Gas Storage Facility ("Spindletop Facility"), which is located in Orange and Jefferson Counties, Texas, within MISO. The Spindletop Facility consists of two natural gas caverns, above-ground compression and withdrawal facilities, an electrical substation, and approximately 23 miles of intrastate pipeline that connects to existing Entergy Texas electric generation facilities and to other pipelines located in Southeast Texas. The Spindletop Facility is dedicated to serving Entergy Texas's Sabine and Lewis Creek generating facilities. There are abundant alternatives to the Spindletop Facility for generators to receive gas supplies in the region. The other Entergy Operating Companies (Entergy Arkansas, Entergy Mississippi, and Entergy New Orleans) do not directly or indirectly own natural gas transportation and storage facilities.

Entergy Louisiana owns Varibus, L.L.C., which formerly owned the Varibus Intrastate Pipeline consisting of 29 miles of intrastate pipeline located in Louisiana. Entergy Louisiana sold the Varibus pipeline in 2021 and no longer maintains any ownership or control of the facility.

68. The Entergy Operating Companies and their public utility affiliates that are market-rate sellers in the Central region filed an updated market power analysis with the Commission on December 29, 2023, in Docket No. ER18-1906, et al. They affirmatively stated that they and their affiliates have not erected, and will not erect, barriers to entry. Entergy Louisiana, LLC, et al., Triennial Market Power Update at 5, Docket Nos. ER18-1906, et al. (December 31, 2023).

### B. The Proposed Transaction Satisfies the Commission's Remaining FPA Section 203 Criteria With Respect to Rates, Regulation, and Cross-Subsidization

#### 1. The Proposed Transaction Will Have No Adverse Effect on Rates

In assessing whether a Proposed Transaction may have an adverse effect on rates, the Commission's primary concern historically has been the protection of wholesale requirements customers and transmission customers.[69]

Entergy Louisiana does not have any wholesale requirements customers. The Proposed Transaction will not cause a change to any Entergy Louisiana tariff or rate schedule on file with the Commission. The Proposed Transaction therefore will not have an adverse effect on rates for any Entergy Louisiana wholesale requirements customer.

Similarly, the Proposed Transaction will not have any adverse effect on rates for transmission customers taking service on transmission facilities owned by Entergy Louisiana or the other Entergy Operating Companies. With respect to transmission service rates, the only transmission facilities included in the Proposed Transaction are limited generator interconnection facilities associated with the Cottonwood Project. Those limited-purpose facilities are not integrated with the transmission grid and will not be included in Entergy Louisiana's transmission revenue requirements. Entergy Louisiana's acquisition of these generator interconnection facilities will not cause an adverse effect on transmission service rates.

In addition, Entergy Louisiana makes a "hold harmless" commitment to ensure that its transmission customers will not be affected by the Proposed Transaction. Entergy Louisiana commits that it will not seek to include Proposed Transaction-related costs in excess of Proposed Transaction savings in its transmission or reactive power revenue requirements used to establish

69. *New England Power Co.*, 82 FERC ¶ 61,179, at 61,659, *order on reh'g*, 83 FERC ¶ 61,275 (1998). *See* Order No. 642, at 31,914-15; *Merger Policy Statement*, at 30,123

rates for Commission-jurisdictional transmission services for a period of five years after the Proposed Transaction is consummated. Although this commitment may not be necessary, Entergy Louisiana is willing to make such a commitment in order to facilitate approval of the Proposed Transaction, and the Commission has accepted similar hold harmless commitments in a number of cases.[70]

2. The Proposed Transaction Will Have No Adverse Effect on Regulation

The Commission seeks to ensure that a Proposed Transaction will not create a "regulatory gap" between state and federal regulation.[71] The Proposed Transaction will not have any adverse effect on the effectiveness of retail or federal regulation.

With respect to retail regulation, Entergy Louisiana requires approval for the Proposed Transaction from its retail regulator and has filed for necessary approvals from the LPSC. That application for retail regulatory approval is currently pending. Following completion of the Proposed Transaction, Entergy Louisiana will remain under the regulatory oversight of the LPSC in the same manner as it is currently subject to retail regulation. Similarly, Entergy Louisiana will remain under the Commission's regulatory oversight in the same manner as it currently is subject to Commission regulation.

3. The Proposed Transaction Will Not Result in Proscribed Cross-Subsidization or the Pledge or Encumbrance of Utility Assets

Pursuant to FPA Section 203(a)(4) and Section 2.26(f) of the Commission's regulations, the Commission evaluates whether a Proposed Transaction will result in cross-subsidization of a

70. The Entergy Operating Companies' "hold harmless" commitment is consistent with the policy and guidance on hold harmless commitments provided by the Commission it its Policy Statement on Hold Harmless Commitments. *Hold Harmless Policy Statement,* 155 FERC ¶ 61,189 (2016) ("*Hold Harmless Policy Statement*"); *see also Atlas Power Finance, LLC,* 157 FERC ¶ 61,237, at PP 62-65 (2016).

71. Order No. 642, at 31,914-15.

non-utility associate company or a pledge or encumbrance of utility assets for the benefit of an associate company. The Proposed Transaction falls within one of the "safe harbors" identified by the Commission for proposed transactions that are unlikely to raise cross-subsidization concerns,[72] specifically the safe harbor for proposed transactions involving only non-affiliates.[73] In this regard, the Proposed Transaction involves "a transfer of assets between [ ] public utilit[ies] and [a] non-affiliate[ ]," as distinct from a "merger[ ] with, or acquisition[ ] of, [a] public utilit[y]."[74]

## V. INFORMATION REQUIRED BY PART 33 OF THE COMMISSION'S REGULATIONS

The Applicants submit the following information required under Section 33.2 of the Commission's regulations. As noted below, the Applicants request certain limited waivers of the Part 33 filing requirements consistent with those granted under similar circumstances.[75]

### A. Section 33.2(a): Exact Names and Their Principal Business Addresses

Cottonwood Energy Company LP
c/o Kindle Energy LLC
500 Alexander Park, Suite 300
Princeton, New Jersey 08540

Entergy Louisiana, LLC
4809 Jefferson Highway
Jefferson, Louisiana 70121

72. *Supplemental Merger Policy Statement*, at PP 14-15.

73. *Id*. at 19.

74. *Id.*

75. *See, e.g., Northeast Generation Co.*, 117 FERC ¶ 61,068, at P 17 (2006) (rejecting objections to applicants' request to waive the requirements to file certain information); *TPF Generation Holdings, LLC*, 135 FERC ¶ 62,155 (2011) (implicitly granting waivers); *TransCanada Pipelines Ltd.*, 112 FERC ¶ 62,031 (2005) (same); *National Power Am., Inc.*, 109 FERC ¶ 62,214 (2004) (same).

**B. Section 33.2(b): Names and Addresses of Persons Authorized to Receive Notices and Communications in Respect to the Application**

**For Cottonwood Energy**

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King & Spalding LLP
1700 Pennsylvania Avenue, NW
Suite 900
Washington, DC 20006
(202) 626-5574
zferkin@kslaw.com

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**For Entergy Louisiana**

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101 Constitution Avenue, NW
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Michael C. Griffen
Assistant General Counsel
Entergy Services, LLC
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Suite 200 East
Washington, DC 20001
(202) 530-7323
mgriffe@entergy.com

**C. Section 33.2(c): Description of the Applicants, etc.**

1. Business Activities of the Applicants. The Applicants' business activities are described in Section II. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit A.

2. List of Energy Subsidiaries and Energy Affiliates. The Applicants' relevant energy subsidiaries and affiliates are described in Section II and identified in Exhibit B. The Applicants request waiver of the requirement to provide additional information on energy subsidiaries and affiliates of Cottonwood Energy that are not involved in, or relevant to, the Proposed Transaction.

3. Organizational Charts Depicting Current and Post-Proposed Transaction Corporate Structure. The Proposed Transaction will not result in any change to the Applicants'

organizational structures. The Applicants request waiver of the requirement to provide organizational charts.

4. Description of All Joint Ventures, Strategic Alliances, Tolling Arrangements, or Other Business Arrangements. The Proposed Transaction is described in Section II. There are no joint ventures, strategic alliances, tolling arrangements, or other business arrangements to which the Applicants or their energy affiliates are a party that will be affected by the Proposed Transaction. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit D.

5. Common Officers or Directors of the Parties to the Proposed Transaction. There are no common officers or directors shared between Cottonwood Energy and Entergy Louisiana, and the Proposed Transaction will not result in any common officers or directors being shared between Applicants. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit E

6. Description and Location of Wholesale Power Sales Customers and Unbundled Transmission Service Customers Served by Applicants or Their Affiliates The Applicants respectfully request waiver of the requirement to identify the description and location of their wholesale power sales customers. Cottonwood Energy is selling its interests in the Cottonwood Project, so the information will not assist the Commission in its evaluation of the Proposed Transaction. A description and location of Entergy Louisiana's wholesale power sales customers and unbundled transmission service customers also is not relevant to the Commission's evaluation of the Proposed Transaction because Entergy Louisiana has committed that it will not seek to include Proposed Transaction-related costs in excess of Proposed Transaction savings in its cost-based energy and/or capacity wholesale requirements rates or transmission revenue

requirements used to establish rates for Commission-jurisdictional transmission services for a period of five years after the Proposed Transaction is consummated.[76]

### D. Section 33.2(d): Description of Jurisdictional Facilities Owned, Operated, or Controlled by Applicants or Parent Companies, Affiliates, and Associated Companies.

The Applicants and their public utility affiliates own extensive Commission-jurisdictional facilities comprised of transmission systems and tariffs, generator-related jurisdictional interconnection facilities, wholesale power sales tariffs, rate schedules, service agreements, and various books and records. The Applicants' and their affiliates' jurisdictional facilities that are relevant to the Commission's evaluation of this application are described in Section II. The Applicants request waiver to the extent they would otherwise be required to submit Exhibit G.

### E. Section 33.2(e): Narrative Description of the Proposed Transaction

The Proposed Transaction is described in Section III. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit H.

### F. Section 33.2(f): Contracts Related to Proposed Transaction

The Asset Purchase Agreement for the Proposed Transaction is provided as Exhibit I. The Applicants request waiver of the requirements of Section 33.2(f) of the Commission's regulations to the extent that it would require the filing of the exhibits and schedules to the Asset Purchase Agreement.[77]

76. Section II.B.2.

77. *See, e.g., Montenay Montgomery Ltd. P'ship*, 128 FERC ¶ 62,111 (2009) (granting FPA Section 203 application based on application containing a copy of the Proposed Transaction document from which the schedules and exhibits were omitted).

### G. Section 33.2(g): Facts Showing that the Proposed Transaction Will be Consistent with the Public Interest

The facts relied upon to show that the Proposed Transaction is consistent with the public interest are set forth in Section IV. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit J.

### H. Section 33.2(h): Maps

The Applicants provide a map that shows the location of the Cottonwood Project.

### I. Section 32.2(i): Licenses and Other Approvals

In addition to applying for Commission approval, Entergy Louisiana has applied to the LPSC for approval of aspects of the Proposed Transaction. Entergy Louisiana's LPSC application is pending in LPSC Docket No. U-37801. In accordance with Section 33.2(i) of the Commission's regulations, the Applicants will supplement this Application with copies of LPSC orders pertaining to the Proposed Transaction that may issue while this Application is pending.

In addition, the Applicants will provide notification of the Proposed Transaction to the United States Department of Justice and Federal Trade Commission pursuant to the HSR Act.

### J: Section 32.2(j): Cross-Subsidization or Pledge or Encumbrance of Utility Assets

As explained in Section IV.B(4) and Exhibit M, the Proposed Transaction will not result in cross-subsidization of a non-utility associate company or a pledge or encumbrance of utility assets for the benefit of an associate company. The Applicants provide the required verification in Exhibit M.

### K. Proposed Accounting Entries

Proposed accounting entries showing the effect of the Proposed Transaction are not included for Cottonwood Energy because Cottonwood Energy is not required to maintain its books

and records in accordance with the Commission's Uniform System of Accounts. Entergy Louisiana provides proposed accounting entries for the Proposed Transaction as an attachment to this application. As required under the Commission's regulations, Entergy Louisiana will submit proposed final accounting entries within six months of the consummation of the Proposed Transaction.

## VI. REQUEST FOR PRIVILEGED TREATMENT OF EXHIBIT I

The Applicants request confidential treatment of the Asset Purchase Agreement submitted as Exhibit I. The Asset Purchase Agreement contains confidential business information, the release of which could be detrimental to the Applicants. The Applicants request the Commission to handle this request for confidential treatment in accordance with Section 388.112 of its regulations and expects that the Commission will notify them prior to any contemplated disclosure of Exhibit I.

The Applicants have redacted the Asset Purchase Agreement from the public version of this application and provide an unredacted version in the non-public version of this application. A proposed protective order based on the Commission's Model Protective Order is provided as part of Exhibit I pursuant to 18 C.F.R. Section 33.9.

## VII. CONCLUSION

For the foregoing reasons, the Applicants request the Commission to issue an order authorizing the Proposed Transaction pursuant to FPA Section 203 without condition or hearing.

Respectfully submitted,

| | |
|---|---|
| /S/ Zori Ferkin | /S/ Michael Griffen |
| Zori Ferkin<br>Tyler R. Brown<br>King & Spalding LLP | Andrea J. Weinstein<br>Michael C. Griffen<br>Entergy Services, LLC |
| Attorneys for<br>Cottonwood Energy Company LP | Attorneys for<br>Entergy Louisiana, LLC |

December 22, 2025

**UNITED STATES OF AMERICA**
**BEFORE THE**
**FEDERAL ENERGY REGULATORY COMMISSION**

| | | |
|---|---|---|
| **Cottonwood Energy Company LP**<br>**Entergy Louisiana, LLC** | )<br>)<br>)<br>) | **Docket No. EC26-_____** |

## Exhibits and Attachments

1. Verifications
2. Proposed Accounting Entries
3. Exhibits

| | |
|---|---|
| Exhibit A | Business Activities of the Applicants |
| Exhibit B | Energy Subsidiaries and Affiliates |
| Exhibit C | Organizational Charts |
| Exhibit D | Description of Joint Ventures, etc. |
| Exhibit E | Common Officers or Directors |
| Exhibit F | Wholesale Power Sales Customers and Unbundled Transmission Customers |
| Exhibit G | Description of Jurisdictional Facilities |
| Exhibit H | Narrative Description of the Proposed Transactions |
| Exhibit I | Contracts Related to Transaction |
| Exhibit J | Facts Showing that the Transaction Will be Consistent with the Public Interest |
| Exhibit K | Maps |
| Exhibit L | Licenses and Other Approvals |
| Exhibit M | Cross-Subsidization or Pledge or Encumbrance of Utility Assets |

4. Attachments and Request for Confidential Treatment

   In accordance with 18 C.F.R. Section 388.112, the Applicants request confidential treatment of portions of the attachments they provide in support of this application to avoid the release of confidential business information, which would be detrimental to the Applicants. The Applicants have labeled such confidential information in accordance with the Commission's instructions. A proposed protective order based on the Commission's Model Protective Order is provided as an attachment pursuant to 18 C.F.R. § 33.9.

# Verifications

**UNITED STATES OF AMERICA**
**BEFORE THE**
**FEDERAL ENERGY REGULATORY COMMISSION**

| | | |
|---|---|---|
| **Cottonwood Energy Company LP**<br>**Entergy Louisiana, LLC** | )<br>)<br>)<br>) | **Docket No. EC26-_____** |

## VERIFICATION

The undersigned, being duly sworn, states that he is the authorized representative of Cottonwood Energy Company LP; that he has read said application and knows the contents thereof; and that all of the statements contained therein with respect to the foregoing entity are true and correct to the best of his knowledge, information, and belief.

Executed this 22 day of December, 2025

By: _____

Subscribed and sworn to before me
this 22nd day of December, 2025

_____
Notary Public (*Signature*)

Barbara Guarneri
Name

April 30, 2029
Date of Commission Expiry

BARBARA GUARNERI
Notary Public, State of Connecticut
My Commission Expires April 30, 2029

**UNITED STATES OF AMERICA**
**BEFORE THE**
**FEDERAL ENERGY REGULATORY COMMISSION**

| | | |
|---|---|---|
| **Cottonwood Energy Company LP**<br>**Entergy Louisiana, LLC** | )<br>)<br>)<br>) | **Docket No. EC26-_____** |

**VERIFICATION**

The undersigned, being duly sworn, verifies that the contents of the foregoing application are true and correct to the best of my knowledge, information, and belief.

Laura K. Beauchamp
Vice President for Business Operations and Strategy
Entergy Louisiana, LLC

Subscribed and sworn to before me
this 18 day of December, 2025.

LAWRENCE J. HAND, JR., 23770
Notary Public in and for
the State of Louisiana.
My Commission is for Life.

LAWRENCE J. HAND, JR., 23770
Notary Public in and for
the State of Louisiana.
My Commission is for Life.

## Proposed Accounting Entries

Cottonwood Energy is not required to maintain its books and records in accordance with the Commission's Uniform System of Accounts.

Entergy Louisiana provides proposed the following accounting proposed accounting entries for the Proposed Transaction.

| Account | Account Title | Debit | Credit |
|---|---|---|---|
| 102 | Electric Plant Purchased or Sold | $ 1.43 billion | |
| 131 | Cash | | $ 1.43 billion |

The amounts represented in Entergy Louisiana's proposed accounting entries reflect the purchase price of $1.43 billion for the Proposed Transaction.

As required under the Commission's regulations, Entergy Louisiana will submit proposed final accounting entries within six months of the consummation of the Proposed Transaction. Entergy Louisiana's final accounting entries filed after the closing of the Proposed Transaction will reflect the actual purchase price and transaction costs.

The transaction price for the Cottonwood Project will exceed the net original cost for the assets, resulting in an acquisition adjustment. Entergy Louisiana will record the original cost of the Cottonwood Project's assets on its books without the effects of the adjustment and recognize an acquisition adjustment for accounting purposes. Consistent with past practice, in its proposed final accounting entries for the transaction, Entergy Louisiana will include the specific amount of the acquisition adjustment and the accounting for it. The acquisition adjustment will be excluded from Commission-jurisdictional rates.

**Exhibit A**

## Business Activities of the Applicants

The Applicants' business activities are described in Section II of the application. The Applicants therefore have requested waiver to the extent they would otherwise be required to submit Exhibit A.

**Exhibit B**

## Energy Subsidiaries and Affiliates

The Applicants' relevant energy subsidiaries and affiliates are described in Section II, and Entergy Louisiana's energy subsidiaries and affiliates are identified below. The Applicants request waiver of the requirement to provide additional information on energy subsidiaries and affiliates of Cottonwood Energy that are not involved in, or relevant to, the Proposed Transaction.

The Applicants request waiver of the requirement to provide additional information on energy subsidiaries and affiliates of Cottonwood Energy that are not involved in, or relevant to, the Proposed Transaction.

Current energy affiliates of Entergy Louisiana:

| Name | Description |
|---|---|
| Entergy Corporation | Holding Company |
| Entergy Arkansas, LLC | Entergy Operating Company |
| Entergy Louisiana, LLC | Entergy Operating Company |
| Entergy Mississippi, LLC | Entergy Operating Company |
| Entergy New Orleans, LLC | Entergy Operating Company |
| Entergy Texas, Inc. | Entergy Operating Company |
| AR Searcy Project Company, LLC | Generator, wholesale power seller |
| MS Sunflower Project Company, LLC | Generator, wholesale power seller |
| EAM Nelson Holding, LLC | Generator, wholesale power seller |
| Entergy Power, LLC | Generator, wholesale power seller |
| Entergy Utility Holding Company, LLC | Holding Company |
| EWO Marketing, LLC | Wholesale power seller |
| System Energy Resources, Inc. | Generator, wholesale power seller |

**Exhibit C**

## Organizational Charts

The Transaction will not result in any change to the Applicants' organizational structures. The Applicants therefore have requested waiver of the requirement to provide organizational charts.

**Exhibit D**

## Description of Joint Ventures, etc.

The Proposed Transaction is described in Section III. There are no joint ventures, strategic alliances, tolling arrangements, or other business arrangements to which the Applicants or their energy affiliates are a party that will be affected by the Proposed Transaction. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit D.

**Exhibit E**

## Common Officers or Directors

There are no common officers or directors shared between Cottonwood Energy and Entergy Louisiana, and the Proposed Transaction will not result in any common officers or directors being shared between Applicants. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit E.

**Exhibit F**

## Wholesale Power Sales Customers and Unbundled Transmission Customers

Cottonwood Energy has requested waiver of the requirement to identify the description and location of its wholesale power sales customers.

Entergy Louisiana also has requested waiver of the requirement to identify the description and location of its wholesale power sales customers and the unbundled transmission service customers it and its affiliates serve. Entergy Louisiana does not have any wholesale requirements customers.

The Applicants respectfully requests waiver of the requirement to identify the description and location of their wholesale power sales customers.

Cottonwood Energy is selling its interests in the Cottonwood Project, so the information will not assist the Commission in its evaluation of the Proposed Transaction.

A description and location of Entergy Louisiana's wholesale power sales customers and unbundled transmission service customers also is not relevant to the Commission's evaluation of the Proposed Transaction because Entergy Louisiana has committed that it will not seek to include Proposed Transaction-related costs in excess of Proposed Transaction savings in its cost-based energy and/or capacity wholesale requirements rates or transmission revenue requirements used to establish rates for Commission-jurisdictional transmission services for a period of five years after the Proposed Transaction is consummated. See Section IV.B.1.

**Exhibit G**

**Description of Jurisdictional Facilities Owned, Operated, or Controlled by Applicants or Parent Companies, Affiliates, and Associated Companies**.

The Applicants and their public utility affiliates own extensive Commission-jurisdictional facilities comprised of transmission systems and tariffs, generator-related jurisdictional interconnection facilities, wholesale power sales tariffs, rate schedules, and service agreements, and various books and records. The Applicants' and their affiliates' jurisdictional facilities that are relevant to the Commission's evaluation of this application are described in Section III. The Applicants request waiver to the extent they would otherwise be required to submit Exhibit G.

**Exhibit H**

## Narrative Description of the Proposed Transactions

The Proposed Transaction is described in Section III. Accordingly, the Applicants have requested waiver to the extent they would otherwise be required to submit Exhibit H.

**Exhibit I**

## Contracts Related to Transaction

The Asset Purchase Agreement that governs the Proposed Transaction has been redacted from this public version of the application. The Applicants requests confidential treatment for the Asset Purchase Agreement pursuant to Section 388.112 of the Commission's regulations, 18 C.F.R. Section 388.112, on the basis that it constitutes confidential and commercially sensitive information, the release of which could be detrimental to the Applicants.

**Exhibit J**

## Facts Showing that the Transaction Will be Consistent with the Public Interest

The facts relied upon to show that the Proposed Transaction is consistent with the public interest are set forth in Section IV. Accordingly, the Applicants request waiver to the extent they would otherwise be required to submit Exhibit J.

**Exhibit K**

**Maps**

The Applicants provide a map that shows the location of the Cottonwood Project.

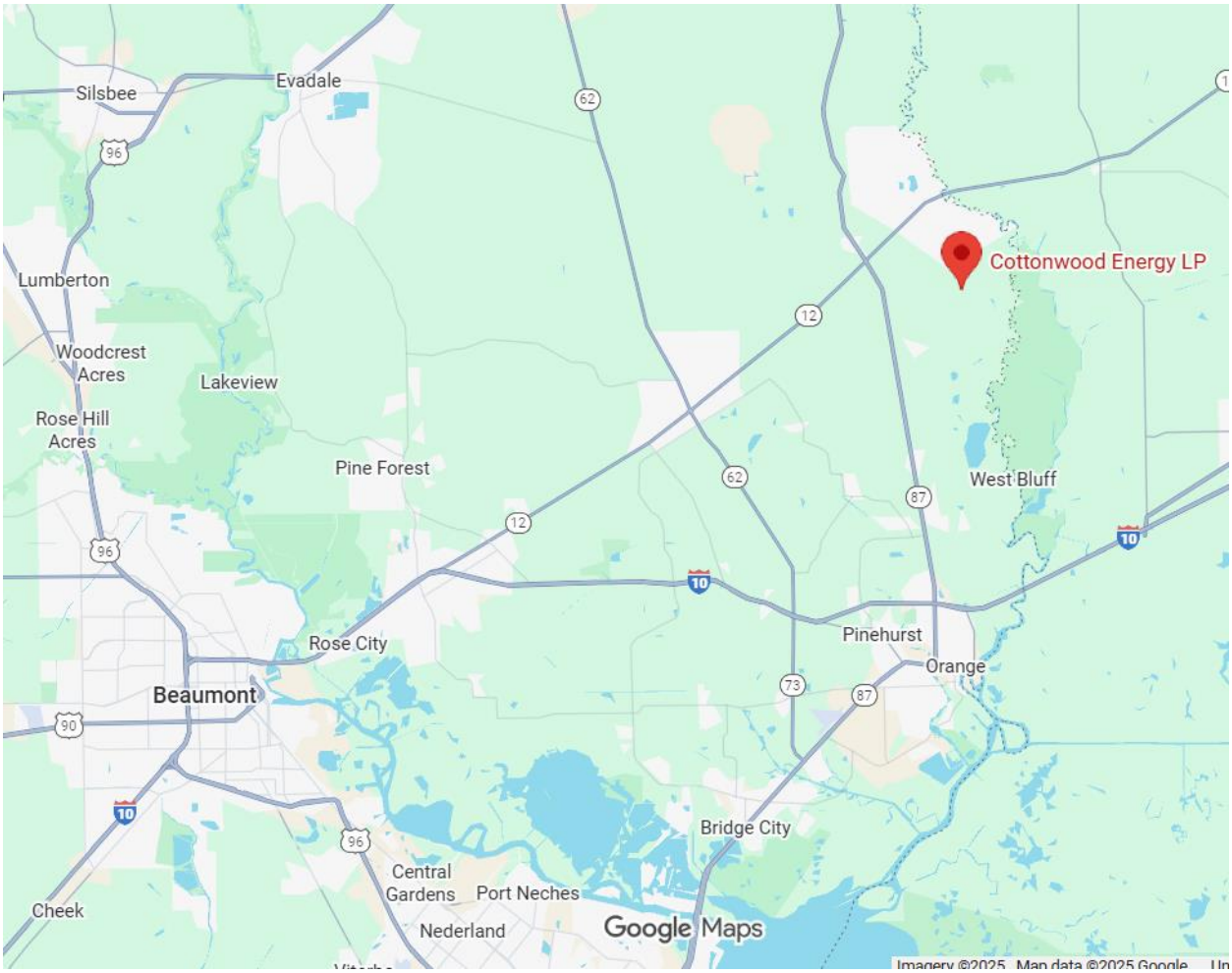


**Exhibit L**

## Licenses and Other Approvals

In addition to applying for Commission approval, Entergy Louisiana has applied to the Louisiana Public Service Commission ("LPSC") for approval of aspects of the Proposed Transaction. Entergy Louisiana's LPSC application is pending in LPSC Docket No. U-37801. In accordance with Section 33.2(i) of the Commission's regulations, the Applicants will supplement this Application with copies of LPSC orders pertaining to the Proposed Transaction that may issue while this Application is pending.

In addition, the Applicants will provide notification of the Proposed Transaction to the United States Department of Justice and Federal Trade Commission pursuant to the Hart-Scott-Rodino Antitrust Improvements Act.

**Exhibit M**

**Cross-Subsidization or Pledge or Encumbrance of Utility Assets**

Pursuant to FPA § 203(a)(4) and Section 2.26(f) of FERC's regulations, the Commission evaluates whether a proposed transaction will result in cross-subsidization of a non-utility associate company or a pledge or encumbrance of utility assets for the benefit of an associate company. In its Section 203 Supplemental Policy Statement, the Commission recognized three classes of transactions that are unlikely to present cross-subsidization concerns.

The Proposed Transaction falls within one of the "safe harbors" identified by the Commission that are unlikely to raise cross-subsidization concerns,[78] specifically the safe harbor for transactions involving only non-affiliates.[79] Under such circumstances, the Commission has recognized that "the potential for inappropriate cross-subsidization of a non-utility associate company or the pledge or encumbrance of utility assets for the benefit of an associate company generally is not present."[80]

The Proposed Transaction will entail the transfer of facilities between unaffiliated companies, Cottonwood Energy Company LP, as the seller, and Entergy Louisiana, LLC, as the purchaser. The Proposed Transaction therefore will not, at the time of the Proposed Transaction or in the future, result in any transfer of facilities between a traditional public utility associate company that has captive customers or that owns or provides transmission service over jurisdictional transmission facilities, and an associate company.

As a result, the Proposed Transaction will not cause cross-subsidization of a non-utility associate company or the pledge or encumbrance of utility assets for the benefit of an associate company.

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78. *Supplemental Policy Statement*, 120 FERC ¶ 61,060 (2007), 72 FR 148 at 42,277 (August 2, 2007), at PP 14-15 (2007) ("Supplemental Policy Statement").

79. *Id.* at 19.

80. *Id.*

## ATTACHMENTS


| | |
|---|---|
| Attachment JM-1 | Report and Affidavit of Dr. John R. Morris and Keith Everhart |
| Attachment JM-2 | Experience and Qualifications of Dr. Morris and Mr. Everhart |
| Attachment JM-3 | Atlas Power and Entergy Entities Generation in MISO |
| Attachment JM-4 | Sales by Atlas Power and Entergy |
| Attachment JM-5 | Data and Methods for Applicants' Delivered Price Test |
| Attachment JM-6 | Technical Appendix: Methods to Calculate Concentration |
| Attachment JM-7 | Technical Appendix: Methods to Calculate Concentration |
| Attachment JM-8 | Non-affiliate Energy Sales in MISO based on EQR Data, 2023-2024 |
| Attachment JM-9 | EIA 923 Generation in MISO by Company, 2023-2024 |
| Attachment | Proposed Protective Order |

**UNITED STATES OF AMERICA**
**BEFORE THE**
**FEDERAL ENERGY REGULATORY COMMISSION**

| | | |
|---|---|---|
| **Cottonwood Energy Company LP**<br>**Entergy Louisiana, LLC** | )<br>)<br>)<br>) | **Docket No. EC26-_____** |

**PROTECTIVE ORDER**
**(Issued _____)**

1. This Protective Order shall govern the use of all Protected Materials produced by, or on behalf of, any Participant. Notwithstanding any order terminating this proceeding, this Protective Order shall remain in effect until specifically modified or terminated by the Presiding Administrative Law Judge ("Presiding Judge") or the Federal Energy Regulatory Commission ("Commission").

2. A Participant may designate as protected those materials which customarily are treated by that Participant as sensitive or proprietary, which are not available to the public, and which, if disclosed freely, would subject that Participant or its customers to risk of competitive disadvantage or other business injury.

3. Definitions—For purpose of this Order:

(a) The term "Participant" shall mean a Participant as defined in 18 C.F.R. § 385.102(b).

(b) (1) The term "Protected Materials" means (A) materials (including depositions) provided by a Participant in response to discovery requests and designated by such Participant as protected; (B) any information contained in or obtained from such designated materials; (C) any other materials which are made subject to this Protective Order by the Presiding Judge, by the Commission, by any court or other body having appropriate authority, or by agreement of the Participants; (D) notes of Protected Materials; and (E) copies of Protective Materials. The Participant producing the Protected Materials shall physically mark them on each page as "PROTECTED MATERIALS" or with words of similar import as long as the term "Protected Materials" is included in that designation to indicate that they are Protective Materials.

(2) The term "Notes of Protected Materials" means memoranda, handwritten notes, or any other form of information (including electronic form) which copies or discloses materials described in Paragraph 3 (b)(1). Notes of Protected Materials are subject to the same restrictions provided in

this order for Protected Materials except as specifically provided in this order.

(3) Protected Materials shall not include (A) any information or document contained in the files of the Commission, or any other federal or state agency, or any federal or state court, unless the information or document has been determined to be protected by such agency or court, or (B) information that is public knowledge, or which becomes public knowledge, other than through disclosure in violation of this Protective Order.

(c) The term "Non-Disclosure Certificate" shall mean the certificate annexed hereto by which Participants who have been granted access to Protected Materials shall certify their understanding that such access to Protected Materials is provided pursuant to the terms and restrictions of this Protective Order, and that such Participants have read the Protective Order and agree to be bound by it. All Non-Disclosure Certificates shall be served on all parties on the official service list maintained by the Secretary in this proceeding.

(d) The term "Reviewing Representative" shall mean a person who has signed a Non-Disclosure Certificate and who is:

(1) Commission Litigation Staff;

(2) an attorney who has made an appearance in this proceeding for a Participant;

(3) attorneys, paralegals, and other employees associated for purposes of this case with an attorney described in (2);

(4) an expert or an employee of an expert retained by a Participant for the purpose of advising, preparing for or testifying in this proceeding;

(5) a person designated as a Reviewing Representative by order of the Presiding Judge or the Commission; or

(6) employees or other representatives of Participants appearing in this proceeding with significant responsibility for this docket.

4. Protected Materials shall be made available under the terms of this Protective Order only to Participants and only through their Reviewing Representatives as provided in Paragraphs 7, 8, and 9.

5. Protected Materials shall remain available to Participants until the later of the date that an order terminating this proceeding becomes no longer subject to judicial review, or the date that any other Commission proceeding relating to the Protected Material is concluded and no longer subject to judicial review. If requested to do so in writing after that date, the Participants

shall, within fifteen days of such request, return the Protected Materials (excluding Notes of Protected Materials) to the Participants that produced them, or shall destroy the materials, except that copies of filings, official transcripts and exhibits in this proceeding that contain Protected Materials, and Notes of Protected Material may be retained, if they are maintained in accordance with Paragraph 6, below. Within such time period each Participant, if requested to do so, shall also submit to the producing Participant an affidavit stating that, to the best of its knowledge, all Protected Materials and all Notes of Protected Materials have been returned or have been destroyed or will be maintained in accordance with Paragraph 6. To the extent Protected Materials are not returned or destroyed, they shall remain subject to the Protective Order.

6. All Protected Materials shall be maintained by the Participants in a secure place. Access to those materials shall be limited to those Reviewing Representatives specifically authorized pursuant to Paragraphs 8 and 9. The Secretary shall place any Protected Materials filed with the Commission in a non-public file. By placing such documents in a non-public file, the Commission is not making a determination of any claim of privilege. The Commission retains the right to make determinations regarding any claim of privilege and the discretion to release information necessary to carry out its jurisdictional responsibilities.

For documents submitted to Commission Litigation Staff ("Staff"), Staff shall follow the notification procedures of 18 C.F.R. § 388.112 before making public any Protected Materials.

7. Protected Materials shall be treated as confidential by each Participant and by the Reviewing Representative in accordance with the certificate executed pursuant to Paragraph 9. Protected Materials shall not be used except as necessary for the conduct of this proceeding, nor shall they be disclosed in any manner to any person except a Reviewing Representative who is engaged in the conduct of this proceeding and who needs to know the information in order to carry out that person's responsibilities in this proceeding. Reviewing Representatives may make copies of Protected Materials, but such copies become Protected Materials. Reviewing Representatives may make notes of Protected Materials, which shall be treated as Notes of Protected Materials if they disclose the contents of Protected Materials.

8. (a) If a Reviewing Representative's scope of employment includes the marketing of energy, the direct supervision of any employee or employees whose duties include the marketing of energy, or the provision of consulting services to any person whose duties include the marketing of energy, such Reviewing Representative may not use information contained in any Protected Materials obtained through this proceeding to give any Participant or any competitor of any Participant a commercial advantage.

(b) In the event that a Participant wishes to designate as a Reviewing Representative a person not described in Paragraph 3(d) above, the Participant shall seek agreement from the Participant providing the Protected Materials. If an agreement is reached that person shall be a Reviewing Representative pursuant to Paragraph 3(d) above with respect to those materials. If no agreement is reached, the Participant shall submit the disputed designation to the Presiding Judge for resolution.

9. (a) A Reviewing Representative shall not be permitted to inspect, participate in discussions regarding, or otherwise be permitted access to Protected Materials pursuant to this Protective Order unless that Reviewing Representative has first executed a Non-Disclosure Certificate provided that if an attorney qualified as a Reviewing Representative has executed such a certificate, the paralegals, secretarial and clerical personnel under the attorney's instruction, supervision or control need not do so. A copy of each Non-Disclosure Certificate shall be provided to counsel for the Participant asserting confidentiality prior to disclosure of any Protected Material to that Reviewing Representative.

(b) Attorneys qualified as Reviewing Representatives are responsible for ensuring that persons under their supervision or control comply with this order.

10. Any Reviewing Representative may disclose Protected Materials to any other Reviewing Representative as long as the disclosing Reviewing Representative and the receiving Reviewing Representative to whom the Protected Materials are disclosed ceases to be engaged in these proceedings, or is employed or retained for a position whose occupant is not qualified to be a Reviewing Representative under Paragraphs 3(d), access to Protected Materials by that person shall be terminated. Even if no longer engaged in this proceeding, every person who has executed a Non-Disclosure Certificate shall continue to be bound by the provisions of this Protective Order and the certification.

11. Subject to Paragraph 17, the Presiding Administrative Law Judge shall resolve any disputes arising under this Protective Order. Prior to presenting any dispute under this Protective Order to the Presiding Administrative Law Judge, the parties to the dispute shall use their best efforts to resolve it. Any participant that contests the designation of materials as protected shall notify the party that provided the protected materials by specifying in writing the materials whose designation is contested. This Protective Order shall automatically cease to apply to such materials five (5) business days after the notification is made unless the designator, within said 5-day period, files a motion with the Presiding Administrative Law Judge, with supporting affidavits, demonstrating that the materials should continue to be protected. In any challenge to the designation of materials as protected, the burden of proof shall be on the participant seeking protection. If the Presiding Administrative Law Judge finds that the materials at issue are not entitled to protection, the procedures of Paragraph 17 shall apply.

12. All copies of all documents reflecting Protected Materials, including the portion of the hearing testimony, exhibits, transcripts, briefs and other documents which refer to Protected Materials, shall be filed and served in sealed envelopes or other appropriate containers endorsed to the effect that they are sealed pursuant to this Protective Order. Such documents shall be marked "PROTECTED MATERIALS" and shall be filed under seal and served under seal upon the Presiding Judge and all Reviewing Representatives who are on the service list. For anything filed under seal, redacted versions or, where an entire document is protected, a letter indicating such, will also be filed with the Commission and served on all parties on the service list and the Presiding Judge. Counsel for the producing Participant shall provide to all Participants who request the same, a list of Reviewing Representatives who are entitled to receive such material. Counsel shall take all reasonable precautions necessary to assure that Protected Materials are not distributed to unauthorized persons.

If any Participant desires to include, utilize or refer to any Protected Materials or information derived therefrom in testimony or exhibits during the hearing in these proceedings in such a manner that might require disclosure of such material to persons other than reviewing representatives, such participant shall first notify both counsel for the disclosing participant and the Presiding Judge of such desire, identifying with particularity each of the Protected Materials. Thereafter, use of such Protected Material will be governed by procedures determined by the Presiding Judge.

13. Nothing in this Protective Order shall be construed as precluding any Participant from objecting to the use of Protected Materials on any legal grounds.

14. Nothing in this Protective Order shall preclude any Participant from requesting the Presiding Judge, the Commission, or any other body having appropriate authority, to find that this Protective Order should not apply to all or any materials previously designated as Protected Materials pursuant to this Protective Order. The Presiding Judge may alter or amend this Protective Order as circumstances warrant at any time during the course of this proceeding.

15. Each party governed by this Protective Order has the right to seek changes in it as appropriate from the Presiding Judge or the Commission.

16. All Protected Materials filed with the Commission, the Presiding Judge, or any other judicial or administrative body, in support of, or as a part of, a motion, other pleading, brief, or other document, shall be filed and served in sealed envelopes or other appropriate containers bearing prominent markings indicating that the contents include Protected Materials subject to this Protective Order.

17. If the Presiding Judge finds at any time in the course of this proceeding that all or part of the Protected Materials need not be protected, those materials shall, nevertheless, be subject to the protection afforded by this Protective Order for three (3) business days from the date of issuance of the Presiding Judge's decision, and if the Participant seeking protection files an interlocutory appeal or requests that the issue be certified to the Commission, for an additional seven (7) business days. None of the Participants waives its rights to seek additional administrative or judicial remedies after the Presiding Judge's decision respecting Protected Materials or Reviewing Representatives, or the Commission's denial of any appeal thereof. The provisions of 18 C.F.R. § 388.112 shall apply to any requests for Protected Materials in the files of the Commission under the Freedom of Information Act (5 U.S.C. § 552).

18. Nothing in this Protective Order shall be deemed to preclude any Participant from independently seeking through discovery in any other administrative or judicial proceeding information or materials produced in this proceeding under this Protective Order.

19. None of the Participants waives the right to pursue any other legal or equitable remedies that may be available in the event of actual or anticipated disclosure of Protected Materials.

20. The contents of Protected Materials or any other form of information that copies or discloses Protected Materials shall not be disclosed to anyone other than in accordance with this Protective Order and shall be used only in connection with this (these) proceeding(s). Any violation of this Protective Order and of any Non-Disclosure Certificate executed hereunder shall constitute a violation of an order of the Commission.

Document Accession #: 20251222-5379 Filed Date: 12/22/2025

**UNITED STATES OF AMERICA**
**BEFORE THE**
**FEDERAL ENERGY REGULATORY COMMISSION**

| | | |
|---|---|---|
| **Cottonwood Energy Company LP**<br>**Entergy Louisiana, LLC** | )<br>)<br>)<br>) | **Docket No. EC26-_____** |

## NON-DISCLOSURE CERTIFICATE

I hereby certify my understanding that access to Protected Materials is provided to me pursuant to the terms and restrictions of the Protective Order in this proceeding, that I have been given a copy of and have read the Protective Order, and that I agree to be bound by it. I understand that the contents of the Protected Materials, any notes or other memoranda, or any other form of information that copies or discloses Protected Materials shall not be disclosed to anyone other than in accordance with that Protective Order. I acknowledge that a violation of this certificate constitutes a violation of an order of the Federal Energy Regulatory Commission.

By: _____

Title _____

Representing _____

Document Accession #: 20251222-5379 Filed Date: 12/22/2025



# UNITED STATES OF AMERICA

# BEFORE THE

# FEDERAL ENERGY REGULATORY COMMISSION

| | | |
|---|---|---|
| Cottonwood Energy Company LP<br>Entergy Louisiana, LLC | )<br>) | Docket No. EC26-___-000 |

Report and Affidavit of
Dr. John R. Morris and Keith Everhart

December 19, 2025

# Entergy Louisiana's Acquisition of Cottonwood Generating Station from Cottonwood Energy Company

## Executive Summary

Entergy Louisiana, LLC ("Entergy Louisiana"), an affiliate of Entergy Corporation ("Entergy"), and Cottonwood Energy Company LP ("Cottonwood Energy") are filing for authority under Section 203 of the Federal Power Act in connection with a transaction whereby Entergy Louisiana acquires the Cottonwood Energy Project ("Cottonwood Project"). In connection with the Section 203 filing, counsel for Entergy Louisiana asked that Dr. John R. Morris and Mr. Keith Everhart of Secretariat Advisors LLC prepare a generation market power study to determine whether the Transaction would create or enhance market power in the Midcontinent ISO ("MISO") market.

Dr. Morris and Mr. Everhart analyzed MISO as the destination market. In each period, there were very little changes in market concentration. They used the Commission's delivered price test ("DPT") and Herfindahl-Hirschman Indices ("HHI") for an initial screen and found the HHI changes well below the Commission's screening thresholds, indicating no adverse competitive effects.

Dr. Morris and Mr. Everhart did not identify any adverse competitive impacts on capacity markets or markets for ancillary services. Dr. Morris and Mr. Everhart examined sales of regulation service and operating reserves. They find that the markets are competitive and that the Transaction will not materially change market outcomes.

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JM-3 Entergy and Pelican Entities Generation in MISO
JM-4 Sales by Entergy and Pelican Entities, 2023-2024
JM-5 Data and Methods for Applicants' Delivered Price Test
JM-6 Technical Appendix: Methods to Calculate Concentration
JM-7 Summary Results of MISO Price Sensitivity Analyses
JM-8 Non-affiliate Energy Sales in MISO based on EQR Data, 2023-2025
JM-9 EIA 923 Generation in MISO by Company, 2023-2024

# Entergy Louisiana, LLC's Acquisition of Cottonwood Energy Project from Cottonwood Energy Company LP

## 1. Introduction

My name is Dr. John R. Morris. I am a Managing Director at Secretariat Advisors LLC ("Secretariat"), a consulting firm located at 2121 K Street NW, Washington, DC 20037. I received a bachelor's degree in economics from Georgetown University and a master's degree and a Ph.D. in economics from the University of Washington. My primary field is industrial organization, which is the study of company behavior in competitive, oligopolistic, and monopolistic markets. This field also covers the business regulation of companies through the antitrust laws and the price and entry regulation of electric and natural gas utilities.

I have been studying and consulting in the energy industry since joining the Federal Trade Commission in 1985. At the Federal Trade Commission, I served as a staff economist, a Commissioner Advisor, and as the Assistant to the Deputy Director for Antitrust. As a staff economist, I focused much of my time on investigations of the natural gas industry and became familiar with rate-setting principles in that industry at both the federal and state level.

Since joining what is now Secretariat in 1992, I have consulted on many competition matters involving electric and natural gas companies, examined issues relating to utility rates, examined issues concerning undue discrimination by operators of natural gas and electric power transmission facilities, calculated damages, and calculated amounts of alleged unjust enrichment. I have worked for a wide range of clients including many governmental entities—e.g., the Antitrust Division of the U.S. Department of Justice, the Federal Trade Commission, the City of San Antonio, the City of San Diego, and the New Jersey Board of Public Utilities—and many major corporations—e.g., American Electric Power, Berkshire Hathaway Energy, Energy Transfer, Exelon Corporation, Public Service Electric & Gas, Tampa Electric

Company, TransCanada Corporation, and WEC Energy Group. The Federal Energy Regulatory Commission ("FERC," or the "Commission"), state public utility commissions, and federal courts have accepted me as an expert witness on energy matters.

I have conducted a wide range of professional activities during my career. I have spoken before FERC, the U.S. Department of Justice, and the Federal Trade Commission. I have published articles in journals such as the *Antitrust Bulletin*, the *Journal of Regulatory Economics*, the *Electricity Journal*, and *Public Utilities Fortnightly*. Formerly I was the chairman of the Antitrust Committee of the Energy Bar Association.

I have previously taught economics at the University of Washington, Indiana University, and Stanford University (Washington, DC, campus). A complete listing of my experience, publications, and testimony is contained in my resume, presented in Exhibit JM-2.

My name is Keith Everhart. I am an Associate Director at Secretariat. I received a bachelor's degree in economics from Georgetown University and a master's degree in international economics from Florida State University. My primary field of study is competition within the electric power industry. I have served as regulator and consultant in the electricity industry for nearly 20 years, beginning in 2006 as an Economist in the Office of Enforcement at the Commission, where I was responsible for investigating attempts by market participants to violate company's Open Access Transmission Tariffs and the Commission's Anti-manipulation rule. I then joined the predecessor of Secretariat, Economists Incorporated, where I contributed to affidavits in connection with electric utility mergers, the purchase and sale of jurisdictional assets, and applications for market-based rates. I then served as an Electricity Analyst in the Division of Energy Markets and Security at the International Energy Agency, before re-joining Secretariat in 2025. A complete listing of my experience is contained in my resume, presented in Exhibit JM-2.

On November 25, 2025, Entergy Louisiana entered into Asset Purchase Agreement with Cottonwood Energy to acquire the Cottonwood Project, located in the MISO balancing authority area ("Proposed Transaction"). Entergy Louisiana and Cottonwood Energy (each an "Applicant" and together, "Applicants") are filing for authority under Section 203 of the Federal Power Act to consummate the Proposed Transaction. In connection with that filing, counsel for Entergy Louisiana asked that we prepare a generation market power study to determine whether the Proposed Transaction would create or enhance market power in any relevant market.

## 2. Summary of Conclusions

The Proposed Transaction would have no anticompetitive effects in the MISO destination market, as revealed in both the Commission's Delivered Price Test ("DPT") methodology and verified with EIA production data and Electric Quarterly Report ("EQR") data. The Proposed Transaction results in small changes in market concentration in both Economic Capacity ("EC") and Available Economic Capacity ("AEC").

MISO is the only relevant market where there is overlap between generation owned or controlled by Entergy Louisiana and its affiliates (collectively, "Entergy Entities"), and Cottonwood Energy and its affiliates (referred to collectively as "Pelican Entities"),[1] as shown in Table 1.

[1] Cottonwood Energy is an indirect subsidiary of Pelican Power, LLC ("Pelican Power"), which owns, in addition to Cottonwood Energy, entities that own in whole or in part the Bayou Cove, Big Cajun 1, Big Cajun 2 Units 1+2, and Big Cajun 2 Unit 3 generating facilities in the MISO region. Pelican Power is an indirect subsidiary of Pelican Power Holdings LLC ("Pelican Power Holdings"). Pelican Power Holdings indirectly owns an interest in the Tenaska Frontier generating facility in the MISO region. Pelican Power Holdings is an indirect subsidiary of Atlas GP Global Holdings LLC ("Atlas Holdings").

**Table 1 - Markets Where Entergy and Pelican Entities Both Own or Control Generation Assets**

| | Pre-Transaction | | Post-Transaction | |
|---|---|---|---|---|
| BBA | Entergy (MW) | Pelican Entities (MW) | Entergy (MW) | Pelican Entities (MW) |
| MISO | 29,734 | 3,816 | 30,879 | 2,671 |

Source: Velocity Suite

Our conclusions are summarized as follows.

### 2.1. DPT Results Indicate No Competitive Issue in MISO

In MISO, the DPT results for Available Economic Capacity in the proposed Transaction are summarized in Table 2 below. Changes in market concentration resulting from the proposed Transaction are trivial with the largest HHI change of only 25. A detailed analysis, discussed below, indicates that MISO's energy market is unconcentrated, and the DPT is readily passed in all cases for both EC and AEC.

**Table 2 - Summary of Base Case DPT Results for AEC in MISO**

| Period | Price ($/MWh) | Market Size | EES Pre Cap. | EES Pre Share | ATL Pre Cap. | ATL Pre Share | EES Post Cap. | EES Post Share | HHI Change | Post HHI |
|---|---|---|---|---|---|---|---|---|---|---|
| SF_T10 | 45.32 | 59,722 | 3,038 | 5.1 | 1,991 | 3.3 | 4,019 | 6.7 | 11 | 201 |
| SF_P | 34.06 | 49,259 | 3,114 | 6.3 | 1,991 | 4.0 | 4,095 | 8.3 | 17 | 251 |
| SF_OP | 30.52 | 48,430 | 3,134 | 6.5 | 1,991 | 4.1 | 4,115 | 8.5 | 18 | 303 |
| SUM_T1 | 121.66 | 58,912 | 3,185 | 5.4 | 2,721 | 4.6 | 3,184 | 5.5 | -7 | 168 |
| SUM_T10 | 59.62 | 57,489 | 3,185 | 5.5 | 2,721 | 4.7 | 3,184 | 5.6 | -7 | 183 |
| SUM_P | 41.06 | 53,208 | 3,184 | 6.0 | 2,107 | 4.0 | 3,916 | 7.4 | 9 | 224 |
| SUM_OP | 29.84 | 40,373 | 3,184 | 7.9 | 1,841 | 4.6 | 3,184 | 8.1 | -2 | 299 |
| WIN_T10 | 58.15 | 66,884 | 5,806 | 8.7 | 2,539 | 3.8 | 6,872 | 10.3 | 21 | 261 |
| WIN_P | 36.03 | 51,156 | 4,158 | 8.1 | 2,170 | 4.2 | 5,224 | 10.2 | 25 | 305 |
| WIN_OP | 33.73 | 50,100 | 3,238 | 6.5 | 2,170 | 4.3 | 4,305 | 8.6 | 18 | 305 |

We have also assessed congestion patterns into the MISO Narrow Constrained Area known as West of the Atchafalaya Basin, or WOTAB, as the Commission had previously defined it as a relevant submarket in a decision in 2018.[2] We demonstrate

[2] *Bayou Cove Peaking Power, LLC*, 165 FERC ¶ 61,226, at PP 75-76 (2018) ("Bayou Cove").

that the incidence of congestion has declined significantly since 2021 and has continued to decline since the Commission-accepted affidavit of Tenaska Frontier Partners in 2024 that WOTAB is no longer a relevant submarket.[3]

Although the Commission found that MISO South was a relevant market in *Bayou Cove*,[4] the Commission later found in *NRG Wholesale Generation* that MISO South was not a default destination market.[5] We are not aware of any facts that have changed since the Commission's September 19, 2019, decision in *NRG Wholesale Generation* that would lead us to a different conclusion.

Finally, the Transaction will not adversely affect capacity markets in MISO because the Transaction does not materially change market concentration and Entergy Louisiana has retail obligations that limit its incentive to exercise market power.

In summary, Entergy Louisiana's acquisition of Cottonwood creates no risk of anticompetitive effects. Accordingly, we recommend that the Commission conclude that the transaction passes the effect on the competition prong of the Commission's public interest review of applications under Section 203 of the Federal Power Act.

# 3. Description of Entergy Entities, Pelican Entities, and their Generation Assets

## 3.1. Entergy Entities

The Entergy Entities include five operating companies (Entergy Operating

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3 *See Tenaska Frontier Partners, Ltd,* 191 FERC ¶ 61,037, P 26 (2025) ("Tenaska Frontier").

4 *Id*. at P 67.

5 *See NRG Wholesale Generation LP*, 168 FERC ¶ 61,166 at P 35 (2019) ("NRG Wholesale Generation").

Companies),[6] including Entergy Louisiana, that serve retail and wholesale customers and own transmission systems (Entergy Transmission System) within the MISO balancing authority area (BAA). Other Entergy Corporation subsidiaries own generation assets in the Southeast. Entergy Entities own and operate over 40 plants using natural gas, nuclear, coal, oil and renewable power totaling approximately 25,000 MW of electric generating capacity in MISO, and the Entergy Operating Companies deliver electricity to 2.9 million utility customers in Arkansas, Louisiana, Mississippi and Texas. MISO has functional control of the Entergy Transmission System which spans portions of Arkansas, Louisiana, Mississippi, Missouri and Texas. Exhibit JM-3 provides a list of generation assets that are owned or controlled by Entergy Entities in MISO and areas first-tier to MISO.

### 3.2. Pelican Entities

Through various subsidiaries, including Pelican Power, Atlas Holdings develops, owns, and operates independent power projects and transmission projects in the United States. Exhibit JM-3 provides a list of relevant generation assets that are owned or controlled by Atlas Holdings subsidiaries in MISO and areas first-tier to MISO. Atlas Holdings' other assets in MISO, including Bayou Cove Peaking Power, Big Cajun 1 Peakers, Big Cajun 2 Units 1+2, share of Big Cajun 2 Unit 3, and Tenaska Frontier Generating Station, will remain affiliated with Atlas Holdings following completion of the Proposed Transaction.

### 3.3. Generation Assets Being Acquired by Entergy Louisiana

Entergy Louisiana is acquiring the Cottonwood Project from Cottonwood Energy in this Proposed Transaction. The Cottonwood Project's design capacity is 1,263 MW and its seasonal rated capacity is 1,145 MW in summer and 1,195 MW in winter.

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[6] The Entergy Operating Companies are Entergy Arkansas, LLC ("Entergy Arkansas"); Entergy Texas, Inc. ("Entergy Texas"); Entergy New Orleans, LLC ("Entergy New Orleans"); and Entergy Mississippi, LLC ("Entergy Mississippi").

# 4. Methodology to Review Competitive Effects of the Acquisition

This report considers whether the proposed acquisition of the Cottonwood Project by Entergy Louisiana will result in the Entergy Entities' obtaining or increasing market power following the Proposed Transaction. Market power is the ability of a seller or group of sellers to profit from restricting output and maintaining prices "above competitive levels for a significant period."[7] Therefore, the central competitive issue is whether the acquisition will give the Entergy Entities the incentive and the ability to withhold output and raise market prices and maintain such higher prices.[8] To examine this issue, the report uses standard market power analysis methods used by the Commission and economists.

## 4.1. Foundation of the Screening Method

The analytical framework for this report was established by the 1992 Horizontal Merger Guidelines issued by the Department of Justice and Federal Trade Commission ("Agency") and adopted by the Commission in its *Merger Policy Statement*.[9] The antitrust agencies revised the 1992 Merger Guidelines in 2010,

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7 U.S. Department of Justice and Federal Trade Commission. *Horizontal Merger Guidelines*. issued April 2, 1992, 57 FR 41,552, Section 0.1 (1992), *available at* http://www.justice.gov/atr/hmerger/11250.htm.

8 *FPA Section 203 Supplemental Policy Statement*, FERC Stats. & Regs. ¶ 31,253, at P 60 (2007) ("*Supplemental Policy Statement*"), *order on clarification and reconsideration*, 122 FERC ¶ 61,157 (2008) ("Commission's analysis focuses on the merger's effect on the merged firm's *ability* and *incentive* to withhold output in order to drive up the market price.").

9 *Inquiry Concerning the Commission's Merger Policy Under the Federal Power Act: Policy Statement*, Order No. 592, FERC Stats. & Regs. ¶31,044 (1996) ("*Merger Policy Statement*"), reconsideration denied, Order No. 592-A, 79 FERC ¶ 61,321 (1997). The Agency subsequently adopted revised guidelines in 2010. *See* U.S. Department of Justice and the Federal Trade Commission, Horizontal Merger Guidelines (issued Aug. 19, 2010) ("2010 Merger Guidelines"), *available at* http://ftc.gov/os/2010/08/100819hmg.pdf. The Commission expressly declined to adopt the HHI screening thresholds of the 2010 Merger Guidelines, instead reaffirming its reliance on the 1992 Merger Guidelines screening thresholds. *See Analysis of Horizontal Market Power under the Federal Power Act*, 138 FERC ¶ 61,109 at P 2 (2012) ("*Analysis of Horizontal Market Power*").

adding some concepts and clarifications, but the core of the 1992 framework was retained.[10] This framework includes a five-step procedure for analyzing mergers and acquisitions of generation assets by another entity.[11]

The first step in the analysis identifies the relevant market and products and assesses whether the merger or acquisition can significantly increase concentration and result in a concentrated market. The second step evaluates whether the merger or acquisition, in light of market concentration and other factors that characterize the market, raises concern about potential adverse competitive effects.[12] The third step assesses other factors to determine whether the screens provide a "false positive" suggesting that market power may exist when, in fact, it does not.[13] The fourth step requires an assessment of whether there are any efficiency gains that reasonably cannot be achieved through means other than the transaction. The fifth step checks whether either party to the transaction would be likely to fail, causing its assets to exit the market if the merger or acquisition does not take place.

The Commission in Order Nos. 592 and 642 articulated specific methods of

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10 The Merger Guidelines were revised again in 2023. *See* U.S. Department of Justice & Federal Trade Commission, Merger Guidelines (2023), available at https://www.ftc.gov/system/files/ftc_gov/pdf/2023_merger_guidelines_final_12.18.2023.pdf This latest revision is drafted more as a reference from prior antitrust decisions less of the economic framework of the 1992 and 2010 Horizontal Merger Guidelines. The Commission has considered any changes to its analytic framework since the 2023 Merger Guidelines.

11 *See Merger Policy Statement*; Order No. 642 at 31,882.

12 *Id.* at 31,886 ("the competitive analysis screen is intended to provide a standard, generally conservative check to allow the quick identification of mergers that are unlikely to present competitive problems, and is not meant to be a definitive test of the competitive effects of a proposed merger.")

13 *Supplemental Policy Statement* at P 65 ("… [T]he Commission does look beyond the change in HHI in its analysis of the effect on competition in both horizontal and vertical mergers. The change in HHI serves as a screen to identify those transactions that could potentially harm competition. If the screen is failed, then … the Commission examines the factors that could affect competition in the relevant market. Specifically, in these circumstances the Commission typically considers a case-specific theory of competitive harm, which includes, but is not limited to, an analysis of the merged firm's ability and incentive to withhold output in order to drive up prices.").

defining markets and measuring market concentration.[14] These methods are commonly referred to as the delivered price test, or DPT. The Commission uses the market concentration thresholds of the *1992 Merger Guidelines* to establish whether additional analysis is necessary to determine the competitive effects or mitigation is necessary to alleviate concerns of potential anticompetitive effects.

Per instructions in Order No. 642 and standard economic practice, the report uses the HHI measure of market concentration.[15] The HHI is calculated as the sum of the squares of each company's market shares. Hence, a market with four companies having market shares of 40, 30, 20, and 10 percent would have an HHI of 3,000 ($3,000 = 40^2 + 30^2 + 20^2 + 10^2 = 1,600 + 900 + 400 + 100$). Under the *1992 Merger Guidelines*, markets with an HHI of less than 1,000 are unconcentrated and ordinarily require no further analysis because any mergers or acquisitions are unlikely to have adverse competitive effects. A market is moderately concentrated when the post-merger HHI is between 1,000 and 1,800. Mergers or asset acquisitions that result in an increase in the HHI of less than 100 in moderately concentrated markets are unlikely to have adverse competitive consequences and ordinarily require no further analysis. Markets with a post-merger HHI over 1,800 are highly concentrated. Even in highly concentrated markets, if the merger or asset transaction produces an increase in the HHI of less than 50, the transaction is unlikely to have adverse competitive consequences and ordinarily requires no further analysis. These market concentration levels and changes establish a "safe harbor" where the Commission may reasonably conclude, absent additional information demonstrating the contrary, that a merger or asset acquisition is unlikely to result in anticompetitive effects.[16] When a transaction produces HHI increases above the safe harbor

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[14] *See* Order No. 642 at 31,873.

[15] *Id.* at 31,896.

[16] *See Merger Policy Statement* at 30,119 ("The Commission believes that the screen will be a valuable analytical tool in all cases. It is conservative enough so that parties and the Commission can be confident that an application that clears the screen would have no adverse

thresholds, then the Commission examines competitive effects, efficiencies, and the likelihood of market exit.[17]

### 4.2. Product Markets

As articulated in Order Nos. 592 and 642, the relevant products for competition analysis typically include the short-term energy, capacity and ancillary services markets.[18] The short-term energy market is discussed in Section 5 through Section 7. Potential effects in the short-term capacity market are discussed in Section 8.1. Effects on ancillary services are discussed in Section 8.2. The report does not consider competition in long-term capacity or energy contracts. The Commission has correctly concluded that long-term generation markets are inherently competitive and generation market power analysis should focus on short-term markets.[19] Recently, some have alleged a product market "to sell power to large data loads like data centers."[20] But they have not presented any information that would support the proposition that such an alleged market exists.[21] Moreover, if it did exist, it would be

effect on competition.") Under the 2010 Merger Guidelines, the federal antitrust agencies chose to employ higher thresholds. *See Analysis of Horizontal Market Power* at P 8 (comparing the thresholds under the 1992 and 2010 Merger Guidelines). As noted above, the Commission has not adopted the 2010 Merger Guidelines (*Id.* at P 35), and, therefore, the lower screening thresholds set forth in the 1992 Merger Guidelines were used in this analysis.

17 Order No. 642 at 31,911 ("… the factors that applicants would have to evaluate in this stage of the analytic framework are those set out in Sections 2 through 5 of the Guidelines: potential adverse competitive effects, … merger-related efficiencies, and whether one of the merging firm's assets would exit the market but for the merger.")

18 Order No. 642 at 31,882.

19 *See* Order No. 697 at P 122 ("As the Commission has stated in the past, absent entry barriers, long-term capacity markets are inherently competitive because new market entrants can build alternative generating supply."); *Kansas City Power & Light*, 67 FERC ¶ 61,183, at 61,557 (1994).

20 Public Citizen, Pennfuture, and Clean Air Council, Protest and Motions to Intervene, Constellation Energy Corporation *et al*., FERC Docket No. EC25-43-000, March 25, 2025, Accension No. 20250325-5151, at 13 ("The Applicants' consultants do not examine the transaction's effect on market share and concentration in the market to sell power to large loads like data centers.")

21 For such a market to exist, it would be necessary to show that it would be both possible and profitable to raise prices to the "large loads" relative to other loads. To date, no intervenor has attempted to show or even explain how this would be possible.

a long-term market as most examples to date are for long-term contracts. As stated above, such a market would not present competitive issues because the Commission has appropriately concluded that long-term generation markets are inherently competitive.[22] Finally, retail issues are not at issue in this matter because Cottonwood Energy does not have a retail operation and, therefore, Entergy Louisiana is not acquiring a business to serve retail customers.

### 4.3. Destination Markets

The relevant destination markets are the areas in which the two entities compete for customers.[23] Exhibit JM-4 shows sales data by the Entergy Entities and by the Pelican Entities. Both sets of companies made sales to MISO. Therefore, MISO is the only relevant destination market for considering the effects of the acquisition before the Commission.

When an RTO or ISO experiences frequently binding transmission constraints during competitively important periods, the Commission may consider a submarket as a separate destination market.[24] The Commission has in the past considered MISO South, a region comprising Mississippi, Louisiana, Arkansas, and a portion of eastern Texas, as a separate destination market, but later found in *NRG Wholesale Generation* that MISO South was not a default destination market.[25]

In a 2018 decision, the Commission defined the MISO Narrow Constrained

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22 There are over 100 holding companies that own over 1,000 MW of generation capacity that is not fueled by solar or wind that could serve a large load. Hitachi Energy, Velocity Suite, Generation Unit Capacity dataset.

23 *See*, Order No. 642 at 31,884-31,885; 18 C.F.R. § 33.3(a)(2) ("A horizontal Competitive Analysis Screen need not be filed if the applicant: (i) Affirmatively demonstrates that the merging entities do not currently conduct business in the same geographic markets…").

24 Order No. 697 at P 268 ("Any proposal to use an alternative geographic market … must include a demonstration regarding whether there are frequently binding transmission constraints during historical seasonal peaks examined in the screens and at other competitively significant times that prevent competing supply from reaching customers within the proposed alternative geographic market.").

25 *See NRG Wholesale Generation* at P 35.

Area known as West of the Atchafalaya Basin, or WOTAB, as a relevant submarket.[26] We demonstrate that the incidence of congestion has declined significantly since 2021 and has continued to decline since the Commission-accepted affidavit of Tenaska Frontier Partners in 2024, in which Secretariat colleagues Julie Solomon and Jeffrey Opgrand analyzed constraints into WOTAB and concluded that it should no longer be considered a relevant submarket.[27]

Our colleagues used a two-step screen. First, they examined the incidence of congestion occurring into the WOTAB Narrow Constrained Area ("NCA"). The analysis showed a decline of 77% in the number of hours constrained in twelve-month period from September-August between 2017 and 2024, from 854 to 205 (9.7% to 2.3%). We have updated this analysis with the most recent twelve-month period from September 2024 to August 2025, which showed a further decline to 95 constrained hours, or 1.1%.

In Step 2, they evaluated the price correlations inside and outside of WOTAB during hours in which WOTAB is constrained. The analysis showed that the price differences do not clearly delineate a separate market in WOTAB.

The decline in the incidence of constraints and high price correlation between WOTAB and areas outside of WOTAB in MISO coincides with the entry into operation of significant new, highly efficient generation capacity in the WOTAB NCA, including Entergy Louisiana's Lake Charles Power Station, a 994 MW combined-cycle facility, which reached commercial operation in March 2020,[28] and Entergy Texas's Montgomery County Power Station, a 993 MW combined cycle facility, which reached commercial operation in January 2021.[29] Entergy Texas also has another new

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[26] See Bayou Cove at PP 75-76.

[27] *See Tenaska Frontier* at PP 17-22 (2025).

[28] https://www.entergy.com/brightfuturela/lakecharles/.

[29] https://www.entergynewsroom.com/news/montgomery-county-power-station-achieves-commercial-operation/.

combined-cycle facility under construction in WOTAB, the 1,215 MW Orange County Advanced Power Station, expected to reach commercial operation in 2026.[30] Based on this evidence, we agree with the conclusion that WOTAB should not be considered a relevant submarket within MISO that might require a separate analysis.

## 5. Data Sources and Methodology for the Delivered Price Test

This section provides an overview of the sources and methods used for the DPT. A more detailed description of data sources and methods to prepare the data for the DPT is presented in Exhibit JM-5.

The DPT calculates the amount of energy that suppliers could economically sell to each of the potential destination markets at no more than 105% of the expected market price. The capacity that can reach the destination markets at or below that price for each market condition is called Economic Capacity or EC.

This report uses ten market conditions defining categories of peak and off-peak load hours across three defined seasonal periods: Spring/Fall, Summer, and Winter.[31]

- For the *Spring/Fall* and *Winter* seasons, three market conditions were considered, including (1) the top 10% of on-peak load hours, (2) the remaining on-peak load hours, and (3) off-peak hours.

- For the *Summer* season, four market conditions were considered, including (1) the top 1% of on-peak load hours, (2) the top 10% of on-peak load hours, (3) the remaining on-peak load hours, and (4) all off-peak hours.

Average load levels and prices for these periods are based on two years of

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30 https://www.entergynewsroom.com/news/entergy-texas-breaks-ground-on-orange-county-advanced-power-station/.

31 *See AEP Power Marketing*, 107 FERC ¶ 61,018 at App. F ("… analyze: Super-Peak, Peak, and Off-Peak, for winter, shoulder and summer periods, and an extreme Summer Peak, for a total of ten season/load levels").

historical data, from January 2023 through December 2024, the most recent calendar year data available for the destination markets and first-tier areas.[32] This period is the base period for data, and load levels, historical market prices, and fuel costs are calculated based on data during this period.[33]

Because merger analysis is forward looking,[34] it is necessary to convert the historical load, fuel cost, and electric market price data to the forward-looking study period. The historical load levels are "moved" from the base period to the future study period of December 2026 through November 2027 based on load forecasts in the 2025 FERC Form 714. Fuel costs are moved from the base period to the study period by adding changes in forward prices to the actual historical fuel costs. Electric power market prices are moved from the base period to the study period via a price simulation for the base period and the study period.[35] The changes in prices in the simulation are then added to the historical median prices during the base period. The simulation accounts for changes in load levels, the generation fleet, and fuel costs between the historical and the study period. As the Commission has requested, we also undertook sensitivity studies varying market prices +/- 10 percent.[36]

AEC is equivalent to EC analysis except that native load obligations are subtracted from each entity's EC. The Entergy Operating Companies operate as traditional vertically integrated utilities owning generation and transmission and retaining load-serving responsibility. Competitive retail access in MISO is only offered

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[32] *See* 18 C.F.R. § 33.3(d)(4)(ii) ("The applicant must provide supplier name and hourly native load commitments for the most recent two years."). All the load data are available for 2023 and 2024.

[33] *See* 18 C.F.R. § 33.3(d)(6) ("The applicant must provide, for each relevant product and destination market, market prices for the most recent two years. The applicant may provide suitable proxies for market prices if actual market prices are unavailable.").

[34] *See* Order No. 642 at 31,887 ("…the competitive analysis screen is intended to be a forward-looking measure.").

[35] *See* 18 C.F.R. § 33.3(b)(3) ("The applicant may use a computer model to complete one or more steps in the horizontal Competitive Analysis Screen.")

[36] *Id.* at § 33.3(d)(6) ("Applicants must demonstrate that the results of the analysis do not vary significantly in response to small variations in actual and/or estimated prices.").

in Illinois and for 10 percent of load in Michigan. All other areas in MISO, as well as all first-tier areas other than PJM, have traditional utilities with load-serving obligations. Entergy Louisiana and the other Entergy Operating Companies are traditional utilities that have load-serving obligations in the MISO BAA. This means that AEC is a more appropriate measure than EC to review competitive effects.[37] The AEC analysis assumes that native load obligations will be served with the Entergy Operating Companies' lowest cost generating units, effectively leaving the remaining generating units available to compete in wholesale energy markets.[38]

The primary source for generation data is the Velocity Suite Generation Unit Capacity database vended by Hitachi Energy, Inc. ("Hitachi").[39] Velocity Suite provides data by generation unit including capability, ownership, heat rates, fuel costs, emission rates, and generation availability. Unit capabilities are adjusted to account for seasonal maintenance and expected plant unavailability due to forced outages. We also accounted for the change in operational control of contracted units in the HHI calculations. Data on transmission rates and losses come from the utility tariffs.

We perform EC, AEC, share, and HHI calculations using Secretariat's Power Acquisition Screening System ("PASS"). The system consists of proprietary software developed at Secretariat to maintain the relevant data and perform calculations. It

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37 *See*, *e.g.*, *Market-Based Rates for Wholesale Sales of Electric Energy, Capacity and Ancillary Services by Public Utilities*, Order No. 697, 119 FERC ¶ 61,295, at P 112 (2007) ("… in markets where utilities retain significant native load obligations, an analysis of available economic capacity may more accurately assess an individual seller's competitiveness, as well as the overall competitiveness of a market, because available economic capacity recognizes the native load obligations of the sellers."); *Nevada Power Co.*, 113 FERC ¶ 61,265, at P 15 (2005) (finding that AEC is a more accurate measure for markets where utilities have significant native load obligations); *Kansas City Power & Light Co.*, 113 FERC ¶ 61,074, at PP 31, 35 (2005) ("[U]tilities with a native load obligation are obligated to secure and devote resources to serve that native load. Depending on load conditions, some or all of those resources are not available to the wholesale market and the available economic capacity measure accounts for that.").

38 *See Merger Policy Statement* at 31,132 ("The presumption underlying this measure is that the lowest running cost units are used to serve native load and other firm contractual obligations and would not be available for other sales.").

39 Velocity Suite contains may databases containing energy market data ranging from details on generation units to historical weather information.

consists of a Microsoft Access database to handle the data and a linear programming model to calculate EC and AEC, to allocate transmission, to calculate market shares, and to calculate concentration. Per directions from the Commission, all the input data, intermediate data, and results are provided in Excel (or CSV) spreadsheet format to assist in the review of the methodology and results.[40] Transmission to the destination market is allocated pro rata per the guidance given by the Commission in Order 697.[41] The mathematical details are presented in Exhibit JM-6.

## 6. Quantitative Results Indicate the Transaction Will Not Create or Enhance Market Power

In this section we will discuss the analytical results for the analyses described in Section 4.

### 6.1. DPT Results Indicate No Competitive Issues in MISO

Table 3 presents summary results for AEC for MISO. After the acquisition, in MISO, the market remains unconcentrated after Entergy Louisiana's acquisition of Cottonwood. All ten periods had changes in concentration measured by HHI of less than 30. The change in concentration is often less than 0 because the transaction results in a splitting of two entities with relatively equal shares. Thus, no further analysis is needed to conclude that the acquisition is unlikely to result in the Entergy Entities having market power for short-term products in the MISO market. The results for the price sensitivities are not materially different—the change in HHI is too small to yield any anticompetitive concerns in all time periods. The results of sensitivity tests around market prices in MISO are included in Exhibit JM-7.

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[40] *Merger Policy Statement* at 30,120 ("Applicants should file in electronic format the data specified as well as any other data used in their analysis.")

[41] Order No. 697 at P 374-375.

**Table 3 - Summary Results for AEC in MISO**

| Period | Price ($/MWh) | Market Size | EES Pre-Cap. (MW) | EES Pre-Share (%) | ATL Pre-Cap. (MW) | ATL Pre-Share (%) | EES Post Cap. (MW) | EES Post Share (%) | HHI Change | Post HHI |
|---|---|---|---|---|---|---|---|---|---|---|
| SF_T10 | 45.32 | 59,722 | 3,038 | 5.1 | 1,991 | 3.3 | 4,019 | 6.7 | 11 | 201 |
| SF_P | 34.06 | 49,259 | 3,114 | 6.3 | 1,991 | 4.0 | 4,095 | 8.3 | 17 | 251 |
| SF_OP | 30.52 | 48,430 | 3,134 | 6.5 | 1,991 | 4.1 | 4,115 | 8.5 | 18 | 303 |
| SUM_T1 | 121.66 | 58,912 | 3,185 | 5.4 | 2,721 | 4.6 | 3,184 | 5.5 | -7 | 168 |
| SUM_T10 | 59.62 | 57,489 | 3,185 | 5.5 | 2,721 | 4.7 | 3,184 | 5.6 | -7 | 183 |
| SUM_P | 41.06 | 53,208 | 3,184 | 6.0 | 2,107 | 4.0 | 3,916 | 7.4 | 9 | 224 |
| SUM_OP | 29.84 | 40,373 | 3,184 | 7.9 | 1,841 | 4.6 | 3,184 | 8.1 | -2 | 299 |
| WIN_T10 | 58.15 | 66,884 | 5,806 | 8.7 | 2,539 | 3.8 | 6,872 | 10.3 | 21 | 261 |
| WIN_P | 36.03 | 51,156 | 4,158 | 8.1 | 2,170 | 4.2 | 5,224 | 10.2 | 25 | 305 |
| WIN_OP | 33.73 | 50,100 | 3,238 | 6.5 | 2,170 | 4.3 | 4,305 | 8.6 | 18 | 305 |

Table 4 presents summary results for EC in MISO. In each period, the market remains unconcentrated, indicating a presumption of no anticompetitive impact. No further analysis is needed to conclude that the acquisition will not give the Entergy Entities market power for these products.

**Table 4 — Summary Results for EC in MISO**

| Period | Price ($/MWh) | Market Size | EES Pre-Cap. (MW) | EES Pre-Share (%) | ATL Pre-Cap. (MW) | ATL Pre-Share (%) | EES Post Cap. (MW) | EES Post Share (%) | HHI Change | Post HHI |
|---|---|---|---|---|---|---|---|---|---|---|
| SF_T10 | 45.32 | 131,240 | 22,569 | 17.2 | 1,991 | 1.5 | 23,550 | 17.9 | 25 | 520 |
| SF_P | 34.06 | 104,224 | 18,250 | 17.5 | 1,991 | 1.9 | 19,232 | 18.5 | 31 | 539 |
| SF_OP | 30.52 | 94,700 | 17,052 | 18.0 | 1,991 | 2.1 | 18,033 | 19.0 | 35 | 582 |
| SUM_T1 | 121.66 | 147,816 | 25,037 | 16.9 | 2,722 | 1.8 | 26,078 | 17.6 | 22 | 500 |
| SUM_T10 | 59.62 | 142,390 | 24,878 | 17.5 | 2,722 | 1.9 | 25,919 | 18.2 | 24 | 529 |
| SUM_P | 41.06 | 123,736 | 22,877 | 18.5 | 2,107 | 1.7 | 23,918 | 19.3 | 30 | 571 |
| SUM_OP | 29.84 | 89,986 | 18,105 | 20.1 | 1,841 | 2.0 | 19,146 | 21.3 | 45 | 672 |
| WIN_T10 | 58.15 | 140,553 | 24,297 | 17.3 | 2,539 | 1.8 | 25,363 | 18.0 | 25 | 521 |
| WIN_P | 36.03 | 110,302 | 18,976 | 17.2 | 2,170 | 2.0 | 20,042 | 18.2 | 31 | 534 |
| WIN_OP | 33.73 | 104,672 | 17,657 | 16.9 | 2,170 | 2.1 | 18,723 | 17.9 | 32 | 540 |

# 7. Historical Data Confirm that Market Concentration Is Low in MISO

Historical data verify the results of the DPT analysis presented here.[42] Exhibit JM-8 provides HHI calculations based on EQR data for the two year period between Q4 2023 and Q3 2025 for deliveries in MISO.[43] The sales concentration as measured by the HHI is less than 700 in MISO, with a change in HHI below 20 on both a revenue and quantity basis. The post-Transaction market share of the Entergy Entities is calculated using a conservative assumption that Entergy Louisiana will acquire all assets currently owned by the Pelican Entities in MISO. As a result, the calculated market concentration likely overstates the actual competitive impact of the Transaction.

Exhibit JM-9 provides an alternative historical HHI calculation based on EIA Form 923 data for 2023-2024,[44] which gives monthly output by generation plant, prime mover, and fuel type. These also show market concentration in MISO is at 548, and an HHI change of 30.

# 8. Other Competitive Issues

## 8.1. Capacity Market

### 8.1.1. Capacity Market in MISO

The transaction will have little effect on capacity markets because the proposed transaction will help Entergy Louisiana meet its capacity obligation. Accordingly, it is likely that but for the acquisition of the Cottonwood Project, Entergy Louisiana would

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42 18 C.F.R. §33.3(c)(6) ("The applicant must provide historical trade data and historical transmission data to corroborate the results of the horizontal Competitive Analysis Screen. The data must cover the two-year period preceding the filing of the application.").

43 *Id.*

44 Because the Form 923 data are by plant, we used the Velocity Suite, Unit Generation and Emissions – Monthly database.

seek to acquire other capacity via contract or other means.

Withholding the Cottonwood Project from capacity auctions would be against Entergy Louisiana's interests as a load-serving entity, as any perceived benefit received is offset by increased costs, as well as regulatory accounting to ratepayers.

### 8.2. Ancillary Services

Entergy Louisiana's acquisition of the Cottonwood Project is unlikely to generate negative impact on markets for ancillary services. Entergy Louisiana sold only $1.4 million worth of ancillary services in 2024 according to its FERC Form 1.

### 8.3. Vertical Issues

The Commission traditionally considers two vertical market power issues when reviewing electric power mergers and acquisitions. The first issue is whether the combination of generation and transmission ownership can lead to market foreclosure of competitors. This issue is not relevant since the Entergy Entities already own both generation and transmission and Entergy Louisiana will only acquire a generation facility in this Proposed Transaction. More importantly, the Entergy Transmission System is under the functional control of MISO and service over that system is available on an open access basis pursuant to MISO's tariff, which eliminates the potential for the Entergy Entities to use the Entergy Transmission System to thwart entry by rival generation companies.

The second issue is whether ownership or control of fuel supplies for generation, such as natural gas, can foreclose competitors. Again, this is not a concern in this Proposed Transaction because it involves the acquisition of a single generation unit and does not change the ownership or control of any of vital inputs to rival generation companies.

## 9. Conclusion

This report examines competition in the short-term markets in MISO. The results of the DPT reveal that the HHI changes arising from the Proposed Transaction would fall below the Commission's safe harbor screening thresholds for all periods. This was true for both economic capacity and available economic capacity in all price sensitivity cases. In addition, the Proposed Transaction will not adversely affect capacity markets because all of the HHI changes are below the Commission's HHI screening thresholds. Finally, the Proposed Transaction will not adversely affect the supply of ancillary services. Accordingly, the acquisition does not raise substantive market power concerns.

As a result, we recommend that the Commission conclude that the Proposed Transaction will not adversely affect competition in wholesale electric power markets.

Pursuant to 28 U.S.C. §1746, I state under penalty of perjury that the foregoing is true and correct to the best of my information, knowledge, and belief.

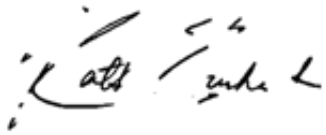
Executed on this 19th day of December 2025.



John R. Morris, Ph. D.
Managing Director
Secretariat Advisors LLC

Pursuant to 28 U.S.C. §1746, I state under penalty of perjury that the foregoing is true and correct to the best of my information, knowledge, and belief.

Executed on this 19th day of December 2025.



Keith Everhart
Associate Director
Secretariat Advisors LLC

Document Accession #: 20251222-5379 Filed Date: 12/22/2025



# EXPERIENCE AND QUALIFICATIONS OF
# Dr. John R. Morris

## *OVERVIEW*

Dr. Morris, a recognized expert in studying competition and price formation in energy industries, currently is a Managing Director at Secretariat Advisors LLC (formerly Economists Incorporated). He began his research of competition in energy industries in 1985 while working for the Federal Trade Commission. Since joining Economists Incorporated in 1992, he has consulted on many mergers and acquisitions involving energy companies, examined competitive issues relating to rates, and studied issues in state restructuring proceedings. He has published articles on competition and energy matters, and he has spoken on numerous occasions concerning competition in natural gas, electric power and other industries. He has been accepted as an expert witness on energy matters before the Federal Energy Regulatory Commission, state regulatory commissions, and in federal court.

## *EDUCATION*

Ph.D., University of Washington, August 1985 Dissertation: *Intellectual Property: Creating, Pricing, Copying* • M.A., University of Washington, December 1983 • A.B., Georgetown University, May 1981

## *PRESENT POSITION*

Dr. Morris is a *Managing Director* at Secretariat Advisors LLC, an economic consulting firm located at 2121 K Street, NW, Suite 1100, Washington, DC 20037. (202-223-4700) Secretariat Advisors studies competition and regulation in many industries in the United States and in other countries. It is a leading firm in studying the competitive effects of mergers and acquisitions, damages, construction costs, construction delay, and engineering sciences.

## *PREVIOUS EXPERIENCE*

*Principal*, Economists Incorporated, December 2002 – July 2021 • *Senior Vice President*, Economists Incorporated, December 2001 – December 2002 • *Vice President*, Economists Incorporated, December 1995 – December 2001 • *Senior Economist*, Economists Incorporated, June 1992 – December 1995 • *Economic Tutorial Leader*, Stanford University (Stanford in Washington), April 1993 – June 1995 • *Visiting Assistant Professor,* Department of Business Economics and Public Policy, School of Business, Indiana University, September 1991 – May 1992 • *Assistant to the Director for Antitrust,* Bureau of Economics, Federal Trade Commission, November 1989 – August 1991 • *Economic Advisor,* Office of Commissioner Machol, Federal Trade Commission, December 1988 – October 1989 • *Economist,* Division of Antitrust, Bureau of

Economics, Federal Trade Commission, October 1985 – December 1988

***MEMBERSHIPS***

Member, International Association of Energy Economics • Associate, Energy Bar Association • Member, American Economic Association • Associate, American Bar Association

***AWARDS & HONORS***

*Award for Excellence in Law Enforcement,* Federal Trade Commission, 1988 • Graduate School Scholarship, University of Washington, 1984 • Graduated Cum Laude Georgetown University, 1981 • Senior Comprehensive Passed with Distinction, Georgetown University, 1981

***TESTIMONY BEFORE THE FEDERAL ENERGY REGULATORY COMMISSION***

Prepared Answering Testimony and Deposition Affidavit, Public Utilities Commission of the State of California v. Sellers of Long-Term Contracts to the California Department of Water Resources, Docket Nos EL02-60-017 and EL02-60-18 (2025) •Milford Gen Lead, LLC, FERC Docket No. ER24-3102-000 (2024) • Prepared Direct Testimony, Algonquin Gas Transmission, LLC, Docket No. RP24-781 (2024) • Prepared Testimony, Louisiana Public Service Commission *et al.*, v. System Energy Resources, Inc., *et al.*, Docket No. EL21-56 (2024) • Affidavit, Elliott Associates, L.P., *et al.*, Docket No. EC23-112 (2023) • Affidavit, Tampa Electric Company, ER10-1437 (2023) • Affidavits (2), NextEra Energy Resources, LLC, *et al.*, Docket No. EC23-36-000 (2022, 2023) • Affidavits, Building for the Future Through Electric Regional Transmission Planning and Cost Allocation and Generator Interconnection, Docket No. RM21-17-000 (2022) • Affidavit, NRG Energy, Inc., Docket No. EC20-96-000 (2020) • Affidavit, Energy Texas, Inc., EC20-85-000 (2020) • Affidavit, Tampa Electric Company, ER10-1437-011 (2020) • Affidavits, American Transmission System, Inc., Docket No. ER20-1740-000 (2020) • Affidavits, NRG Wholesale Generation LP and Entergy Mississippi, LLC Docket No. EC19-63-000 (2019) • Affidavits, Louisville Gas and Electric Co. and Kentucky Utilities Co., Docket Nos. EC98-2-001, ER18-2162-000 (2018) • Affidavit, Upper Peninsula Power Company, Docket No. ER10-1901-011 (2018) • Affidavit, NRG Cottonwood Tenant LLC, ER18-1160-001 (2018) • Affidavit, PSEG Energy Resources & Trade LLC, ER10-1789-005 (2018) • Affidavit, Southern Indiana Gas and Electric Co. d/b/a Vectren Energy Delivery of Indiana, Inc., ER10-1338-002 (2017) • Affidavit, PSEG Keys Energy Center LLC, ER17-2426-000 (2017) • Affidavit, Tampa Electric Company, ER10-1437-006 (2017) • Prepared Answering Testimony, Deposition, and Hearing, People of the State of California, *ex rel*; Bill Lockyer, Attorney General of the State of California v. British Columbia Power Exchange, *et al.*, EL02-71-000 (2017) • Affidavit, Public Service Electric and Gas Company *et al.*, ER10-1789-004 (2016) • Affidavit, Alabama Power Company, *et al.*, ER17-514-00 (2016) • Affidavits (3), Alabama Power Company,

*et al*., EL15-39-000 (2016) • Affidavit, Combined Locks Energy Center, LLC, *et al*. , ER10-3042-004 (2015) • Affidavit, Alabama Power Company, *et al*., EL15-39-000 (2015) • Affidavit, PJM Interconnection, L.L.C., ER15-623-000 (2015) • Affidavit, Southern Indiana Gas and Electric Co. d/b/a Vectren Energy Delivery of Indiana, Inc., ER10-1338-000 (2014) • Affidavit, Quantum Choctaw Power, LLC *et al*., ER12-458-007 (2014) • Affidavit, NRG Power Marketing LLC, *et al.*, ER10-2265-004 *et al.* (2014) • Affidavit, TransCanada Entities, ER10-2870-004 *et al*. (2014) • Affidavit, Tampa Electric Company, ER10-1437-002 (2014) • Affidavit, Kendall Green Energy LLC, ER14-1363-003 (2014) • Affidavit, Quantum Lake Power, LP, ER13-1489-000 (2014) • Affidavit, NRG Power Marketing LLC, *et al.* ER10-2265-002 (2014) • Affidavit, NRG Yield, Inc., *et al*., EC14-101-000 (2014) • Affidavit, Community Wind Farm 1 et al., ER14-1668-000 (2014) • Seaway Crude Pipeline Company LLC, OR15-6-000 (2014) • Affidavit, Public Service Electric and Gas Company *et al.*, ER10-1789-003 (2013) • Affidavits, NRG Energy Holdings, Inc., Edison Mission Energy, EC14-14-000 (2013) • Affidavit, Silver Merger Sub, Inc., *et al.*, EC13-128-000 (2013) • Prepared Answering Testimony, Deposition, and Hearing, Puget Sound Energy, Inc., *et al.*, EL01-10-085 (2012) • Affidavit, Wisconsin Public Service Corporation, *et al*., ER10-1894-004 (2012) • Affidavit, PSEG New Haven LLC, ER12-1250-000 (2012) • Affidavit, Enterprise Product Partners L.P. and Enbridge, Inc., OR12-4-000 (2012) • Affidavit, Southern Indiana Gas and Electric Co., ER10-1338-001 (2011) • Affidavit, TransCanada Power Marketing Ltd. *et al.*, ER10-2780-001 (2011) • Affidavit, Tampa Electric Company, ER10-1476-001 (2011) • Affidavit, Cedar Creek Wind Energy, LLC, ER11-2577-000 (2010) • Affidavit, Public Service Electric and Gas Company *et al.*, ER97-837-014 (2010) • Affidavit, Morris Energy Group, LLC v. PSEG Energy Resources & Trade LLC; PSEG Fossil LLC; and PSEG Power LLC, EL10-79-000 (2010) • Affidavit, UGI Storage Company and UGI Central Penn Gas, Inc., CP10-23-000 (2010) • Prepared Answering Testimony, People of the State of California, *ex rel*; Bill Lockyer, Attorney General of the State of California v. Powerex Corp., *et al.*, EL02-71-000 (2009) • Affidavit, Integrys Energy Services, Inc. v. New Brunswick Power Generation Corporation, EL09-32-002 (2009) • Affidavit, People of the State of California, *ex rel*; Edmund G. Brown Jr. Attorney General of the State of California v. Powerex Corp., *et al.*, EL09-56-000 (2009) • Affidavit, San Diego Gas & Electric Company v. Sellers of Energy and Ancillary Services, EL00-95-000 (2009) • Affidavit, Troy Energy, LLC, *et al.*, ER02-25-010 (2009) • Affidavit, Combined Locks Energy Center, LLC, *et al.*, ER01-2659-015 (2009) • Prepared Direct Testimony and Deposition, Energy Transfer Partners, *et al*., IN06-3-003 (2009) • Prepared Direct Testimony and Hearing, Mobil Pipe Line Company, OR07-21-000 (2009) • Idaho Power Company, ER06-787-002 (2009) • Affidavit, Southern Indiana Gas and Electric Co. d/b/a Vectren Energy Delivery of Indiana, Inc. ER96-2734-007 (2008) • Affidavit, Choctaw Gas Generation, LLC, *et al.* ER08-1332-002 • Affidavit, TransCanada Energy Sales Ltd., ER09-328-001 (2008) • Prepared Direct Testimony and Deposition, Oasis Pipeline L.P., *et al.*, IN06-3-004

(2008) • Affidavit, Tampa Electric Company, ER99-2342-012 (2008) • Affidavit, ANP Bellingham Energy Company, LLC, *et al.*, ER00-2117-005 (2008) • Affidavit, SUEZ Energy Marketing, NA, *et al.*, ER06-169-003 (2008) • Affidavit, TransCanada Energy Marketing ULC, *et al.*, ER07-1274-001 (2008) • Affidavit, Georgia-Pacific Brewton LLC, *et al.*, ER08-1126-000 (2008) • Affidavit, Montgomery L'Energia Power Partners LP, ER08-864-000 (2008) • Affidavit (with Joseph P. Kalt), Energy Transfer Partners, *et al*., IN06-3-002 (2008) • Affidavit, Energy Transfer Partners, *et al*., IN06-3-002 (2008) • Affidavit, TransCanada Maine Wind Development Inc., ER08-685-000 (2008) • Affidavit, O'Connor & Hewitt, LTD, RP08-30-000 (2007) • Affidavit (with Joseph P. Kalt), Energy Transfer Partners, *et al*., IN06-3-000 (2007) • Affidavit, Energy Transfer Partners, *et al*., IN06-3-000 (2007) • Affidavit, The People of the State of Illinois, *ex rel.* Illinois Attorney General Lisa Madigan v. Exelon Generation Co., LLC, *et al.*, EL07-47-000 (2007) • Affidavit, Baltimore Gas and Electric Company, ER07-576-000 (2007) • Affidavit, Trans-Allegheny Interstate Line Company, ER07-562-000 (2007) • Affidavit, TransCanada Energy Marketing Ltd., *et al.*, ER07-331-000 (2006) • Affidavit, Tampa Electric Company, ER99-2342-000, ER07-173-000 (2006) • Affidavit, Koch Supply & Trading, LP, ER07-100-000 (2006) • WPS Resources Corporation and Peoples Energy Corporation, EC06-152-000 (2006) • Affidavit, Sabine Cogen, LP, ER06-744-000 (2006) • Affidavit, Air Liquide Large Industries U.S. LP, ER06-743-000 (2006) • Affidavit, ANP Bellingham Energy Company, LLC., *et al.*, ER00-2117-000 (2005) • Affidavit, Duke Energy Corporation and Cinergy Corp., EC05-103-000 (2005) • Affidavit, El Paso Marketing, L.P., *et al.*, ER95-428-000 (2005) • Affidavit, TransCanada Energy Ltd., *et al.*, ER95-692-000 (2005) • Affidavit, Granite Ridge Energy, LLC, ER00-1147-000, ER05-287-001 (2005) • Affidavit, TransCanada Power (Castleton) LLC, ER05-743-000 (2005) • Affidavit, Tampa Electric Company, *et al*., ER99-2342-003 (2005) • Affidavit, Wisconsin Public Service Corporation, WPS Energy Services, Inc., and WPS Power Development, Inc., ER96-1088-035 and Wisconsin Public Service Corporation, ER95-1528-010 (2005) • Affidavit, Wisconsin River Power Company, ER05-453-000 (2005) • Affidavit, Upper Peninsula Power Company, ER05-89-001 (2005) • Affidavit, Southern Indiana Gas and Electric Company, ER96-2734-003 (2004) • Affidavit, Tampa Electric Company, *et al*., ER99-2342-003 (2004) • Affidavits, TransCanada Hydro Northeast, Inc., *et al*., EC05-12-000, ER05-111-000 (2004) • Affidavits, Dominion Energy New England, Inc., *et al*., EC05-4-000, ER05-34-000 (2004) • Affidavit, Wisconsin Public Service Corporation, WPS Energy Services, Inc., and WPS Power Development, Inc., ER96-1088-033 and Wisconsin Public Service Corporation, ER95-1528-008 (2004) • Affidavit, NorthPoint Energy Solutions Inc. ER04-1244-000 (2004) • Affidavit, Union Power Partners, L.P., ER01-930-004 (2004) • Affidavit, Panda Gila River, L.P., ER01-931-004 (2004) • Affidavit, Dominion Energy Kewaunee, Inc., ER04-318-000 (2003) • Affidavit, TPS GP, Inc., TPG LP, Inc., Panda GS V, LLC & Panda GS VI, LLC, EC03-90-000 (2003) • Affidavit, Berkshire Power Company, L.L.C. *et al.*, ER99-3502-001 (2002) • Affidavit, El Paso Merchant Energy, L.P., ER95-428-024 (2002) • Affidavit,

Tampa Electric Company, ER99-2342-001 (2002) • Affidavit, Hardee Power Partners Limited, ER99-2341-001 (2002) • Affidavit, TECO-PANDA Generating Company, L.P., ER02-1000-000 (2002) • Affidavit, Commonwealth Chesapeake Company, LLC, ER99-415-004 (2002) • Affidavit, Wisconsin Public Service Corporation, WPS Energy Services, Inc., and WPS Power Development, Inc., ER96-1088-031 and Wisconsin Public Service Corporation, ER95-1528-006 (2001) • Affidavit, TPS McAdams, LLC and TPS Dell, LLC, ER02-507-000 and ER02-510-000 (2001) • Affidavits, Prepared Direct Testimony, and Hearing, CPUC v. El Paso Natural Gas Company, et al., RP00-241-000 (2000-2001), Affidavit, El Paso Energy Corporation and The Coastal Corporation, EC00-73-000, (2000) • Affidavit, El Paso Energy Corporation and Sonat Inc., EC99-73-000 (1999) • Prepared Testimony, San Diego Gas & Electric Company and Enova Energy, Inc., EC97-12-000 (1997) • Prepared Testimony and Hearing, Wisconsin Electric Power Co., Northern States Power Co. (Minnesota), Northern States Power Co. (Wisconsin), and Cenerprise, Inc., EC95-16-000 (1996)

***TESTIMONY BEFORE STATE REGULATORY COMMISSIONS***

Affidavit, Investigation of Resource Adequacy Alternatives, New Jersey Board of Public Utilities Docket No. EO20030203 (2020) • Prepared Answering Testimony, Supplemental Testimony, and Cross-Examination, In the Matter of Eligibility Criteria for Energy Service Companies, Case 15-M-0127, New York Public Service Commission (2017) • Prepared Direct Testimony, In re: Petition for Determination of Cost Effective Generation Alternative to Meet Need Prior to 2018, by Duke Energy Florida, Inc., FPSC Docket No. 140111-EI (2014) • Affidavit and Prepared Testimony, In The Matter of the Petition of Public Service Electric and Gas Company for Approval of an Increase in Electric and Gas Rates and for Changes in the Tariffs for Electric and Gas Service, B.P.U.N.J. No. 14 Electric and B.P.U.N.J. No. 14 Gas Pursuant to N.J.S.A. 48:2-21 and N.J.S.A. 48:2-21.1 and for Approval of a Gas Weather Normalization Clause; A Pension Expense Tracker; and for Other Appropriate Relief, BPU Docket No. GR09050422, New Jersey Board of Public Utilities (2010) • Prepared Direct Testimony, Application of Wisconsin Power and Light Company for Issuance of a Certificate of Public Convenience and Necessity for Construction and Placement in Operation of an Approximately 300 MW Coal-Fired Baseload Facility and an Application for Approval of Fixed Financial Parameters and Capital Cost Rate-Making Principles for the Baseload Facility, Docket No. 6680-CE-170, Public Service Commission of Wisconsin (2008) • Prepared Rebuttal Testimony and Hearing, In the Matter of the Joint Petition of Public Service Electric and Gas Company and Exelon Corporation for Approval of a Change in Control of Public Service Electric and Gas Company, and Related Authorizations, BPU Docket No. EM05020106, OAL Docket No. PUC-01874-05, New Jersey Board of Public Utilities (2005, 2006) • Affidavit, Application of Duke Energy Corporation for Authorization to Enter Into a Business Combination Transaction with Cinergy Corp., Docket No. 2005-210-E, Public Service Commission Of South Carolina (2005) •

Prepared Rebuttal Testimony and Hearing, Joint Application of PECO Energy Company and Public Service Electric and Gas Company for Approval of the Merger of Public Service Enterprise Group Incorporated with and into Exelon Corporation, Docket No. A-110550F0160, Pennsylvania Public Utility Commission (2005) • Prepared Direct Testimony and Hearing, Application of Washington Gas Light Company for amendments to Rate Schedule No. 9, Firm Delivery Gas Supplier Agreement of its Gas Tariff, Docket No. PUE-2004-00085 (2005) • Prepared Direct Testimony, Application of Wisconsin Public Service Corporation for a Certificate of Public Convenience and Necessity for Construction of A Large Electric Generating Plant with Associated Facilities, known as Weston 4, at Its Existing Weston Generating Station Located in Marathon County, Docket No. 6690-CE-187, Public Service Commission of Wisconsin (2004) • Prepared Direct Testimony, Metromedia Energy, Inc. - Regarding Washington Gas Light Company's Plan to Return Customers to Sales Service Effective December 1, 2003, Docket No. PUE-2003-00536 (2004) • Report (with Mark Frankena) and Testimony, Analysis of Competitive Implications: An investigations into whether electric industry restructuring and competition in the provision of retail electric service is in the public interest, Louisiana Public Service Commission Docket No. U-21453, U-20925 (SC), U-22092 (SC) (Subdocket A) (2000) • Report and Hearing, Atlantic City Electric Company: Audit of Restructuring, New Jersey Board of Public Utilities, Docket No. EA97060395 (1998) • Prepared Testimony and Hearing, Proceeding on Motion of the Commission to Redesign Niagara Mohawk Power Corporation’s Current SC-7 Service Classification and Implement a New SC-7-A Service Classification, Case 94-E-0172, New York Public Service Commission (1995)

***TESTIMONY BEFORE FEDERAL COURTS***

Report, Deposition and Bench Trial, Entergy Arkansas, LLC, vs. Ted J. Thomas, in his official capacity as Chairman of the Arkansas Public Service Commission et al., Civil Action No. 4:20-cv-01088-KGB, U.S. Dist. Court, Dist. of Eastern Arkansas (2022, 2023) • Reports and Deposition, Duke Energy Carolinas, LLC, vs. NTE Carolinas II, LLC, NTE Carolinas II Holdings, LLC, NTE Energy LLC, NTE Southeast Electric Company, LLC, NTE Energy Services Co., LLC, and Castillo Investment Holdings II, LLC, vs. Duke Energy Progress, LLC and Duke Energy Corporation, Civil Action No. 3:19-cv-515, U.S. Dist. Court, (2022) • Report, Deposition, and Bench Trial, FTC v. Arch Coal, Inc., et al., Civil Action 04-0534 (JDB), U.S. Dist. Court, Dist. of Western North Carolina (2004) • Report, Deposition and Jury Trial, Trigen v. OG&E, CIV-96-1595L, U.S. Dist. Court, Western Dist. of Oklahoma (1998)

***TESTIMONY BEFORE STATE COURTS***

Report and Deposition, CPS Energy v. Houston Pipe Line Company, LP and Oasis Pipeline, LP, Cause No. 2021-CI- 05138, District Court of Bexar County, Texas, 407th Judicial District (2023-4) • Affidavit, Retail Energy Supply Association, *et al.* v. Public

Service Commission of the State of New York, *et al.*, Index No. 870-16, State of New York, Supreme Court, County of Albany (2016) • Affidavit, City Public Service Board of San Antonio vs. Public Utility Commission of Texas, et al., No. 97-02917, District Court of Travis County, Texas, 200th Judicial District (1997)

## *OTHER TESTIMONY*

Report, Metromedia Energy, Inc. v. Mirant Americas Energy Marketing, RE: 18 198 Y 18484 03 (2005) • Report and Deposition, King Provision Corporation v. Burger King Corporation and Grand Metropolitan PLC, 90-05718-CA, 4th Cir., Duval Co., Florida (1992) • Deposition, West Texas Transmission L.P. v. Enron Corp. et al., SA 88 CA 0638, W.D. Texas, San Antonio Division (1988)

## *PUBLICATIONS*

"Alternative Measures of 'Representative Market Prices' for FERC Delivered Price Tests," *Energy Law Journal* 42 (2021): 191-235 • "Should market power still be a concern in the U.S. electric power industry?" with Jéssica Dutra and Tristan SnowCobb, *Electricity Journal* 33 (May 2020): 106725-28 • "Geographic Market Delineation in LMP Electric Power Markets," with Megan Accordino, *Electricity Journal* 23(3) (April 2010): 49-60 • "The Likely Effect of the Proposed Exelon-PSEG Merger on Wholesale Electricity Prices," with Dan Oska, *Electricity Journal* 21(1) (Jan./Feb. 2008): 45-54 • "FERC MBR Screens: The Good, the Bad, and the Ugly," *Public Utilities Fortnightly* 143(7) (July 2005): 37-42 • "Finding Market Power in Power Markets," *International Journal of the Economics of Business*, 7(2) (July 2000): 167-178 • "Why Applicants Should Use Computer Simulation Models to Comply with the FERC's New Merger Policy," with Mark Frankena, *Public Utilities Fortnightly*, 135(3) (February 1, 1997): 22-26 • *Electric Utility Mergers,* with Mark Frankena and Bruce Owen, Chapters 1, 4, & 5, 1994 • "International Trade and Antitrust: Comments," *University of Cincinnati Law Review*, 61(3) (1993): 945-953 • "Upstream Vertical Integration with Automatic Price Adjustments," *Journal of Regulatory Economics* 4 (1992): 279-287 • "Should the U.S. Department of Justice deviate from the 5% price test for market definition on a case-by-case basis?" with Gale Mosteller, *International Merger Law*, April 1992 • "Defining Markets for Merger Analysis," with Gale Mosteller, *Antitrust Bulletin* 36 (Fall 1991): 599-640 • "Analyzing Agreements Among Competitors: What Does the Future Hold?" with Jim Langenfeld, *Antitrust Bulletin* 36 (Fall 1991): 651-679 • "In Defense of Antitrust," with Jim Langenfeld, *Regulation* 14(2) (Spring 1991): (Letters) 2-4 • "Enforcement of Property Rights and the Provision of Public Good Attributes," *Information Economics and Policy* 3 (1988): 91-108

## *WORKING PAPERS*

"Advertising Restrictions as Rent Increasing Costs," FTC Bureau of Economics Working Paper No. 196, May 1992 • "Rent Increasing Costs: The Antitrust Implications from a

Paradox in Value Theory," FTC Bureau of Economics Working Paper No. 182, November 1990 • "The Relationship Between Industrial Sales Prices and Concentration of Natural Gas Pipelines," FTC Bureau of Economics Working Paper No. 168, November 1988 • "Deregulation by Vertical Integration?" FTC Bureau of Economics Working Paper No. 166, November 1988

***PRESENTATIONS & PROFESSIONAL ACTIVITIES***

"Finding 'representative market prices' for calculating concentration in electric power markets," presentation to staff of the Federal Energy Regulatory Commission, March 4, 2020 • Comments to the Antitrust Division of the U.S. Department of Justice and the Federal Trade Commission Concerning U.S. Department of Justice and the Federal Trade Commission Draft Vertical Merger Guidelines Released for Public Comment on January 10, 2020, Feb. 25, 2020 (with Lona Fowdur) • Comments (with 7 others), Notice of Inquiry: Modifications to Commission Requirements for Review of Transactions under Section 203 of the Federal Power Act and Market-Based Rate Applications under Section 205 of the Federal Power Act, Docket No. RM16-21-000, Federal Energy Regulatory Commission, November 28, 2016 • Report, PJM Interconnection, L.L.C., Docket No. ER15-623-000, Federal Energy Regulatory Commission, January 20, 2015 • Comments, Notice of Inquiry: Analysis of Horizontal Market Power under the Federal Power Act, Docket No. RM11-14-000, Federal Energy Regulatory Commission, May 23, 2011 • Comments, Position Limits for Derivatives, RIN 3038–AD15 and 3038–AD16, Commodity Futures Trading Commission, March 28, 2011 • Comments, Guidance on Simultaneous Transmission Import Limit Studies, AD10-2-000, Federal Energy Regulatory Commission, February 12, 2010 • "Geographic Market Delineation in LMP Electric Power Markets," presentation before representatives of the Federal Energy Regulatory Commission, U.S. Department of Justice, and U.S. Federal Trade Commission, January 27, 2010 • Comments, Notices of Intent to determine that 15 natural gas financial basis contracts traded on the Intercontinental Exchange, Inc. are Significant Price Discovery Contracts, Commodity Futures Trading Commission, October 26, 2009 • "Efficacy of Vertical Integration in Energy Industries with Applications to Proposed Standards of Conduct for Transmission Providers," submitted to FERC by Santee Cooper in Docket No. RM07-1-000 (2007) • Chair, Antitrust Committee, Energy Bar Association, 2004–2005 • "Competition in the Natural Gas Industry: An Antitrust Perspective, presentation to staff of the Federal Energy Regulatory Commission," March 28, 2005 • Vice Chair, Antitrust Committee, Energy Bar Association, 2003–2004 • "Weston 4 Effect on Wholesale Competition in WUMS," submitted to the Public Service Commission of Wisconsin by Wisconsin Public Service Corporation in Docket No. 6690-CE-187, September 26, 2003 • "Computer Models In The Electric Power Industry," presented to staff of the Federal Trade Commission, Washington, DC, June 11, 2002 • "TECO EnergySource Market Share Analysis," submitted to FERC by TECO EnergySource, Inc. in Docket No. ER96-1563-017,

September 10, 2001 • "Finding Market Power in Power Markets," presented to staff of the Federal Trade Commission, Washington, DC, June 20, 2001 • "A Study of Marketing Affiliate and Other Affiliate Holdings of Firm Capacity on Interstate Natural Gas Pipelines and the Effects on Natural Gas Markets," April 30, 2001, submitted to FERC by the Interstate Natural Gas Association of America in Docket No. PL00-1-003 • "Why We Should Use Computer Models to Unveil Market Power," presented at the Sixth DOE–NARUC National Electricity Forum, Brown Convention Center, Houston, TX, September 16, 1998 • Comments, *Agency Information Collection and Dissemination Activities: Comment Request*, U.S. Department of Energy, Energy Information Administration, August 28, 1998 • Comments, *Revised filing Requirements Under Part 33 of the Commission's Regulations*, Federal Energy Regulatory Commission Docket No. RM98-4-000, August 21, 1998 • "Use of Computer Simulation Models to Unveil Market Power," presented to staff of the Federal Trade Commission, Federal Energy Regulatory Commission and U.S. Department of Justice, Federal Trade Commission, Washington, DC, April 10, 1998 • "Use of Computer Simulation Models to Unveil Market Power: The Primergy Case," presented to the Bureau of Economics, Federal Trade Commission, Washington, DC , December 8, 1997 • "Use of Computer Simulation Models to Unveil Market Power," presented at the 29th Annual Conference of the Institute of Public Utilities, Williamsburg, Virginia, December 3, 1997 • **"**Mergers and Market Power," presented at the National Association of State Utility Consumer Advocates Mid-Year Meeting, Charleston, South Carolina, June 9, 1997 • "Market Power Analysis: An Economic Perspective," (with Mark Frankena), presented at the Strategic Research Institute Conference on The Legal Challenges of Restructuring, Arlington, Virginia, April 16, 1997 • "Mergers and Market Power," presented at the Edison Electric Institute Workshop on FERC Merger Policy Guidelines, Arlington, Virginia, April 1, 1997 • "New Approaches to Controlling Distribution Company Market Power," presented at the New York Energy Efficiency Council Conference on Innovative Solutions to a Changing Energy Market, New York Athletic Club, February 7, 1997 • Description of the Western Power Model, with Mark Frankena, Exhibit 8 to Prepared Testimony Before the Nevada Public Service Commission, January 31, 1997 • Reviewer, American Bar Association, Section of Antitrust Law, *Manual on the Economics of Antitrust Law, 14th Supplement*, 1995 • Referee, *Quarterly Journal of Business and Economics*, 1994—1995 • Reviewer, American Bar Association, Section of Antitrust Law, *Manual on the Economics of Antitrust Law, 10th Supplement*, 1993 • Expert Witness, Federal American Inn of Court, Washington, DC, Winter 1993 • "Advertising Restrictions as Rent Increasing Costs," presented at a *Contemporary Policy Issues* Session of the Western Economics Association's 67th Annual Conference, July 1992 • "Let's Make Merger Policy 'Fully Consonant With Economic Theory,'" presented at a *Contemporary Policy Issues* Session of the Western Economics Association's 67th Annual Conference, July 1992 • "Advertising Restrictions as Rent Increasing Costs," Seminar, Department of Business Economics, Indiana University, October 1991 •

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"International Trade and Antitrust: Comments," presented at a *Contemporary Policy Issues* Session of the Western Economics Association's 66th Annual Conference, July 1991 • Discussant, Western Economics Association's 66th Annual Conference, July 1991 • Horizontal Restraints Cases at the Federal Trade Commission: From *American Medical Association* through the Present," with Jim Langenfeld, presented at the 60th Annual Conference of the Southern Economics Association, November 1990 • "Defining Markets for Merger Analysis," with Gale Mosteller, presented at a *Contemporary Policy Issues* Session of the Western Economics Association's 65th Annual Conference, cosponsored by the *Antitrust Bulletin* and the Antitrust and Trade Regulation Section of the Federal Bar Association, July 1990 • "Analyzing Agreements Among Competitors: What Does the Future Hold?" with Jim Langenfeld, presented at a *Contemporary Policy Issues* Session of the Western Economics Association's 65th Annual Conference, cosponsored by the *Antitrust Bulletin* and the Antitrust and Trade Regulation Section of the Federal Bar Association, July 1990 • "The Relationship Between Industrial Sales Prices and Concentration of Natural Gas Pipelines," Seminar, Office of Economic Policy, Federal Energy Regulatory Commission, Summer 1989 • "The Relationship Between Industrial Sales Prices and Concentration of Natural Gas Pipelines," Seminar, Economic Analysis Group, Antitrust Division, U.S. Department of Justice, February 1989 • "Deregulation by Vertical Integration?" Seminar, Department of Business Economics, Indiana University, January 1989 • Discussant, Industrial Organization Society Session, Annual Meeting of the American Economics Association, December 1988 • "Concentration and Price in the Natural Gas Industry," Seminar, Federal Trade Commission, July 1988 • "Relevant Measures of Concentration for Antitrust Policy," presented at an Industrial Organization Society Session of the 57th Annual Conference of the Southern Economics Association, November 1987

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**EXPERIENCE AND QUALIFICATIONS OF**

## Mr. Keith Everhart

OVERVIEW

Keith Everhart analyzes competition and regulation in the electric power and natural gas industries, including mergers and acquisitions, investigations into market power abuse and market manipulation, and energy policy analysis on behalf of clients with matters before the Federal Energy Regulatory Commission (FERC), the US Department of Justice Antitrust Division, the Commodity Futures Trading Commission (CFTC), and various state and local regulators.

Keith previously led investigations of market power abuse and manipulation on behalf of the FERC's Office of Enforcement, uncovering attempts to influence market settlement prices through uneconomic trading and instances of improper use of transmission service under Open Access Transmission and Energy Markets Tariffs (OATT).

Keith has also served as an official at the International Energy Agency in Paris, where he led the Agency's electricity security program.

EDUCATION

M.S. (with distinction), Florida State University, December 2005 • B.A., Georgetown University, May 2000

PRESENT POSITION

Mr. Everhart is an Associate Director at Secretariat, an economic consulting firm located at 2121 K Street, NW, Suite 1100, Washington, DC 20037. (202-223-4700)

PREVIOUS EXPERIENCE

• Energy Analyst – Electricity, International Energy Agency, July 2019 - July 2024 • Energy Economist, Economists Incorporated, May 2011 – July 2019 • Economist, Federal Energy Regulatory Commission, September 2006 – May 2011 • Research Assistant, Institute of International Finance, September 2000 –

August 2004

PUBLISHED WORKS

• "Managing the Seasonal Variability of Electricity Supply and Demand," *International Energy Agency* (2024) • "Managing Seasonal and Interannual Variability of Renewables," *International Energy Agency* (2023) • "The Role of Low-Carbon Fuels in Clean Energy Transitions in the Power Sector," *International Energy Agency* (2022) • "Nuclear Power and Secure Energy Transitions," *International Energy Agency* (2022) • "Steering Electricity Markets Toward a Rapid Decarbonization," *International Energy Agency* (2022) • "Secure Energy Transitions in the Power Sector," *International Energy Agency* (2020)

**Entergy Entities Generation in MISO and First-Tier Areas**

| Plant Name | Unit | Capacity (MW) Summer | Capacity (MW) Winter | Ownership Share (%) | Imputed Capacity (MW) Summer | Imputed Capacity (MW) Winter |
|---|---|---|---|---|---|---|
| **MISO, Entergy Operating Companies** | | | | | | |
| Acadia Power Station | CC2 | 533.0 | 561.9 | 100.0 | 533.0 | 561.9 |
| Arkansas Nuclear One | 1 | 833.3 | 855.0 | 100.0 | 833.3 | 855.0 |
| Arkansas Nuclear One | 2 | 985.8 | 1,006.0 | 100.0 | 985.8 | 1,006.0 |
| Attala Energy | CC | 455.0 | 492.0 | 100.0 | 455.0 | 492.0 |
| Big Cajun 2 | ST3 | 551.3 | 563.0 | 42.0 | 231.5 | 236.5 |
| Calcasieu Power LLC | GT1 | 141.7 | 171.6 | 100.0 | 141.7 | 171.6 |
| Calcasieu Power LLC | GT2 | 159.2 | 164.0 | 100.0 | 159.2 | 164.0 |
| Carpenter (AR) | 1 | 30.5 | 30.5 | 100.0 | 30.5 | 30.5 |
| Carpenter (AR) | 2 | 30.4 | 30.4 | 100.0 | 30.4 | 30.4 |
| Choctaw Generating Station | CC1 | 766.0 | 800.0 | 100.0 | 766.0 | 800.0 |
| Driver Solar | PV1 | 250.0 | 250.0 | 100.0 | 250.0 | 250.0 |
| Gerald Andrus | 1 | 706.5 | 731.7 | 100.0 | 706.5 | 731.7 |
| Grand Gulf Nuclear Station | 1 | 1,390.3 | 1,404.7 | 90.0 | 1,251.3 | 1,264.2 |
| Hardin | 1 | 71.7 | 86.3 | 100.0 | 71.7 | 86.3 |
| Hardin | 2 | 70.5 | 84.8 | 100.0 | 70.5 | 84.8 |
| Hinds Energy Facility | CC | 450.0 | 512.0 | 100.0 | 450.0 | 512.0 |
| Hinds Energy Facility | HO4 | 27.4 | 33.4 | 100.0 | 27.4 | 33.4 |
| Hot Spring | CC1 | 605.3 | 610.0 | 100.0 | 605.3 | 610.0 |
| Independence (AR) | 1 | 820.0 | 836.0 | 56.5 | 463.3 | 472.3 |
| Independence (AR) | 2 | 842.0 | 842.0 | 25.0 | 210.5 | 210.5 |
| Lake Catherine | 4 | 522.0 | 522.0 | 100.0 | 522.0 | 522.0 |
| Lake Charles Power Station | CC1 | 979.0 | 1,072.3 | 100.0 | 979.0 | 1,072.3 |
| Lewis Creek | 1 | 250.0 | 254.3 | 100.0 | 250.0 | 254.3 |
| Lewis Creek | 2 | 249.7 | 252.1 | 100.0 | 249.7 | 252.1 |
| Little Gypsy | 2 | 412.0 | 420.0 | 100.0 | 412.0 | 420.0 |
| Little Gypsy | 3 | 496.1 | 509.0 | 100.0 | 496.1 | 509.0 |
| J. Wayne Leonard Power Station | CC1 | 1,000.0 | 1,000.0 | 100.0 | 1,000.0 | 1,000.0 |
| Montgomery County Power Station | CC1 | 958.5 | 1,040.3 | 100.0 | 958.5 | 1,040.3 |
| New Orleans Power Station | ST1 | 129.7 | 129.7 | 100.0 | 129.7 | 129.7 |
| Nine Mile Point LA | 4 | 721.5 | 731.0 | 100.0 | 721.5 | 731.0 |
| Nine Mile Point LA | 5 | 731.9 | 758.5 | 100.0 | 731.9 | 758.5 |
| Nine Mile Point LA | 6 | 580.0 | 610.8 | 100.0 | 580.0 | 610.8 |
| Ouachita Power LLC | CC1 | 241.7 | 262.5 | 100.0 | 241.7 | 262.5 |
| Ouachita Power LLC | CC2 | 244.3 | 263.9 | 100.0 | 244.3 | 263.9 |
| Ouachita Power LLC | CC3 | 240.8 | 260.5 | 100.0 | 240.8 | 260.5 |
| Perryville Power Station | CC | 535.0 | 562.0 | 100.0 | 535.0 | 562.0 |
| Perryville Power Station | GT1 | 148.5 | 183.4 | 100.0 | 148.5 | 183.4 |
| Remmel | 1 | 3.9 | 3.9 | 100.0 | 3.9 | 3.9 |

| Plant Name | Unit | Capacity (MW) Summer | Capacity (MW) Winter | Ownership Share (%) | Imputed Capacity (MW) Summer | Imputed Capacity (MW) Winter |
|---|---|---|---|---|---|---|
| Remmel | 2 | 3.7 | 3.7 | 100.0 | 3.7 | 3.7 |
| Remmel | 3 | 3.9 | 3.9 | 100.0 | 3.9 | 3.9 |
| River Bend | NB1 | 969.0 | 976.0 | 100.0 | 969.0 | 976.0 |
| Roy S Nelson | 6 | 513.5 | 531.9 | 70.0 | 359.5 | 372.3 |
| Sabine* | 1 | 202.5 | 203.3 | 100.0 | 202.5 | 203.3 |
| Sabine* | 3 | 369.3 | 378.3 | 100.0 | 369.3 | 378.3 |
| Sabine* | 4 | 490.1 | 492.7 | 100.0 | 490.1 | 492.7 |
| Sabine | 5 | 431.6 | 436.3 | 100.0 | 431.6 | 436.3 |
| Searcy Solar | PV1 | 100.0 | 100.0 | 100.0 | 100.0 | 100.0 |
| Segno Solar | PV1 | 170.0 | 170.0 | 100.0 | 170.0 | 170.0 |
| Sterlington Solar | PV1 | 49.5 | 49.5 | 100.0 | 49.5 | 49.5 |
| Sunflower Solar | PV1 | 100.0 | 100.0 | 100.0 | 100.0 | 100.0 |
| Union Power | CC1 | 505.0 | 536.0 | 100.0 | 505.0 | 536.0 |
| Union Power | CC2 | 505.0 | 536.0 | 100.0 | 505.0 | 536.0 |
| Union Power | CC3 | 505.0 | 536.0 | 100.0 | 505.0 | 536.0 |
| Union Power | CC4 | 505.0 | 536.0 | 100.0 | 505.0 | 536.0 |
| Walnut Bend Solar | PV1 | 100.0 | 100.0 | 100.0 | 100.0 | 100.0 |
| Washington Parish Energy Center | GT1 | 183.1 | 206.9 | 100.0 | 183.1 | 206.9 |
| Washington Parish Energy Center | GT2 | 183.8 | 207.8 | 100.0 | 183.8 | 207.8 |
| Waterford (LA) | 2 | 416.8 | 417.0 | 100.0 | 416.8 | 417.0 |
| Waterford (LA) | 4 | 32.1 | 35.7 | 100.0 | 32.1 | 35.7 |
| Waterford 3 | 3 | 1,163.8 | 1,178.0 | 100.0 | 1,163.8 | 1,178.0 |
| West Memphis Solar | PV1 | 180.0 | 180.0 | 100.0 | 180.0 | 180.0 |
| White Bluff | 1 | 242.5 | 425.4 | 57.0 | 138.2 | 242.5 |
| White Bluff | 2 | 466.4 | 831.9 | 100.0 | 466.4 | 831.9 |
| **MISO, Entergy Merchants** | | | | | | |
| Independence (AR) | 2 | 841.8 | 842.0 | 14.4 | 121.2 | 121.2 |
| Roy S Nelson | 6 | 549.9 | 550.0 | 10.9 | 59.9 | 60.0 |
| Stuttgart Solar | PV1 | 81.0 | 81.0 | 100.0 | 81.0 | 81.0 |
| **MISO Contracts** | | | | | | |
| Agrilectric Power Partners Ltd | GEN1 | | | | 8.5 | 8.5 |
| Bayou Galion Solar | PV1 | | | | 100.0 | 100.0 |
| Carville Energy LLC | CC1 | | | | 486.6 | 486.6 |
| Capital Region Solar | PV1 | | | | 34.0 | 1.5 |
| Chicot Solar Project | PV1 | | | | 71.1 | 60.4 |
| Cooperative Energy | | | | | 350.0 | 350.0 |
| Delta Solar | PV1 | | | | 80.0 | 80.0 |
| Elizabeth Solar | PV1 | | | | 62.5 | 6.3 |
| Flat Fork Solar | PV1 | | | | 200.0 | 200.0 |
| Forgeview Solar | PV1 | | | | 200.0 | 200.0 |

| Plant Name | Unit | Capacity (MW) Summer | Capacity (MW) Winter | Ownership Share (%) | Imputed Capacity (MW) Summer | Imputed Capacity (MW) Winter |
|---|---|---|---|---|---|---|
| Frontier | | | | | 300.0 | 326.3 |
| Iris Solar LLC | PV1 | | | | 50.1 | 50.0 |
| Magnolia Power Generating Station | GT1 | | | | 290.0 | 307.7 |
| Mondu Solar | PV1 | | | | 100.0 | 100.0 |
| Nimbus Wind | | | | | 180.0 | 180.0 |
| Orange County Advanced Power Station | | | | | 1,158.0 | 1,228.6 |
| Rain CII Sulphur Cogen | ST1 | | | | 13.2 | 18.8 |
| Sunlight Road Solar | PV1 | | | | 25.0 | 2.5 |
| St James Solar (LA) | PV1 | | | | 20.1 | 20.0 |
| Stuttgart | PV1 | | | | 81.0 | 81.0 |
| Taft Cogeneration Facility | CC1 | | | | 480.0 | 500.0 |
| Umbriel Solar | PV1 | | | | 103.3 | 5.0 |
| Vidalia | | | | | 127.8 | 117.0 |
| Wildwood Solar | PV1 | | | | 100.0 | 100.0 |
| **Total MISO Capacity** | | | | | **29,734.2** | **31,061.5** |

**Notes:**

* Sabine 1,3 and 4 Retiring 5/31/2026

Generation ratings based on Hitachi Velocity Suite database.

**Pelican Entities Generation in MISO and First-Tier Areas**

| BAA | Plant Name | Capacity (MW) Summer | Capacity (MW) Winter | Ownership Share | Imputed Capacity (MW) Summer | Imputed Capacity (MW) Winter |
|---|---|---|---|---|---|---|
| **Owned Generation** | | | | | | |
| MISO | Bayou Cove Peaking Power | 295.0 | 320.0 | 100.0% | 295.0 | 320.0 |
| MISO | Big Cajun 1 Peakers | 193.0 | 220.0 | 100.0% | 193.0 | 220.0 |
| MISO | Big Cajun 1 | 220.0 | 220.0 | 100.0% | 220.0 | 220.0 |
| MISO | Big Cajun 2, Units 1+2 | 1,070.0 | 1,090.0 | 100.0% | 1,070.0 | 1,090.0 |
| MISO | Big Cajun 2, Unit 3 | 540.0 | 550.0 | 58.0% | 313.2 | 319.0 |
| MISO | Cottonwood Energy Project | 1,145.0 | 1,195.0 | 100.0% | 1,145.0 | 1,195.0 |
| MISO | Frontier | 880.0 | 940.0 | 100.0% | 880.0 | 940.0 |
| **Total Owned, MISO** | | 4,343.0 | 4,535.0 | | 4,116.2 | 4,304.0 |
| **Contracts** | | | | | | |
| MISO | Frontier | | | | (300.0) | (326.3) |
| **Net Generation, MISO** | | | | | 3,816 | 3,978 |

Generation ratings based on Hitachi Velocity Suite database.

Entergy Entities Sales



| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| AR Searcy Project Co LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -8242 | 36 | -293705 |
| AR Searcy Project Co LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 212735 | 25 | 5382021 |
| AR Searcy Project Co LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 218 | 8 | 1809 |
| AR Searcy Project Co LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -19042 | 35 | -662563 |
| AR Searcy Project Co LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 228381 | 30 | 6843868 |
| AR Searcy Project Co LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 92 | 5 | 461 |
| EAM Nelson Holding LLC | 2024 | Midcontinent I | EWO Marketing LP | Capacity | $/MW-MO | Unit Power Sale | Long Term | 720 | 7335 | 5281157 |
| EAM Nelson Holding LLC | 2024 | Midcontinent I | EWO Marketing LP | Energy | $/MWH | Unit Power Sale | Long Term | 158808 | 48 | 7618828 |
| EAM Nelson Holding LLC | 2023 | Midcontinent I | EWO Marketing LP | Capacity | $/MW-MO | Unit Power Sale | Long Term | 720 | 7335 | 5281157 |
| EAM Nelson Holding LLC | 2023 | Midcontinent I | EWO Marketing LP | Energy | $/MWH | Unit Power Sale | Long Term | 166176 | 42 | 6930866 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Associated Electric Coop Inc | Capacity | $/KW | Firm | Long Term | 1 | 5 | 3 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Associated Electric Coop Inc | Energy | $/KWH | Firm | Long Term | 159 | 0 | 6 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Associated Electric Coop Inc | Capacity | $/KW | Firm | Long Term | 1 | 5 | 4 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Associated Electric Coop Inc | Energy | $/KWH | Firm | Long Term | 181 | 0 | 7 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Entergy Louisiana Inc | Capacity | $/MW-MO | Unit Power Sale | Long Term | 1342 | 24054 | 32276490 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Entergy Louisiana Inc | Energy | $/MWH | Unit Power Sale | Long Term | 712634 | 8 | 5571805 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Entergy Louisiana Inc | Capacity | $/MW-MO | Unit Power Sale | Long Term | 1313 | 25363 | 33300063 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Entergy Louisiana Inc | Energy | $/MWH | Unit Power Sale | Long Term | 741118 | 8 | 6116549 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Entergy Mississippi LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 1112 | 31102 | 34600771 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Entergy Mississippi LLC | Energy | $/MWH | Unit Power Sale | Long Term | 729461 | 7 | 4940944 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Entergy Mississippi LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 948 | 43097 | 40845161 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Entergy Mississippi LLC | Energy | $/MWH | Unit Power Sale | Long Term | 734512 | 7 | 4984800 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Entergy New Orleans LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 1342 | 22169 | 29748498 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Entergy New Orleans LLC | Energy | $/MWH | Unit Power Sale | Long Term | 597374 | 8 | 4488810 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Entergy New Orleans LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 1313 | 25358 | 33293619 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Entergy New Orleans LLC | Energy | $/MWH | Unit Power Sale | Long Term | 742457 | 8 | 6154561 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 2036385 | 14 | 28802031 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -129670 | 9 | -1225190 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | -16 | 17599 | -275966 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -82061 | 3 | -246171 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 34807 | -1 | -21077 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 28066740 | 24 | 682406418 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 43808 | 15 | 661013 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 4041 | -17 | -70238 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 127337 | 5 | 610547 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 1155795 | 0 | 433287 |
| Entergy Arkansas LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 6888 | 206 | 1417471 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 2118592 | 9 | 18299078 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -353280 | 24 | -8648857 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 14262 | -10 | -149569 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -95650 | 2 | -149551 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 213228 | 0 | -43594 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 29202562 | 27 | 779920049 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 38916 | 13 | 522397 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 5085 | -9 | -47437 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 183504 | 4 | 730084 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 1265602 | 0 | 319073 |
| Entergy Arkansas LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 7423 | 150 | 1116764 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Entergy New Orleans LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 4846 | 22193 | 107539440 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Entergy New Orleans LLC | Energy | $/MWH | Unit Power Sale | Long Term | 2740329 | 12 | 34030736 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Entergy New Orleans LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 3769 | 20182 | 76076546 |

| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| Entergy Louisiana Inc | 2023 | Midcontinent I | Entergy New Orleans LLC | Energy | $/MWH | Unit Power Sale | Long Term | 1757239 | 17 | 30453314 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Entergy Texas Inc | Capacity | $/MW-MO | Unit Power Sale | Long Term | 5449 | 24776 | 135013588 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Entergy Texas Inc | Energy | $/MWH | Unit Power Sale | Long Term | 3066866 | 11 | 34690931 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Entergy Texas Inc | Capacity | $/MW-MO | Unit Power Sale | Long Term | 6022 | 27404 | 165022914 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Entergy Texas Inc | Energy | $/MWH | Unit Power Sale | Long Term | 2649501 | 14 | 36792507 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -2220 | 71 | -156646 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | -430 | 26 | -11294 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 9 | 326 | 2900 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 4178 | 1 | 4198 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 112417 | 39 | 4408694 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 1981 | 15 | 29048 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 662 | -2 | -1256 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 61 | 11 | 701 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 15908 | 1 | 13762 |
| Entergy Louisiana Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Firm | Short Term | 711 | 64 | 45196 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 4025976 | 17 | 67107384 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -1447115 | 24 | -34025100 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 230264 | 3 | 729480 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -162237 | 2 | -393997 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | -6850 | 2 | -12092 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 54138442 | 27 | 1446614682 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 57077 | 15 | 874054 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 19285 | 4 | 67686 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 296115 | 4 | 1307958 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 2591928 | 0 | 979440 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 28218 | 486 | 13711290 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 4014601 | 18 | 74182077 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -1561689 | 28 | -43122986 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 117456 | 2 | 292688 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -260340 | 3 | -699826 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | -533656 | 0 | -191 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 54039874 | 29 | 1568208501 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 26337 | 15 | 388243 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 8712 | 3 | 26039 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 448174 | 4 | 1924643 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 3121799 | 0 | 454653 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 22413 | 383 | 8583976 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Sam Rayburn Municipal Power Agency | Capacity | $/KW | Firm | Long Term | 304 | 8 | 2561 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Sam Rayburn Municipal Power Agency | Energy | $/KWH | Firm | Long Term | 134739 | 0 | 3591 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Sam Rayburn Municipal Power Agency | Other | $/MWH | Firm | Long Term | 288029 | 0 | -67280 |
| Entergy Louisiana Inc | 2024 | Midcontinent I | Sam Rayburn Municipal Power Agency | Uplift | $/MWH | Not Applicable | Long Term | 288029 | 1 | 168552 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Sam Rayburn Municipal Power Agency | Capacity | $/KW | Firm | Long Term | 1480 | 8 | 12449 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Sam Rayburn Municipal Power Agency | Energy | $/KWH | Firm | Long Term | 157275 | 0 | 3349 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Sam Rayburn Municipal Power Agency | Other | $/MWH | Firm | Long Term | 2367355 | 0 | -775105 |
| Entergy Louisiana Inc | 2023 | Midcontinent I | Sam Rayburn Municipal Power Agency | Uplift | $/MWH | Not Applicable | Long Term | 2346792 | 0 | 997326 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 1059578 | 14 | 15234222 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -358399 | 18 | -6582006 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 82366 | 6 | 483913 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -16668 | 4 | -58650 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 157888 | 0 | -706 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 17888800 | 25 | 452390913 |

| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 21539 | 15 | 327861 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 7665 | -14 | -105045 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 35364 | 5 | 188294 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 502594 | 0 | 135706 |
| Entergy Mississippi LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 4145 | 499 | 2070065 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 1036478 | 8 | 7801020 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -218609 | 21 | -4630226 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 23562 | 5 | 115463 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -42322 | 4 | -174834 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 118329 | 0 | -31396 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 16744621 | 27 | 453603774 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 7127 | 14 | 99045 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 3589 | -5 | -18847 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 58374 | 6 | 341324 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 569147 | 0 | 254302 |
| Entergy Mississippi LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 3579 | 155 | 556362 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 469738 | 15 | 7202339 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -137652 | 24 | -3275127 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | -945 | 157 | -148006 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -23933 | 5 | -128094 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 3941 | -2 | -9094 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 4717652 | 26 | 121011126 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 23674 | 17 | 408495 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 3862 | -15 | -57734 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 32468 | 7 | 224466 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 270511 | 1 | 263304 |
| Entergy New Orleans LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 2008 | 119 | 238046 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 461923 | 12 | 5676254 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -198038 | 24 | -4792094 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | -1843 | 30 | -54955 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -28822 | 3 | -72100 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 87511 | 0 | -5111 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 6113277 | 27 | 164553122 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 14376 | 15 | 221040 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 2960 | -9 | -26863 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 48462 | 5 | 222419 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 312268 | 0 | 85703 |
| Entergy New Orleans LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 2344 | 132 | 309729 |
| Entergy Power LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Not Applical | 426493 | 29 | 12330663 |
| Entergy Power LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Not Applical | 58 | 12 | 723 |
| Entergy Power LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Not Applical | 3 | -25 | -83 |
| Entergy Power LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Not Applical | 103 | 48 | 4879 |
| Entergy Power LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Not Applical | 87742 | 0 | -501 |
| Entergy Power LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Firm | Not Applical | 144 | 522 | 75291 |
| Entergy Power LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Not Applical | 297487 | 28 | 8455877 |
| Entergy Power LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Not Applical | 135 | 25 | 3403 |
| Entergy Power LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Not Applical | 9 | -45 | -404 |
| Entergy Power LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Not Applical | 152 | 33 | 5062 |
| Entergy Power LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Not Applical | 73436 | 0 | 34858 |
| Entergy Power LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Firm | Not Applical | 101 | 615 | 61968 |
| Entergy Texas Inc | 2023 | Midcontinent I | Entergy Louisiana Inc | Capacity | $/MW-MO | Unit Power Sale | Long Term | 243 | 2851 | 691319 |

| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| Entergy Texas Inc | 2023 | Entergy | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -7718 | 23 | -173966 |
| Entergy Texas Inc | 2023 | Entergy | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -134 | -3 | 410 |
| Entergy Texas Inc | 2023 | Entergy | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | -830 | 0 | -148 |
| Entergy Texas Inc | 2023 | Entergy | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 63440 | 27 | 1703308 |
| Entergy Texas Inc | 2023 | Entergy | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 191 | 6 | 1209 |
| Entergy Texas Inc | 2023 | Entergy | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 10428 | 0 | 1434 |
| Entergy Texas Inc | 2023 | Entergy | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Firm | Short Term | 24 | 12 | 289 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -1177 | 58 | -67902 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 10 | -31 | -301 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -42 | -13 | 546 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | -90 | -3 | 241 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 9294 | 30 | 277375 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 139 | 20 | 2825 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 129 | -2 | -305 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 51 | 15 | 758 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 2774 | 0 | 588 |
| Entergy Texas Inc | 2024 | Louisiana Gene | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Firm | Short Term | 257 | 403 | 103453 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -1641 | 71 | -115782 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | -318 | 26 | -8346 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 7 | 326 | 2144 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 3088 | 1 | 3103 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 83091 | 39 | 3258600 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 1464 | 15 | 21471 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 662 | -1 | -928 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 45 | 11 | 518 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 11758 | 1 | 10172 |
| Entergy Texas Inc | 2023 | Louisiana Gene | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Firm | Short Term | 711 | 47 | 33406 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 1211110 | 17 | 20565163 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -797001 | 26 | -20694896 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 57377 | 1 | 40045 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -60186 | 2 | -114307 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | -185285 | 0 | 34882 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 14338965 | 28 | 395105670 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 97413 | 14 | 1345111 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 25876 | -7 | -179071 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 130318 | 4 | 539281 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 995393 | 0 | 143712 |
| Entergy Texas Inc | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 13683 | 579 | 7918957 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-DAY | Firm | Long Term | 1230589 | 19 | 23994791 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -548025 | 28 | -15149997 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 21359 | 6 | 126846 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | -32435 | 1 | -45814 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | -397568 | 0 | 10441 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 13265849 | 31 | 406939326 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | $/MWH | Firm | Short Term | 20635 | 13 | 277248 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 11481 | -4 | -50199 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Spinning Reserve | $/MWH | Firm | Short Term | 91700 | 4 | 381069 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Supplemental Reserve | $/MWH | Firm | Short Term | 1160995 | 0 | 115743 |
| Entergy Texas Inc | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 12851 | 330 | 4240686 |
| EWO Marketing LP | 2024 | Midcontinent I | EAM Nelson Holding LLC | Energy | $/MWH | Firm | Long Term | 164359 | 33 | 5487689 |
| EWO Marketing LP | 2023 | Midcontinent I | EAM Nelson Holding LLC | Energy | $/MWH | Firm | Long Term | 161757 | 35 | 5583498 |

| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| EWO Marketing LP | 2024 | Entergy | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 1389018 | 26 | 36663855 |
| EWO Marketing LP | 2023 | Entergy | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 42 | 29 | 1231 |
| EWO Marketing LP | 2023 | Entergy | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 264954 | 26 | 6871886 |
| EWO Marketing LP | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-MO | Firm | Long Term | 54276 | 22 | 1183148 |
| EWO Marketing LP | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Capacity | $/MW-MO | Firm | Long Term | 18163 | 24 | 428772 |
| EWO Marketing LP | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 1410730 | 27 | 38497573 |
| EWO Marketing LP | 2024 | Midcontinent I | Sam Rayburn Municipal Power Agency | Capacity | $/MW-MO | Firm | Long Term | 1184 | 12095 | 14316172 |
| EWO Marketing LP | 2024 | Midcontinent I | Sam Rayburn Municipal Power Agency | Energy | $/MWH | Firm | Long Term | 597958 | 27 | 16207196 |
| EWO Marketing LP | 2023 | Midcontinent I | Sam Rayburn Municipal Power Agency | Capacity | $/MW-MO | Firm | Long Term | 3411 | 11852 | 40421606 |
| EWO Marketing LP | 2023 | Midcontinent I | Sam Rayburn Municipal Power Agency | Energy | $/MWH | Firm | Long Term | 2586643 | 23 | 60723773 |
| EWO Marketing LP | 2024 | Midcontinent I | Vinton Public Power Authority | Capacity | $/MW-MO | Firm | Long Term | 83 | 12320 | 1025387 |
| EWO Marketing LP | 2024 | Midcontinent I | Vinton Public Power Authority | Energy | $/MWH | Firm | Long Term | 35377 | 33 | 1152758 |
| EWO Marketing LP | 2023 | Midcontinent I | Vinton Public Power Authority | Capacity | $/MW-MO | Firm | Long Term | 84 | 12320 | 1030886 |
| EWO Marketing LP | 2023 | Midcontinent I | Vinton Public Power Authority | Energy | $/MWH | Firm | Long Term | 36238 | 33 | 1207064 |
| MS Sunflower Project Co LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -5147 | 18 | -93552 |
| MS Sunflower Project Co LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 106253 | 25 | 2604051 |
| MS Sunflower Project Co LLC | 2024 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 27 | 1 | 28 |
| MS Sunflower Project Co LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | -790 | 65 | -51474 |
| MS Sunflower Project Co LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Energy | $/MWH | Firm | Short Term | 181522 | 31 | 5715331 |
| MS Sunflower Project Co LLC | 2023 | Midcontinent I | Midcontinent Independent System Operator I | Uplift | FLAT RATE | Not Applicable | Short Term | 18 | 1 | 12 |
| Stuttgart Solar LLC | 2024 | Midcontinent I | Entergy Arkansas LLC | Energy | $/MWH | Unit Power Sale | Long Term | 153604 | 53 | 8210144 |
| Stuttgart Solar LLC | 2023 | Midcontinent I | Entergy Arkansas LLC | Energy | $/MWH | Unit Power Sale | Long Term | 163167 | 53 | 8721282 |
| System Energy Resources Inc | 2024 | Entergy | Entergy Arkansas LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 5502 | 33408 | 183793720 |
| System Energy Resources Inc | 2024 | Entergy | Entergy Arkansas LLC | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 3451127 | 7 | 22475908 |
| System Energy Resources Inc | 2023 | Entergy | Entergy Arkansas LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 5427 | 35692 | 193709106 |
| System Energy Resources Inc | 2023 | Entergy | Entergy Arkansas LLC | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 3806445 | 7 | 25834408 |
| System Energy Resources Inc | 2024 | Entergy | Entergy Louisiana Inc | Capacity | $/MW-MO | Unit Power Sale | Long Term | 2139 | 35297 | 75517347 |
| System Energy Resources Inc | 2024 | Entergy | Entergy Louisiana Inc | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 1342105 | 7 | 8740631 |
| System Energy Resources Inc | 2023 | Entergy | Entergy Louisiana Inc | Capacity | $/MW-MO | Unit Power Sale | Long Term | 2111 | 33323 | 70330716 |
| System Energy Resources Inc | 2023 | Entergy | Entergy Louisiana Inc | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 1480794 | 7 | 10046714 |
| System Energy Resources Inc | 2024 | Entergy | Entergy Mississippi LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 5043 | 34839 | 175695097 |
| System Energy Resources Inc | 2024 | Entergy | Entergy Mississippi LLC | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 3163533 | 7 | 20602916 |
| System Energy Resources Inc | 2023 | Entergy | Entergy Mississippi LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 4975 | 34590 | 172085289 |
| System Energy Resources Inc | 2023 | Entergy | Entergy Mississippi LLC | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 3488991 | 7 | 23681543 |
| System Energy Resources Inc | 2024 | Entergy | Entergy New Orleans LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 2598 | 34658 | 90038407 |
| System Energy Resources Inc | 2024 | Entergy | Entergy New Orleans LLC | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 1629699 | 7 | 10613623 |
| System Energy Resources Inc | 2023 | Entergy | Entergy New Orleans LLC | Capacity | $/MW-MO | Unit Power Sale | Long Term | 2563 | 33279 | 85290133 |
| System Energy Resources Inc | 2023 | Entergy | Entergy New Orleans LLC | Fuel Charge | $/MWH | Unit Power Sale | Long Term | 1797178 | 7 | 12199583 |

Pelican Entities Sales



| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | -2206 | -97 | 213325 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 647 | -27 | -17279 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | -849 | 17 | -14676 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 23526 | 44 | 1043971 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 1457 | 18 | 26026 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 146 | -2 | -329 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 3725 | 4 | 15090 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Uplift | FLAT RATE | Firm | Short Term | 260 | 574 | 149220 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | -10526 | 28 | -299587 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | -547 | 106 | -57730 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Spinning Reserve | $/MWH | Firm | Short Term | 17 | 364 | 6363 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 4440 | 5 | 20534 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 75095 | 48 | 3596749 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 7269 | 17 | 120086 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 562 | -4 | -2144 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 14449 | 3 | 48831 |
| Bayou Cove Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Uplift | FLAT RATE | Firm | Short Term | 1505 | 121 | 182234 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Energy | $/MWH | Firm | Short Term | -3251 | 19 | -62321 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 313 | -162 | -50899 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Spinning Reserve | $/MWH | Firm | Short Term | 29 | 10 | 284 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Supplemental Reserve | $/MWH | Firm | Short Term | -3781 | 0 | -1596 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Energy | $/MWH | Firm | Short Term | 33224 | 44 | 1447940 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 4981 | 21 | 104872 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 333 | -8 | -2624 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Spinning Reserve | $/MWH | Firm | Short Term | 9 | 15 | 135 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 11074 | 5 | 55270 |
| Bayou Cove Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Uplift | FLAT RATE | Firm | Short Term | 683 | 42 | 28849 |
| Bayou Cove Peaking Power LLC | 2024 | Midcontinent I: | Pelican Power LLC | Capacity | $/KW-MO | Firm | Long Term | 933800 | 1 | 484137 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 2206 | 51 | 111716 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Spinning Reserve | $/MWH | Firm | Short Term | 24 | 59 | 1399 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 812 | 11 | 8562 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 10667 | 44 | 473738 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 1378 | 7 | 10131 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Uplift | FLAT RATE | Firm | Short Term | 63 | 141 | 8913 |
| Big Cajun I Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | -4982 | 7 | -34038 |
| Big Cajun I Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Spinning Reserve | $/MWH | Firm | Short Term | 28 | 42 | 1146 |
| Big Cajun I Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 13187 | 0 | 4389 |
| Big Cajun I Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 113880 | 50 | 5661116 |
| Big Cajun I Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 5020 | 1 | 6187 |
| Big Cajun I Peaking Power LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Uplift | FLAT RATE | Firm | Short Term | 538 | 249 | 134086 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Energy | $/MWH | Firm | Short Term | 3297 | 76 | 251162 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Spinning Reserve | $/MWH | Firm | Short Term | 75 | 39 | 2943 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 3413 | 1 | 3645 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Energy | $/MWH | Firm | Short Term | 42724 | 47 | 1987932 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 4114 | 6 | 23856 |
| Big Cajun I Peaking Power LLC | 2024 | Louisiana Gene | Pelican Power LLC | Uplift | FLAT RATE | Firm | Short Term | 227 | 302 | 68634 |
| Big Cajun I Peaking Power LLC | 2024 | Midcontinent I: | Pelican Power LLC | Capacity | $/KW-MO | Firm | Long Term | 1251000 | 1 | 659073 |
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Uplift | FLAT RATE | Firm | Short Term | 71 | 310 | 21999 |
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Energy | $/MWH | Firm | Short Term | 33045 | 51 | 1699813 |

| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Spinning Reserve | $/MWH | Firm | Short Term | -65184 | 0 | -20880 |
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Supplemental Reserve | $/MWH | Firm | Short Term | -148830 | 0 | -25024 |
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Energy | $/MWH | Firm | Short Term | 136421 | 49 | 6645140 |
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Spinning Reserve | $/MWH | Firm | Short Term | 111845 | 4 | 435496 |
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Supplemental Reserve | $/MWH | Firm | Short Term | 203458 | 4 | 792424 |
| Greenidge Generation LLC | 2024 | New York ISO ( | Emera Energy US Subsidiary No 3 | Capacity | $/MW-MO | Firm | Short Term | 324 | 3957 | 1283192 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Uplift | FLAT RATE | Firm | Short Term | 79 | 19 | 1506 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Energy | $/MWH | Firm | Short Term | 34537 | 38 | 1325480 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Spinning Reserve | $/MWH | Firm | Short Term | -49240 | 1 | -28009 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Supplemental Reserve | $/MWH | Firm | Short Term | -102050 | 0 | -4915 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Energy | $/MWH | Firm | Short Term | 102648 | 37 | 3753250 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Spinning Reserve | $/MWH | Firm | Short Term | 91252 | 4 | 378172 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Supplemental Reserve | $/MWH | Firm | Short Term | 128964 | 4 | 506935 |
| Greenidge Generation LLC | 2023 | New York ISO ( | Emera Energy US Subsidiary No 3 | Capacity | $/MW-MO | Firm | Short Term | 254 | 3291 | 836565 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Beauregard Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 1361631 | 78 | 106229512 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Beauregard Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 1078467 | 83 | 89594890 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Claiborne Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 551577 | 70 | 38821529 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Claiborne Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 423579 | 77 | 32464386 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | -92763 | 25 | -2322255 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 2599 | -7 | -19226 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Spinning Reserve | $/MWH | Firm | Short Term | 170 | 136 | 23133 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | -4985 | -15 | 75042 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 326810 | 33 | 10840365 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 6993 | 13 | 94061 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 651 | -13 | -8714 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Spinning Reserve | $/MWH | Firm | Short Term | 346 | 12 | 4177 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 103833 | 1 | 72228 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | CLECO Cajun LLC | Uplift | FLAT RATE | Firm | Short Term | 920 | 193 | 177644 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | -173710 | 32 | -5586204 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | -1058 | 87 | -92590 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Spinning Reserve | $/MWH | Firm | Short Term | -457 | -42 | 18963 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 100746 | 1 | 60472 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 841995 | 31 | 26326204 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 21857 | 13 | 288710 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 1601 | -10 | -16801 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Spinning Reserve | $/MWH | Firm | Short Term | 1080 | 12 | 12778 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 316123 | 0 | 132427 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | CLECO Cajun LLC | Uplift | FLAT RATE | Firm | Short Term | 3332 | 136 | 451657 |
| Louisiana Generating LLC | 2024 | Midcontinent I! | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 73148 | 23 | 1651936 |
| Louisiana Generating LLC | 2023 | Midcontinent I! | CLECO Cajun LLC | Energy | $/MWH | Firm | Short Term | 158868 | 24 | 3809999 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Concordia Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 175814 | 86 | 15180116 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Concordia Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 197124 | 87 | 17188352 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Jefferson Davis Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 168776 | 88 | 14804373 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Jefferson Davis Electric Coop Inc | Requirements Service | $/MWH | Unit Power Sale | Long Term | 194619 | 87 | 16882824 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Northeast Louisiana Power Coop | Requirements Service | $/MWH | Unit Power Sale | Long Term | 240839 | 68 | 16291980 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Northeast Louisiana Power Coop | Requirements Service | $/MWH | Unit Power Sale | Long Term | 273986 | 69 | 18847910 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Energy | $/MWH | Firm | Short Term | -36815 | 32 | -1163001 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | -715 | 51 | -36577 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Spinning Reserve | $/MWH | Firm | Short Term | -391 | -103 | 40171 |

**Pelican Entities Sales**



| sellername | year | delivery_area | buyername | productname | unitprice | classname | termname | quantitymwh | price | sales |
|---|---|---|---|---|---|---|---|---|---|---|
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 23274 | 1 | 33459 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Energy | $/MWH | Firm | Short Term | 154074 | 30 | 4675053 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Regulation & Frequency Response | $/MWH | Firm | Short Term | 8146 | 16 | 129797 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Regulation & Frequency Response | FLAT RATE | Firm | Short Term | 660 | -14 | -9160 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Spinning Reserve | $/MWH | Firm | Short Term | 908 | 15 | 13494 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Supplemental Reserve | $/MWH | Firm | Short Term | 137130 | 1 | 79203 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pelican Power LLC | Uplift | FLAT RATE | Firm | Short Term | 1856 | 960 | 1782245 |
| Louisiana Generating LLC | 2024 | Midcontinent I | Pelican Power LLC | Capacity | $/KW-MO | Firm | Long Term | 8417400 | 1 | 4506769 |
| Louisiana Generating LLC | 2024 | Midcontinent I | Pelican Power LLC | Energy | $/MWH | Firm | Short Term | 87347 | 24 | 2063032 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Pointe Coupee Electric Member C | Requirements Service | $/MWH | Unit Power Sale | Long Term | 195604 | 85 | 16577479 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Pointe Coupee Electric Member C | Requirements Service | $/MWH | Unit Power Sale | Long Term | 220621 | 83 | 18296493 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | South Louisiana Electric Coop Ass | Requirements Service | $/MWH | Unit Power Sale | Long Term | 457060 | 84 | 38443040 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | South Louisiana Electric Coop Ass | Requirements Service | $/MWH | Unit Power Sale | Long Term | 512876 | 82 | 41965128 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Southwest Louisiana EMC | Requirements Service | $/MWH | Unit Power Sale | Long Term | 2323771 | 85 | 196816174 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Southwest Louisiana EMC | Requirements Service | $/MWH | Unit Power Sale | Long Term | 2664105 | 84 | 224923826 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Southwestern Electric Power Co | Capacity | $/KW-MO | Firm | Long Term | 550000 | 7 | 3850000 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Southwestern Electric Power Co | Energy | $/KWH | Firm | Long Term | 7550 | 0 | 364 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Southwestern Electric Power Co | Capacity | $/KW-MO | Firm | Long Term | 600000 | 7 | 4200000 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Southwestern Electric Power Co | Energy | $/KWH | Firm | Long Term | 850 | 0 | 35 |
| Louisiana Generating LLC | 2024 | Louisiana Gene | Washington St Tammany Electric | Requirements Service | $/MWH | Unit Power Sale | Long Term | 960560 | 75 | 71809814 |
| Louisiana Generating LLC | 2023 | Louisiana Gene | Washington St Tammany Electric | Requirements Service | $/MWH | Unit Power Sale | Long Term | 1076046 | 75 | 80895538 |

# Data and Methods for Secretariat Advisor LLC's Delivered Price Test for Entergy Louisiana's Acquisition of Cottonwood Energy Company

This exhibit describes data and assumptions used in the delivered price test study ("study") carried out by Secretariat Advisors LLC ("Secretariat") for Entergy Louisiana. Because the data are voluminous, we provide them in electronic workpapers. This Exhibit has six sections. Section I discusses the study's representative periods. Section II discusses the geographic region and balancing authority areas. Section III discusses generation resources, including adjustments to generating capacity for seasons, maintenance, water availability, and long-term contracts. Section IV discusses the load data. Section V discusses transmission, including transmission pricing and losses. Section VI discusses market prices.

## I. Periods

The study calculates market shares and concentration indexes for electric energy for ten representative periods during the test year.[1] The year is divided into three seasons (spring/fall, summer and winter), and each season is divided into three or four periods based on NERC on-peak/off-peak definition and peak load levels. The seasons are Spring/Fall, Summer, and Winter.[2] For Spring/Fall and Winter, the market conditions correspond to (1) the Top 10% of on-peak load hours for the season, (2) the remaining on-peak load hours, and (3) off-peak hours.[3] For Summer, the Top 1% of on-peak load hours are also considered as a separate period for analysis.[4] Each calculation of market shares and concentration indexes reflects

1 *See AEP Power Marketing, et al.*, 107 FERC ¶ 61,018 at App. F. ("… analyze: Super-Peak, Peak, and Off-Peak, for winter, shoulder and summer periods, and an extreme Summer Peak, for a total of ten season/load levels.").

2 *Id.*

3 *Id.*

4 *Id.*

average conditions (e.g., average loads) during one of the resulting ten periods during the year (e.g., Summer Peak).[5]

The study places each of the periods in each season into three categories: off-peak, low peak, and spike. Plant availability (see Section III.A.4 below) varies among these three categories.

Table I-1 summarizes the ten periods considered.

**Table I-1– Definition of Ten Periods**

| *Number* | *Season* | *Time* | *Abbrev.* | *Condition* | *Hours** | *Description*** |
|---|---|---|---|---|---|---|
| 1 | Spring/Fall | Top 10% | SF_T10 | Spike | 205 | Top 10% of peak hours |
| 2 | Spring/Fall | Peak | SF_P | Peak | 1843 | Remaining peak hours |
| 3 | Spring/Fall | Off-Peak | SF_OP | Off-Peak | 2344 | Off-peak hours |
| 4 | Summer | Top 1% | SUM_T1 | Spike | 11 | Top 1% of peak hours |
| 5 | Summer | Top 10% | SUM_T10 | Spike | 101 | Top 10% of peak hours |
| 6 | Summer | Peak | SUM_P | Peak | 907 | Remaining peak hours |
| 7 | Summer | Off-Peak | SUM_OP | Off-Peak | 1176 | Off-peak hours |
| 8 | Winter | Top 10% | WIN_T10 | Spike | 103 | Top 10% of peak hours |
| 9 | Winter | Peak | WIN_P | Peak | 921 | Remaining peak hours |
| 10 | Winter | Off-Peak | WIN_OP | Off-Peak | 1160 | Off-peak hours |

Note: * Hours sum to 8771 because Summer Top 1% are also included in Summer Top 10% Period. **Peak hours include hours ending 7 a.m. through 10 p.m. weekdays, excluding six major holidays. Off-peak hours = Hours ending 11 p.m. through 6 a.m. on weekdays and all weekend and holiday hours.

The off-peak periods include hours ending at 11 p.m. through 6 a.m. Central time plus all other hours on weekends and the six major holidays.[6] The off-peak periods have off-peak transmission pricing and plant availability.

In order to define the Top 1%, Top 10%, and Peak periods for a given season, we removed all off-peak hours from that season. We then ranked the remaining (peak)

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5 *Inquiry Concerning the Commission's Merger Policy Under the Federal Power Act: Policy Statement*, Order No. 592, FERC Stats. & Regs. ¶31,044, 30,130 (1996) ("Applicants should present separate analyses for each of the major periods when supply and demand conditions are similar. One way to do this is to group together the hours when supply and demand conditions are similar; for example, peak, shoulder and off-peak hours.").

6 Major holidays are New Year's, Memorial Day, 4th of July, Labor Day, Thanksgiving and Christmas.

hours based on load levels in each destination market by season. We then defined the Top 1% and Top 10% as the 1 percent and 10 percent of these remaining hours in which loads in the destination market were highest. These periods have spike transmission pricing and plant availability. The remaining on-peak hours comprise the Peak period, which has peak transmission pricing and plant availability.

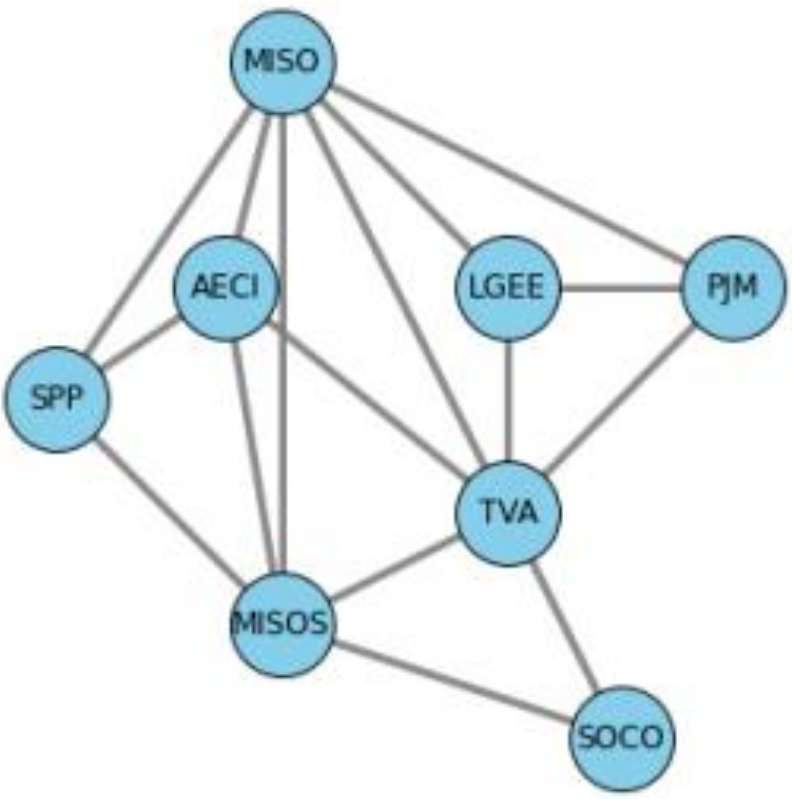
## II. Geographic Region

The study includes data for a geographic market that consists of MISO and RTO Balancing Authority Areas (BAAs) that are first tier to MISO. Table II-1 lists these market areas and their abbreviations. Figure II-1 shows a diagram of the areas and the transmission structure for MISO destination.

**Table II-1 – List of Supply Areas and Study Destinations**

| *Abbreviation* | *Full Name* | *Study Destination* |
|---|---|---|
| AECI | Associated Electric Coop Inc | No |
| LGEE | Louisville Gas & Electric Co | No |
| MISO | Midcontinent ISO | Yes |
| MISOS | Midcontinent ISO South | No |
| PJM | PJM ISO | No |
| SOCO | Southern Company | No |
| SPP | SPP ISO | No |
| TVA | Tennessee Valley Authority | No |

**Figure II-1 – Supply Areas and Transmission Links**




# III. Generation

## A. Generation Capacity and Ownership

The study includes generating units located in the geographic region that are connected to the power grid.

### 1. Generating Unit Data

The study uses data for summer and winter capability at the unit level reported in the Velocity Suite Generation Unit Capacity database available from Hitachi

Energy.[7] The units include all units with a status of operating, standby, cold standby, restart, testing, or under construction that will be online before December 31, 2027, and a retirement date after December 31, 2022. Generation units online on December 31, 2023, are used the base price simulations for the years 2023-2024. For the forward price simulations and the DPT calculations, the inclusion of plants varies by season. For the Spring/Fall and Summer season, the inclusion cut-off date is July 15, 2027. This is the date at which if a unit was online before or retired after this date the unit was, on average, operating during the season. The cut-off date for the Winter and Spring/Fall seasons is January 15, 2027. Hence, the study represents, on average, the period from December 2026 through November 2027.

### 2. Ownership

The study relies primarily on Velocity Suite for determination of plant and unit ownership. These data are supplemented from data compiled by Secretariat on plant ownership. For Entergy Entities and Pelican Entities generation, the study relies upon Appendix B data from market-based rate filings and updates from the companies to determine plant ownership. Before calculating market shares and market concentration, capacities of holding company entities are aggregated to the holding company level.

### 3. Seasonal variation in capability

The study uses summer and winter capability data from Velocity Suite. Spring/fall capacities are the average of summer and winter capacities.

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[7] Order No. 642, at 31,887 ("For each potential supplier to a relevant market, applicants must file the publicly available generation capability and variable cost data for each generating plant or unit. … cost data at the unit level are preferable to cost data at the plant level, and applicants must file disaggregated plant data to the extent it is publicly available.")

## 4. Adjustments to Generating Capability

The generating capability figures used for each period are obtained by multiplying the seasonal capabilities by an availability factor, which is based on the period, unit location, and NERC Generating Availability Data Systems (GADS) category of the unit. Data from 2020 through 2024 were used because those were the latest available on the NERC web site as of December 12, 2025.[8] The GADS database gives national average operating information for generating units by unit type and size. For example, it gives data for coal-fired steam units with capacities between 300 MW and 399 MW.

For each period and each generating unit, the availability factor adjusts for the following.

### *a) Unplanned outage rates by GADS category*

For a given GADS category, the study assumes that unplanned (forced) outage rates (as a share of generating capability available after allowing for planned outages) are constant across seasons and generating units, regardless of owner. Based on GADS data for 2020-2024 the study calculates an equivalent forced outage rate (EIFOR), which measures the share of generating capability in a GADS category that is not available because of forced outages. The computation is EIFOR = (FOH)/AH, where FOH is number of forced outage hours and AH is total hours available for generation after planned outages (but before forced outages).[9]

### *b) Planned outage rates by GADS category and season*

With four exceptions (hydro, pumped storage, wind, and solar units), the study

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[8] The data were posted on September 24, 2025.

[9] EIFOR differs slightly from the EFOR provided in the GADS data. EIFOR provides a better measure of a forced outage rate for peaking units that are operated a small percentage of the year.

assumes that the planned outage rate is constant for all generating units for a given GADS category, area, and season. For a given GADS category, the share of hours of generating capability that is not available as a result of planned outages is computed as (POH + POEH)/PH; where PH are the period hours, POH are the hours not available because of planned outages, and POEH are the hours not available because of planned outage extensions.

Based upon planned outages during monthly peak hours each season reported in FERC Form 714 by BAA,[10] the annual outage percentage is allocated to each season. Because outages are likely to be "managed" to minimize disruptions,[11] the average planned outage rates during peak periods by season are adjusted. Specifically, the planned outage rate for summer season is set to 0.[12] In winter, instead of taking the seasonal average, we take the lowest level of planned during the three winter months. For Spring/Fall, we used the average of the planned.

***c) Variation in hydro availability across seasons and periods***

In general, utilities use hydro facilities to generate energy during the hours when energy prices are highest, subject to constraints imposed by availability of water and reservoir capacity. In order to incorporate these constraints, the study proceeds in the following manner.

First, the study uses EIA Form 923 monthly production data for the period 2020 to 2024 to compute average hourly hydro generation by season.[13] Average hourly

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10 See Order No. 697, at P 43 ("Planned outage amounts should be consistent with those as reported in FERC Form No. 714.").

11 For example, planned maintenance on hydro facilities may take place in summer because not enough water may be available to operate all the generators. In such a case, there is a planned outage, but it does not diminish the capability of the generation fleet.

12 *AEP Power Marketing et al.*, 107 FERC ¶ 61,018, P 97 (2004) ("We do not expect that applicants will have planned generation outages scheduled for the annual peak load day.")

13 Order No. 697, P 344 ("With regard to energy-limited resources, such as hydroelectric and wind capacity, in lieu of using nameplate or seasonal capacity in their submissions, we will allow such

generation is then divided by hydro capability to give an average hourly hydro operating rate by season.

Second, depending upon the level of the hydro operating rate for a given season, the study calculates availability factors for the spike, peak and off-peak periods. When the historical seasonal operating rate is below 30 percent, the availability factor for each period in the season is set equal to the operating rate; the 30 percent figure is an assumed "run of river" constraint. The study assumes that prospectively the maximum operating rate is 90 percent; this is the assumed "maximum rate" constraint. When the historical seasonal operating rate is above 90 percent, the availability factor for each period is set to 90 percent, absent information indicating that the actual capacity is greater than that reported by ABB.

When the seasonal operating rate is above the run of river constraint and below the maximum rate, we reason that the hydro generator owner would be likely to produce a higher level of energy during spike hours, when energy prices are highest, than during other peak hours, and that the owner would be likely to produce a higher level during peak than during off-peak hours.

Based on this reasoning, when the seasonal operating rate is between the run of river constraint and the maximum rate, as is the case for each of the three seasons, the study uses a spike availability factor of 90 percent, which is the assumed maximum operating rate, and off-peak availability factor of 30 percent, which is the assumed run-of-river constraint, and a calculated availability factor for the peak periods, as described below.

The seasonal peak availability factor is calculated with actual total seasonal hydro generation. The study then computes the hydro generation during all spike and off-peak hours, assuming the generation rates implied by the spike and off-peak

resources to provide an analysis based on historical capacity factors reflecting the use of a five-year average capacity factor …")

derate factors computed in the manner described above. The study then calculates total remaining peak hydro generation as the difference between total seasonal hydro generation and the sum of hydro generation during all spike and off-peak hours. The seasonal low peak availability factor is computed as total low peak hydro generation divided first by the number of hours in the off-peak period and then by hydro generating capacity.

***d) Variation in pumped storage availability across seasons and periods***

We assume that pumped storage units have 90 percent availability during Top 1% and Top 10% periods, 50 percent availability during Peak periods, and no availability during off-peak periods.

***e) Wind availability***

For each area-owner combination, we calculate average operating rates from 2020 through 2024 by season from EIA-923 data.[14] The average operating rates are the availability factors. When operating rates are not available for an owner in an area, we use the average operating rate for that area. For example, a new facility in an area after 2024 would have the average operating rate for the units online in 2020-2024 imputed to it. Seasonal operating rates are then shaped by hourly wind output by hour reported by the RTOs.

***f) Solar availability***

Availability for solar power is also calculated based on average operating rates from 2020 through 2024 reported in EIA-923.[15] The seasonal operating rates are then shaped by hourly solar output by hour reported by the RTOs.

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[14] Order No. 697, P 344 ("With regard to energy-limited resources, such as hydroelectric and wind capacity, in lieu of using nameplate or seasonal capacity in their submissions, we will allow such resources to provide an analysis based on historical capacity factors reflecting the use of a five-year average capacity factor …")

[15] *Id.*

***g) Batteries***

Data on the capabilities of batteries were not available. On net, they provide no capability.

## B. Variable Costs of Generation

The study uses variable costs of generation that include fuel costs, sulfur dioxide and nitrogen oxide emissions costs, and variable operations and maintenance (VOM) costs.[16] The study calculates fuel costs from unit heat rates and projected forward prices. Historic fuel prices during the base period come from (in order of preference in the data): (1) medians of Gas Daily natural gas prices by DPT period; (2) EIA Form-923 fuel cost data (spot prices when available); (3) Velocity Suite monthly estimates of fuel costs; (4) Velocity Suite estimates in generation data; (5) averages of other units with similar fuel in the region. Then the difference between forward prices for prompt-month deliveries in the base period (by season) and forward prices in the study period (by season) are added to the historical prices to give the expected price in 2027 for each unit.[17] The forward fuel prices were downloaded on December 15, 2025.

The study uses unit-specific fuel costs, especially for natural gas units. We translate the ICE gas price hub name reported by Velocity Suite to a Gas Daily Price point. When available, we use Gas Daily prices for historical prices. The average prices are calculated by destination and period, to account for different prices based on different days that have peak hours at each destination. Other prices (e.g., oil and

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[16] 18 CFR §33.3(d)(2) ("For each generating plant or unit owned or controlled by each potential supplier, the applicant must also provide variable cost components. (i) These cost components must include at a minimum: (A) Variable operation and maintenance, including both fuel and non-fuel operation and maintenance; and (B) Environmental compliance.")

[17] For example, for natural gas prices, the NYMEX Henry Hub forward price for summer 2027 as traded in December 2025 was $3.760/mmBtu and the average summer NYMEX closing prices for summer 2023-2024 was $2.384/mmBtu. The difference, $1.376/mmBtu, is then added to the historical natural gas prices at each location to give the measure of likely natural gas prices in the summer of 2027.

coal) are calculated by season. All fuel price data is unit specific when unit specific or plant-specific data are available.

The study uses SO2, NOX, and CO2 emission rates during the base period to calculate the emission costs. Those rates are multiplied by emission prices that vary by location. Regional Greenhouse Gas Initiative (RGGI) states have costs of $22.89/ton, based on the RGGI Allowances for December 2026 as reported by S&P IQ as of September 16, 2025.[18] Sulfur prices are $1.93/ton in CSAPR Group 1 states and $2.81/ton in CSAPR Group 2 states.[19] NOX prices are $3.50/ton for the spring/fall and winter seasons nationwide and for non-CSAPR states in summer, based on 2025 Annual NOX Allowance Spot Price.[20] The price is $762/ton in CSAPR states during the summer, based upon Group 3 seasonal price.

Finally, the other variable operating and maintenance costs (VOM) are added to the dispatch costs. The study used VOM reported by Velocity Suite.

## IV. Long-term Contracts

The Commission requires adjustments to capacity based upon long-term purchase and sales contracts.[21] The study uses Asset Appendix data from market-based rate filings and FERC Form 1 filings to obtain data on long-term contracts. We also reviewed contract data from Velocity Suite's list of unit contracts. Where data indicate a change of control of energy, we include a contract transferring control to the

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18 RGGI states include Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Delaware, and Maryland. .

19 CSAPR Group 1 states include IA, MO, WI, IL, MI, IN, KY, OH, NY, PA, NJ, MD, WV, VA, and NC. CSAPR Group 2 states include NE, KS, AL, GA, SC, MN.

20 For NOX, the CSAPR states include KS, OK, IA, MO, AR, LA, WI, IL, MI, IN, KY, TN, MS, AL, OH, GA, NY, PA, NJ, DE, MD, WV, and VA.

21 *See* Order No. 642, at 31,887 ("… data regarding the long-term purchases and sales of suppliers should be filed with the application. These data would, to the extent available, include the buyer, the seller, the contract duration, the degree of interruptibility, the quantity (MW), and the capacity and energy charges. Applicants must explicitly show any adjustments made to suppliers' capacity due to long-term contracts.")

buyer. We leave the generation unit in the BAA where it is physically interconnected to the transmission system. Known purchases from outside of the geographic region to a buyer in the region are included as resources in the importing area, and known sales from inside of the region to buyers outside of the region are excluded as resources.

As with the inclusion of generation units, contracts are included based upon the midpoint of each season. The study only includes contracts in a season that begin before the midpoint and end after the midpoint. The study considers only contracts of a year or longer duration.

## V. Load for AEC Calculations

The report uses estimates of load obligations from information available from public sources such as EIA Form 861. The calculation is performed in five steps. First, the hours in each period are identified based on time and load level for each destination. Second, load “shapes” are calculated so that the annual load level in EIA 861 data can be translated into a load amount during each of the ten periods. Third, the annual loads served by state and balancing area are then merged with the shapes to give the expected load level served in each period. Fourth, when actual hourly load data for an entity are available (e.g., from RTO reported hourly loads), we use the actual hourly load data. Finally, an “obligation” amount is applied to each of the calculated load levels.

In all supply areas, the obligations by cooperatives and investor-owned utilities in regulated states are given a 100 percent obligation. This would apply to, among others, AEP and First Energy in West Virginia, and EKPC in Kentucky. Bundled deliveries in Michigan, Indiana, Pennsylvania, Virginia, and North Carolina are given 90 percent obligations. Bundled deliveries are given a 60 percent obligation in Illinois, Ohio, District of Columbia, Delaware, Maryland, New Jersey, and Pennsylvania. Municipalities are given a 90 percent obligation. Deliveries of energy by marketers

are given a 30 percent obligation in all areas, which implicitly assumes that 30 percent of their obligations are locked in for a year or longer.

Load growth from the 2023-2024 historical period is based upon forecasted load growth for total energy reported in FERC Form 714. We use the latest Form 714 data posted in May 2025.

# VI. Transmission

## A. Transmission Network

The study incorporates a contract path transmission network for modeling purposes. Transmission pricing between balancing authority areas in each Region is represented by a traditional contract path transmission network in which the direct physical connections between balancing authority areas are also the individually priced links from which contract paths are constructed.

## B. Transmission and Ancillary Services Pricing and Losses

As specified by the Commission, the study generally uses ceiling prices for transmission service from Schedules 1, 2 and 8 of the utility's *pro forma* open-access transmission tariff.[22] Transmission providers may require transmission customers to purchase ancillary services under Schedule 1 (scheduling, system control and dispatch) and Schedule 2 (reactive supply and voltage control). Schedule 8 gives the rates for non-firm point-to-point transmission service. The study uses transmission

[22] *See* 18 CFR 33.3(d)(5)(i) ("The applicant must use in the horizontal Competitive Analysis Screen the maximum rates stated in the transmission providers' tariffs."); 18 CFR 33.3(d)(5)(iii) ("The following data must be provided for each transmission system that would be used to deliver energy from each potential supplier to a destination market: (A) Supplier name; (B) Name of transmission system; (C) Firm point-to-point rate; (D) Non-firm point-to-point rate; (E) Scheduling, system control and dispatch rate; (F) Reactive power/voltage control rate; (G) Transmission loss factor; and (H) Estimated cost of supplying energy losses.") Because on-peak non-firm rates are typically higher than firm rates (which are only daily), the study uses the sum of the Scheduling, system control and dispatch rate (Schedule 1); Reactive power/voltage control rate (Schedule 2); and the Non-firm point-to-point rate (Schedule 8) for the transmission rate.

prices from tariffs.

When we have tariffs available, we calculate rates for off-peak, peak and spike categories. Because of discounting and the nature of baseload purchases, off-peak rates are often lower than peak rates.[23] We use two steps to determine off-peak rates. Step 1: When a utility posts off-peak hourly rates, we use the posted rates. Step 2: When a utility does not post off-peak hourly rates, we calculate an hourly off-peak rate based on other tariff information. To calculate hourly off-peak rates, we divide the weekly rate by 168, the number of hours in a week. When tariffs specify fees on a per transaction basis, we divide them by 25 to put them on a per MW basis.

We use similar steps to determine peak rates. Step 1: When a utility posts maximum hourly rates in its tariff, we use the maximum tariff rates. Step 2: When a utility does not post off-peak hourly rates, we calculate a peak rate based on other tariff information. To calculate hourly peak rates, we divide the weekly rate by 80—the "Appalachian" method. When tariffs specify fees on a per transaction basis, we divide them by 25 to put them on a per MW basis.

For spike periods, we use ceiling hourly rates from tariffs, when available. Otherwise, we use the Appalachian method.

Whenever practical, the study uses loss rates from tariffs. When these methods did not provide a loss rate for a particular utility, the study assumes that losses are three percent per utility.[24] The study assumes that transmission customers pay losses in-kind. That is, if area A exports 100 MW to area B and the losses are 3 percent, only 97 MW arrive at area B.

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[23] For transactions longer than one hour, the *pro forma* tariff caps the amount that the purchaser pays per day by the daily rate, and the amount that the purchaser pays per week by the weekly rate.

[24] Losses of 3 percent are representative of the industry. See, FERC Open Access NOPR, *FERC Stats & Regs*, ¶32,514 at 33,150 (1995).

For areas where tariffs are not available, rates and losses are the average by period for all the reporting areas.

### C. Transfer Capability and SILs

The geographic market includes only MISO and first tier BAAs. The SILs for MISO come from the revised Simultaneous Import Limit Determination filed by MISO dated March 16, 2018.[25] The SIL is increased in the PASS data to reflect the historical firm reservations into the destination market. The program then considers all reservations into the destination market during the test year. The PASS program "moves" the external generation to the destination market and allocates the remaining SIL pro-rata. This ensures that the amount of SIL allocated pro-rata is consistent with the methodology used to calculate the SIL accepted by the Commission. For transmission availability, we use the most recent forward-looking information available, which are monthly total transfer capability (TTC) and available transfer capability (ATC) posted on OASIS. Most ATC values were downloaded from OASIS in February 2024, which typically are for the period from February 2024 through February 2025. When no valid data are available, we use the most recent valid ATC data that we maintain. The ATC value used in the study is the maximum of TTC less Transmission Reliability Margin (TRM), posted firm ATC, and posted non-firm TTC.[26] Finally, the PASS program ensures that enough transfer capability exists to move the capacity from designated network resources external to a destination and point-to-point reservations into the destination market for the HHI calculations.

## VII. Market Prices

The study used 2023-2024 real-time hourly prices reported by MISO as reported by Velocity Suite. For each hour during the period, we take the hourly load

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[25] Supplemental Filing Regarding Simultaneous Import Limits, Docket No. AD10-2, Accession No. 20180316-5067.

[26] For TRM, we used the maximum of the non-firm and firm TRM in the posting.

weighted average of the zonal LMPs in MISO. Base destination prices are then calculated as the median of the hourly price levels by DPT period. The study then runs two price simulations for each destination market: one for the base period and one for the forward test period. The differences in the forward prices compared to the base period prices in the simulation then are added to the actual base prices to give a forecast of the forward price that accounts for changes in fuel costs, the generation fleet, and load levels. Figure VI-1 shows the prices for each of the seasons and periods for MISO.

**Figure VI-1 –Price Comparison for MISO ($/MWh)**

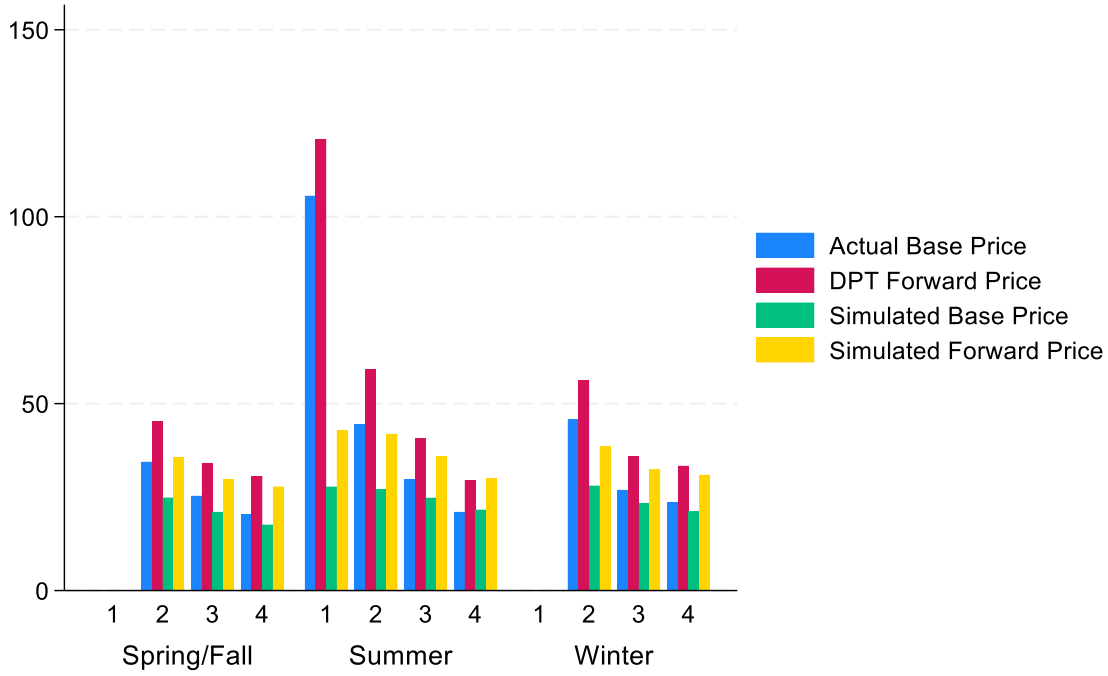



Table VI-1 shows the market prices each destination in each of the ten periods that are used in the DPT study.

**Table VI-1 – Representative Market Prices for the Test Year ($/MWh)**

| Period | MISO |
|---|---|
| **SF_T10** | 45.25 |
| **SF_P** | 34.03 |

| | |
|---|---|
| **SF_OP** | 30.56 |
| **SUM_T1** | 120.71 |
| **SUM_T10** | 59.27 |
| **SUM_P** | 40.79 |
| **SUM_OP** | 29.42 |
| **WIN_T10** | 56.31 |
| **WIN_P** | 35.97 |
| **WIN_OP** | 33.36 |

# Technical Appendix:

# Methods Used to Compute Concentration

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This Exhibit describes the methods used to calculate market shares and concentration in destination markets.

Allocation of scarce transmission capability is accomplished using linear and nonlinear programs that model generation dispatch and the contract path transmission system. This Exhibit provides an overview of the structure of the programs and presents the equations.

***Overview of Linear Program***

The linear program models control areas as nodes in a transmission system. Each node has a demand for and a supply of electric energy. The supply is based on the generators at the node and potential deliveries to the node via transmission links from other control areas. The linear program allows for net import and export limits to and from an individual control area. Given generation capability and costs and transmission capability and costs, the linear program finds the least-cost solution that satisfies the specified loads. Costs are defined as dispatch (generation) costs plus transmission costs including losses plus the default cost for "unserved" load. For each solution, the linear program determines the quantities produced in, exported from, and imported into each control area.

***The Mathematical Equations***

The linear program to be solved is given below:

**Minimize Total Cost:** $Cost = GC + TC + UC$

**Subject to:**

(1) Generation: $TG_a = \sum_{u}^{u \in a} G_{a,u}$ for each area ***a***;

(2) Imports: $YI_a = \sum_{b}^{a,b \in network} (1 - h_{b,a}) T_{b,a}$ for each area ***a***;

| | | | |
|---|---|---|---|
| (3) | Exports: | $YE_a = \sum_{b}^{a,b \in network} T_{a,b}$ | for each area *a*; |
| (4) | Net Imports: | $Y_a = YI_a - YE_a$ | for each area *a*; |
| (5) | Supply/Demand Balance: | $TG_a + Y_a + U_a = D_a$ | for each area *a*; |
| (6) | Generation Cost: | $GC = \sum_{a} \sum_{u}^{u \in a} d_{a,u} G_{a,u}$ | for each area *a*; |
| (7) | Transmission Cost: | $TC = \sum_{a,b}^{a,b \in network} r_{a,b} T_{a,b}$ | for each path *a* to *b*; |
| (8) | Unfilled Demand Cost: | $UC = \sum_{a} pU_a$ | for each area *a*; |
| (9) | Generation Limits: | $g\min_{a,u} \le G_{a,u} \le g\max_{a,u}$ | for each unit *u* in each area *a*; |
| (10) | Transmission Limits: | $t\min_{a,b} \le T_{a,b} \le t\max_{a,b}$ | for each link *a* to *b* in the transmission network; and |
| (11) | Net Import Limits | $Y\min_{a} \le Y_a \le Y\max_{a}$ | for each area *a*; |

where:

| | |
|---|---|
| *a,b* | are subscripts for control/transmission areas; |
| *Cost* | is total system cost; |
| $d_{a,u}$ | is the dispatch cost of unit *u* in area *a*; |
| $D_a$ | is demand for power in area *a*; |
| $G_{a,u}$ | is generation output of unit *u* in area *a*; |
| *GC* | is total system generation cost; |
| $G\max_{a,u}$ | is the maximum output of unit *u* in area *a*; |
| $G\min_{a,u}$ | is the minimum output of unit *u* in area *a*; |
| $h_{b,a}$ | is the fraction of power lost to resistance from moving power from area *b* to area *a*; |
| *N* | is a subscript to identify simultaneous transmission constraint *n*; |
| *P* | is the default price; |

| | |
|---|---|
| $r_{a,b}$ | is the transmission rate from area *a* to area *b*; |
| $T_{a,b}$ | is the power flow from area *a* to area *b*; |
| $TC$ | is total system transportation expenses; |
| $TG_a$ | is total generation output in area *a*; |
| $t\max_{a,b}$ | is the maximum power flow from area *a* to area *b*; |
| $t\min_{a,b}$ | is the minimum power flow from area *a* to area *b*; |
| $U$ | is a subscript to identify units in an area; |
| $U_a$ | is the amount of demand in area *a* not met by generation or imports |
| $UC$ | is total system cost of not meeting demand; |
| $Y_a$ | is net imports into area *a*; |
| $YE_a$ | is total exports from area *a*; and |
| $YI_a$ | is total imports into area *a*; |
| $Y\min_a$ | is minimum net imports in area *a;* |
| $Y\max_a$ | is maximum net imports in area *a.* |

This linear program is solved using the BDMLP solver in GAMS. In order to calculate concentration for different destinations, seasons, and periods, the PASS GAMS program loops through the destinations, seasons, and periods with calls to Solvers to solve the linear programs. Loads, unit availability and transmission availability are adjusted for each season-period combination.

***Calculating Concentration***

Transmission allocation is accomplished in four steps. In the first step the linear program finds the net-back prices in all control areas given a price at the destination control area equal to 105 percent of the pre-merger price. Suppose the pre-merger price at the destination, control area A, is $20/MWh. Then all generation capability with a dispatch cost of $21/MWh or less in the destination area would be included in the market because $21 is 105 percent of $20. If transmission cost (including losses) is $5/MWh from control area B to A, then the net-back price at B would be $16/MWh, which is the $21/MWh less the $5/MWh transmission cost between B and A. Then, all generation capability at B with dispatch costs equal to or less than $16/MWh would be included in the market if there were no transmission constraints. Calculation of net-back prices is

accomplished by setting the default price, *p*, equal to 105 percent of the pre-merger price at the destination, setting load at the destination to a high number and loads elsewhere to zero, setting transmission limits high enough so that the transmission system is not constrained, and setting a limited amount of generation in each area with a zero dispatch cost. The shadow prices produced by the linear program will be *p* at the destination and the relevant net-back prices in other areas.

In the second step, one calculates Economic Capacity (EC) and Available Economic Capacity (AEC) in each area. These values are then used to limit generation capability. The ownership shares of AEC and EC are calculated for each node in the system.

In the third step, the linear program determines the amount of energy that can be imported into an area given available EC (or AEC) and limits on transmission capacity. This is accomplished by limiting generation in each area to the capacity amount (EC or AEC), giving generation outside the destination market a lower cost than generation inside the destination market, and minimizing cost to serve a large load at the destination market. The amount of generation supplied to the destination is the maximum that can be imported into the destination market.

In the fourth step, transmission is allocated by the following non-linear program:

**Minimize Loss:** $$Loss = \sum_{\alpha}\left(\frac{C_{\alpha}^{2}}{Y_{Dest}s_{\alpha}} - 2C_{\alpha}\right)$$

**Subject to:**

(1) Pre Shares: $$s_{\alpha} = \frac{C\max_{\alpha}}{\sum_{\beta} C\max_{\beta}}$$ for each area α;

| | | | |
|---|---|---|---|
| (2) | Allocated Shares: | $A_\alpha = \frac{C_\alpha}{Y_{Dest}}$ | for each area $\alpha$; |
| (3) | Imports: | $YI_a = \sum_{b}^{a,b \in network} (1 - h_{b,a}) T_{b,a}$ | for each area ***a***; |
| (4) | Exports: | $YE_a = \sum_{b}^{a,b \in network} T_{a,b}$ | for each area ***a***; |
| (5) | Net Imports: | $Y_a = YI_a - YE_a$ | for each area ***a***; |
| (6) | Supply/Demand Balance: | $C_a + Y_a + U_a = D_a$ | for each area ***a***; |
| (7) | Capacity Limits: | $c\min_a \le C_a \le C\max_a$ | for each area ***a***; |
| (8) | Transmission Limits: | $t\min_{a,b} \le T_{a,b} \le t\max_{a,b}$ | for each link ***a*** to ***b*** in the transmission network; and |
| (9) | Max Import Limit | $Y_{Dest}$ = Maximum imports from step 3; | |

where:

| | |
|---|---|
| ***a,b*** | are subscripts for control/transmission areas; |
| $\alpha,\beta$ | are subscripts for control/transmission areas other than the destination market; |
| $s_\alpha$ | Is area $\alpha$'s share of capacity outside of the destination; |
| $A_\alpha$ | is area $\alpha$'s share of allocated capacity outside of the destination; |
| *Loss* | is the loss function to be minimized. |

The loss function is derived from the weighted squared-errors between the pre-allocation shares and the post-allocation shares, where $Y_{Dest}/s_\alpha$ are the weights. For each source control area, the weighted squared-error is given by:[1]

$$W_\alpha = \frac{Y_{Dest}}{s_\alpha}(A_\alpha - s_\alpha)^2.$$

[1] This exposition ignores the adjustments necessary to give priority to minimum transfer levels from a source area to the destination.

Accordingly, the sum of the weighted squared-errors gives rise to the loss function, which can be seen by:

$$\begin{aligned} Loss &= \sum_{\alpha} W_{\alpha} \\ &= \sum_{\alpha} \frac{Y_{Dest}}{s_{\alpha}} (A_{\alpha} - s_{\alpha})^2 \\ &= \sum_{\alpha} \frac{Y_{Dest}}{s_{\alpha}} (A_{\alpha}^2 - 2 s_{\alpha} A_{\alpha} + s_{\alpha}^2) \\ &= \sum_{\alpha} \left( \frac{C_{\alpha}^2}{Y_{Dest} s_{\alpha}} - 2 C_{\alpha} \right) + \text{constant.} \end{aligned}$$

The resulting shares from minimizing this loss functions preserve the relative shares of capacity behind any transmission constraint going to the destination. This can be seen from the following LaGrangian equation to be minimized:

$$L = \sum_{i} \left( \frac{C_i^2}{Y_{Dest} s_i} - 2 C_i \right) + \lambda \left( T - \sum_{i} C_i \right),$$

where *T* is the transmission limit affecting control areas *i*. The first order conditions are:

$$\frac{\partial L}{\partial C_i} = \frac{2 C_i}{Y_{Dest} s_i} - 2 - \lambda = 0,$$

which can be rearranged to give:

$$A_i = \frac{C_i}{Y_{Dest}} = \left( \frac{2 + \lambda}{2} \right) s_i,$$

which shows that the allocated market shares of those areas affected by the transmission constraint are proportional to their shares of capacity before the transmission allocation. Moreover, this is the only transmission allocation

method that maintains the relative shares of capacity behind any binding transmission constraint in the allocation process.

This non-linear program is solved using the COINIPOPT solver in GAMS. The calculated capacities from the nonlinear program above less transmission losses determine the capacities for the market share calculations for sources outside of the destination market. The capacities within the destination market are given full weights.

Market concentration is the HHI, which is the sum of the squared market shares. Mathematically,

$$HHI = \sum_{i=1}^{n} S_i^2,$$

where $S_i$ is the allocated share of firm *i* and *n* is the number of firms in the market. Firms with shares of 0.7 percent or less are excluded from the HHI calculation. The reason is that the squared-share is less than one-half, and rounding to a whole number gives an HHI contribution of zero. The summary sheets combine all the firms with shares of 0.7 percent or less (other than Applicants) into the "Other" category. The collective share of the Other category does not enter the HHI calculation other than the represented capacity reduces the shares of the other market participants.

## *Price +10%*
## *Capacity Type: EC*

Destination: MISO

| Period | Price ($/MWh) | Pre Market Size | EES Pre Cap. (MW) | EES Pre Share (%) | ATLAS Pre Cap. (MW) | ATLAS Pre Share (%) | Post Market Size | EES Post Cap. (MW) | EES Post Share (%) | ATLAS Post Cap. (MW) | ATLAS Post Share (%) | Post HHI | HHI Change |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| SF_T10 | 49.85 | 136,158 | 23,079 | 17.0 | 2,330 | 1.7 | 136,158 | 24,060 | 17.7 | 1,349 | 1.0 | 506 | 23 |
| SF_P | 37.47 | 111,303 | 19,211 | 17.3 | 1,991 | 1.8 | 111,303 | 20,192 | 18.1 | 1,010 | 0.9 | 525 | 29 |
| SF_OP | 33.57 | 101,757 | 17,823 | 17.5 | 1,991 | 2.0 | 101,757 | 18,804 | 18.5 | 1,010 | 1.0 | 546 | 32 |
| SUM_T1 | 133.83 | 147,829 | 25,037 | 16.9 | 2,722 | 1.8 | 147,829 | 26,078 | 17.6 | 1,680 | 1.1 | 500 | 22 |
| SUM_T10 | 65.58 | 143,388 | 24,878 | 17.3 | 2,722 | 1.9 | 143,388 | 25,919 | 18.1 | 1,680 | 1.2 | 524 | 23 |
| SUM_P | 45.17 | 131,450 | 24,056 | 18.3 | 2,459 | 1.9 | 131,450 | 25,098 | 19.1 | 1,418 | 1.1 | 561 | 27 |
| SUM_OP | 32.82 | 95,271 | 18,523 | 19.4 | 2,107 | 2.2 | 95,271 | 19,564 | 20.5 | 1,066 | 1.1 | 625 | 40 |
| WIN_T10 | 63.97 | 145,610 | 24,410 | 16.8 | 2,820 | 1.9 | 145,610 | 25,476 | 17.5 | 1,754 | 1.2 | 500 | 23 |
| WIN_P | 39.63 | 112,577 | 19,337 | 17.2 | 2,170 | 1.9 | 112,577 | 20,404 | 18.1 | 1,104 | 1.0 | 526 | 31 |
| WIN_OP | 37.10 | 109,716 | 18,636 | 17.0 | 2,170 | 2.0 | 109,716 | 19,702 | 18.0 | 1,104 | 1.0 | 529 | 31 |

## *Price -10%*
## *Capacity Type: EC*

Destination: MISO

| Period | Price ($/MWh) | Pre Market Size | EES Pre Cap. (MW) | EES Pre Share (%) | ATLAS Pre Cap. (MW) | ATLAS Pre Share (%) | Post Market Size | EES Post Cap. (MW) | EES Post Share (%) | ATLAS Post Cap. (MW) | ATLAS Post Share (%) | Post HHI | HHI Change |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| SF_T10 | 40.79 | 118,695 | 20,246 | 17.1 | 1,991 | 1.7 | 118,695 | 21,228 | 17.9 | 1,010 | 0.9 | 522 | 27 |
| SF_P | 30.65 | 97,125 | 17,924 | 18.5 | 1,991 | 2.0 | 97,125 | 18,905 | 19.5 | 1,010 | 1.0 | 588 | 35 |
| SF_OP | 27.47 | 83,129 | 15,554 | 18.7 | 763 | 0.9 | 83,129 | 15,554 | 18.7 | 763 | 0.9 | 605 | 0 |
| SUM_T1 | 109.49 | 147,732 | 25,034 | 16.9 | 2,722 | 1.8 | 147,732 | 26,075 | 17.7 | 1,680 | 1.1 | 501 | 22 |
| SUM_T10 | 53.66 | 140,394 | 24,878 | 17.7 | 2,722 | 1.9 | 140,394 | 25,919 | 18.5 | 1,680 | 1.2 | 537 | 25 |
| SUM_P | 36.95 | 109,278 | 20,244 | 18.5 | 2,107 | 1.9 | 109,278 | 21,285 | 19.5 | 1,066 | 1.0 | 580 | 33 |
| SUM_OP | 26.86 | 80,365 | 16,592 | 20.6 | 1,582 | 2.0 | 80,365 | 17,374 | 21.6 | 800 | 1.0 | 713 | 38 |
| WIN_T10 | 52.34 | 125,776 | 22,334 | 17.8 | 2,170 | 1.7 | 125,776 | 23,400 | 18.6 | 1,104 | 0.9 | 542 | 29 |
| WIN_P | 32.43 | 103,516 | 17,764 | 17.2 | 2,170 | 2.1 | 103,516 | 18,830 | 18.2 | 1,104 | 1.1 | 553 | 33 |
| WIN_OP | 30.36 | 87,279 | 12,568 | 14.4 | 1,104 | 1.3 | 87,279 | 12,568 | 14.4 | 1,104 | 1.3 | 473 | 0 |

## *Price +10%*

## *Capacity Type: AEC*

Destination: MISO

| Period | Price ($/MWh) | Pre Market Size | EES Pre Cap. (MW) | EES Pre Share (%) | ATLAS Pre Cap. (MW) | ATLAS Pre Share (%) | Post Market Size | EES Post Cap. (MW) | EES Post Share (%) | ATLAS Post Cap. (MW) | ATLAS Post Share (%) | Post HHI | HHI Change |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| SF_T10 | 49.85 | 63,291 | 3,548 | 5.6 | 2,330 | 3.7 | 63,291 | 4,529 | 7.2 | 1,349 | 2.1 | 198 | 11 |
| SF_P | 37.47 | 54,458 | 4,074 | 7.5 | 1,991 | 3.7 | 54,458 | 5,056 | 9.3 | 1,010 | 1.9 | 251 | 20 |
| SF_OP | 33.57 | 52,220 | 3,904 | 7.5 | 1,991 | 3.8 | 52,220 | 4,885 | 9.4 | 1,010 | 1.9 | 296 | 21 |
| SUM_T1 | 133.83 | 58,911 | 3,185 | 5.4 | 2,721 | 4.6 | 57,870 | 3,184 | 5.5 | 1,680 | 2.9 | 169 | -7 |
| SUM_T10 | 65.58 | 58,285 | 3,185 | 5.5 | 2,721 | 4.7 | 57,244 | 3,184 | 5.6 | 1,680 | 2.9 | 181 | -7 |
| SUM_P | 45.17 | 57,892 | 4,055 | 7.0 | 2,459 | 4.2 | 57,892 | 5,096 | 8.8 | 1,418 | 2.4 | 234 | 16 |
| SUM_OP | 32.82 | 43,216 | 3,184 | 7.4 | 2,107 | 4.9 | 42,175 | 3,184 | 7.5 | 1,066 | 2.5 | 277 | -5 |
| WIN_T10 | 63.97 | 70,308 | 5,918 | 8.4 | 2,820 | 4.0 | 70,308 | 6,985 | 9.9 | 1,754 | 2.5 | 246 | 18 |
| WIN_P | 39.63 | 53,284 | 4,519 | 8.5 | 2,170 | 4.1 | 53,284 | 5,585 | 10.5 | 1,104 | 2.1 | 296 | 26 |
| WIN_OP | 37.10 | 53,772 | 4,218 | 7.8 | 2,170 | 4.0 | 53,772 | 5,284 | 9.8 | 1,104 | 2.1 | 302 | 23 |

## *Price -10%*

## *Capacity Type: AEC*

Destination: MISO

| Period | Price ($/MWh) | Pre Market Size | EES Pre Cap. (MW) | EES Pre Share (%) | ATLAS Pre Cap. (MW) | ATLAS Pre Share (%) | Post Market Size | EES Post Cap. (MW) | EES Post Share (%) | ATLAS Post Cap. (MW) | ATLAS Post Share (%) | Post HHI | HHI Change |
|---|---|---|---|---|---|---|---|---|---|---|---|---|---|
| SF_T10 | 40.79 | 52,478 | 2,990 | 5.7 | 1,991 | 3.8 | 51,497 | 2,990 | 5.8 | 1,010 | 2.0 | 200 | -3 |
| SF_P | 30.65 | 46,166 | 2,990 | 6.5 | 1,991 | 4.3 | 45,963 | 3,768 | 8.2 | 1,010 | 2.2 | 273 | 13 |
| SF_OP | 27.47 | 40,880 | 2,990 | 7.3 | 763 | 1.9 | 40,880 | 2,990 | 7.3 | 763 | 1.9 | 317 | 0 |
| SUM_T1 | 109.49 | 58,831 | 3,185 | 5.4 | 2,721 | 4.6 | 57,789 | 3,184 | 5.5 | 1,680 | 2.9 | 169 | -7 |
| SUM_T10 | 53.66 | 55,780 | 3,184 | 5.7 | 2,721 | 4.9 | 54,739 | 3,184 | 5.8 | 1,680 | 3.1 | 187 | -8 |
| SUM_P | 36.95 | 44,623 | 3,184 | 7.1 | 2,107 | 4.7 | 43,582 | 3,184 | 7.3 | 1,066 | 2.4 | 243 | -5 |
| SUM_OP | 26.86 | 35,540 | 3,184 | 9.0 | 1,582 | 4.5 | 34,758 | 3,183 | 9.2 | 800 | 2.3 | 340 | 0 |
| WIN_T10 | 52.34 | 55,197 | 3,843 | 7.0 | 2,170 | 3.9 | 55,197 | 4,909 | 8.9 | 1,104 | 2.0 | 248 | 19 |
| WIN_P | 32.43 | 46,897 | 3,153 | 6.7 | 2,170 | 4.6 | 46,689 | 4,012 | 8.6 | 1,104 | 2.4 | 307 | 15 |
| WIN_OP | 30.36 | 42,725 | 3,153 | 7.4 | 1,104 | 2.6 | 42,725 | 3,153 | 7.4 | 1,104 | 2.6 | 327 | 0 |

**Non-affiliate Energy Sales in MISO based on EQR Data, 2023 Q4-2025 Q3**

| Holding Company | Sales (MWh) | Sales ($) | Sales Share based on MWh (%) | Sales Share based on $ (%) |
|---|---|---|---|---|
| Entergy Corp | 233,030,828 | 7,079,413,724 | 19.1 | 18.3 |
| Xcel Energy Inc | 91,471,586 | 2,458,792,195 | 7.5 | 6.3 |
| Berkshire Hathaway Inc | 86,866,172 | 1,860,652,310 | 7.1 | 4.8 |
| CMS Energy Corp | 84,489,772 | 2,953,782,502 | 6.9 | 7.6 |
| DTE Energy Co | 75,574,326 | 2,870,397,755 | 6.2 | 7.4 |
| WEC Energy Group Inc | 66,873,399 | 2,299,709,606 | 5.5 | 5.9 |
| Ameren Corp | 65,936,978 | 2,305,026,720 | 5.4 | 5.9 |
| Alliant Energy Corp | 62,599,735 | 1,739,267,469 | 5.1 | 4.5 |
| Energy Authority Inc (The) | 35,177,073 | 1,265,522,538 | 2.9 | 3.3 |
| AES Corp (The) | 26,900,735 | 1,058,751,134 | 2.2 | 2.7 |
| South Mississippi Electric Power Association | 24,218,994 | 801,969,187 | 2.0 | 2.1 |
| Vistra Energy | 21,325,893 | 778,121,419 | 1.8 | 2.0 |
| Exelon Corp | 20,313,777 | 618,771,784 | 1.7 | 1.6 |
| Cleco Corp | 20,168,155 | 637,262,326 | 1.7 | 1.6 |
| ALLETE Inc | 19,589,224 | 645,508,549 | 1.6 | 1.7 |
| NRG Energy Inc | 17,475,780 | 528,911,013 | 1.4 | 1.4 |
| BP plc | 12,240,386 | 409,886,671 | 1.0 | 1.1 |
| Holding Companies with Share < 1% | 254,223,467 | 8,443,362,965 | 20.9 | 21.8 |
| **Total** | **1,218,476,280** | **38,755,109,865** | **100.0** | **100.0** |
| Pre-transaction HHI | 686 | 649 | | |
| Post-transaction HHI | 698 | 663 | | |
| HHI Change | 12 | 14 | | |

Source: ABB, EQR Transactions Data

**EIA 923 Generation in MISO by Company, 2023-2024**

| Holding Company | Pre-transaction Net Generation (MWh) | Pre-transaction Share based on MWh (%) | Post-transaction Net Generation (MWh) | Post-transaction Share based on MWh (%) |
|---|---|---|---|---|
| Entergy Corp | 238,962,619 | 17.4 | 250,834,657 | 18.3 |
| Atlas GP Global Holdings LLC | 16,143,037 | 1.2 | 4,270,999 | 0.3 |
| DTE Energy Co | 82,227,591 | 6.0 | 82,227,591 | 6.0 |
| WEC Energy Group Inc | 69,290,511 | 5.1 | 69,290,511 | 5.1 |
| Berkshire Hathaway Inc | 68,472,005 | 5.0 | 68,472,005 | 5.0 |
| Xcel Energy Inc | 68,235,227 | 5.0 | 68,235,227 | 5.0 |
| Ameren Corp | 62,019,847 | 4.5 | 62,019,847 | 4.5 |
| NextEra Energy Inc | 51,509,782 | 3.8 | 51,509,782 | 3.8 |
| Alliant Energy Corp | 50,232,355 | 3.7 | 50,232,355 | 3.7 |
| CMS Energy Corp | 44,497,835 | 3.2 | 44,497,835 | 3.2 |
| Duke Energy Corp | 36,549,839 | 2.7 | 36,549,839 | 2.7 |
| AES Corp (The) | 26,204,741 | 1.9 | 26,204,741 | 1.9 |
| Southern Co | 25,230,885 | 1.8 | 25,230,885 | 1.8 |
| American Municipal Power Inc | 24,397,123 | 1.8 | 24,397,123 | 1.8 |
| South Mississippi Electric Power Association | 23,453,836 | 1.7 | 23,453,836 | 1.7 |
| DowDuPont Inc | 20,612,655 | 1.5 | 20,612,655 | 1.5 |
| Ontario Municipal Employees Retirement System | 20,521,733 | 1.5 | 20,521,733 | 1.5 |
| Cleco Corp | 20,263,163 | 1.5 | 20,263,163 | 1.5 |
| Constellation Energy Corp | 20,044,686 | 1.5 | 20,044,686 | 1.5 |
| Vistra Energy | 18,296,227 | 1.3 | 18,296,227 | 1.3 |
| Arkansas Electric Coop Corp | 16,389,448 | 1.2 | 16,389,448 | 1.2 |
| NiSource Inc | 15,531,993 | 1.1 | 15,531,993 | 1.1 |
| REMC Assets LP | 15,425,150 | 1.1 | 15,425,150 | 1.1 |
| ALLETE Inc | 14,846,326 | 1.1 | 14,846,326 | 1.1 |
| Holding Companies with Share < 1% | 322,465,551 | 23.5 | 322,465,551 | 23.5 |
| **Total** | **1,371,824,164** | **100.0** | **1,371,824,164** | **100.0** |
| Pre-transaction HHI | 518 | | | |
| Post-transaction HHI | 548 | | | |
| HHI Change | 30 | | | |

Source: Hitachi Energy via Velocity Suite Intelligent Query,
EIA 923 Monthly Plant Generation & Consumption; Unit Generation and Emissions

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| Public | Listing and Description of Public workpapers. |

**PUBLIC**

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| \Public\EIA | EIABACrosswalkclean.xlsx | Balancing Area Crosswalk | |
| \Public\EIA | Footnotes.csv | EIA Form 714 Footnotes | |
| \Public\EIA\eia8602023 | 1___Utility_Y2023.xlsx | EIA-860 data, 2023 | |
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| \Public\Output | Suppliers_Data.xlsx | Suppliers data - Output of Program 18 in PASS\DO | |
| \Public\Output | prices_MISO.pdf | Price Simulation Charts PJM | |
| \Public\Raw\MISOData | MISO RT Binding SRPB Constraints Readers Guide.pdf | Guide to Interpreting raw MISO constraint data | |
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| \Confidential\Generation Data\Fuel Costs | PRIV_Gas Daily Information.xlsx | Gas Daily Information for MISO DPT model | |
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| \Confidential\Generation Data\Fuel Costs | PRIV_Nymex Future Prices Prompt Historical 2023-2025.csv | Proprietary NYMEX future prices from Velocity Suite, historical 2023-2024 prices | |
| \Confidential\Generation Data\Fuel Costs | Read Me - Fuel Costs.txt | Read Me text file | |
| \Confidential\Generation Data\Units | PRIV_Generation Data 20250407.csv | Velocity Suite Generation Unit data | |
| \Confidential\Generation Data\Units | PRIV_Plant_Location.csv | Velocity Suite query for Plant Location | |
| \Confidential\Generation Data\Units | Read Me - Units.txt | Read Me text file | |
| \Confidential\Loads | PRIV_2023 Forecasted Loads.csv | FERC 714 Forecast Loads from Velocity Suite, 2023 | |
| \Confidential\Loads | PRIV_2024_forecasted_loads.csv | FERC 714 Forecast Loads from Velocity Suite, 2024 | |
| \Confidential\Loads | PRIV_ABB Planning Area 2023.csv | FERC 714 Loads from Velocity Suite, 2023 | |
| \Confidential\Loads | PRIV_BAA Hourly Load 2023.csv | BAA Hourly Loads from Velocity Suite, 2023 | |
| \Confidential\Loads | PRIV_BAA Hourly Load 2024.csv | BAA Hourly Loads from Velocity Suite, 2024 | |
| \Confidential\Loads | PRIV_Loadregion_map.xlsx | Mapping between load region and area code | |
| \Confidential\Loads | PRIV_MISO Zonal Loads 2023.csv | MISO Zonal Loads from Velocity Suite, 2023 | |
| \Confidential\Loads | PRIV_MISO_Zonal_Loads_2024.csv | MISO Zonal Loads from Velocity Suite, 2024 | |
| \Confidential\Loads | PRIV_PJM Zonal Loads 2023.csv | PJM Zonal Loads from Velocity Suite, 2023 | |
| \Confidential\Loads | PRIV_PJM Zonal Loads 2024.csv | PJM Zonal Loads from Velocity Suite, 2024 | |
| \Confidential\Loads | PRIV_abb_planning_area_2024.csv | FERC 714 Loads from Velocity Suite, 2024 | |
| \Confidential\Loads | Read Me -Loads.txt | Read Me text file | |
| \Confidential\Market Prices | PRIV_Historical Prices.xlsx | Output from "PRIV_2. Historical Prices by DPT periods [Market].do" program | |
| \Confidential\Market Prices | PRIV_Historical and Simulated Prices.xlsx | Prices spreadsheet with methodology to calculate DPT prices used in the Application | |
| \Confidential\Market Prices | PRIV_Velocity Suite Load Query Screenshot-MISO.docx | Screenshot of velocity suite query to extract relevant MISO load data from Velocity Suite | |
| \Confidential\Market Prices | PRIV_Velocity Suite Price Query Screenshot-MISO.docx | Screenshot of velocity suite query to extract relevant MISO price data from Velocity Suite | |
| \Confidential\Market Prices | Read Me - Prices.txt | Read Me text file | |
| \Confidential\Market Prices\Do | PRIV_1. MISO load destination hour map.txt | Program to calculate load destination hour for MISO | |
| \Confidential\Market Prices\Do | PRIV_2. MISO Historical Prices by DPT periods.txt | STATA program to calculate historical prices for MISO | |
| \Confidential\Market Prices\Raw | PRIV_MISO Energy Prices 2023.csv | MISO zonal prices from Hitachi Velocity Suite, 2023 | |
| \Confidential\Market Prices\Raw | PRIV_MISO Energy Prices 2024.csv | MISO zonal prices from Hitachi Velocity Suite, 2024 | |
| \Confidential\PASS | PRIV_PASS_Container.mdb | PASS MS ACCESS database empty container for data | |
| \Confidential\PASS | PRIV_PASS_FERC.mdb | PASS MS ACCESS database containing results of DPT calculations for MISO | |
| \Confidential\PASS | PRIV_PASS_Results_Container.mdb | PASS MS ACCESS database empty container for results | |
| \Confidential\PASS | PRIV_PASS_Results_FERC.mdb | PASS MS ACCESS database containing all necessary data to run PASS GAMS DPT programs | |
| \Confidential\PASS | Read Me - PASS.txt | Read Me text file | |
| \Confidential\PASS | Reviewing Output.docx | Overview of results files | |
| \Confidential\PASS | Run PASS 20251217.docx | Overview of PASS software, with description of programs and directions for altering assumptions or creating alternative scenarios | |
| \Confidential\PASS | Technical Appendix Methods to Calculate Concentration.docx | Overview of methods used to calculate concentration | |
| \Confidential\PASS\DO | 0. Master Run Do Files.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 1. Setup.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 10. Insert Contracts.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 11. SQL Statements.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 12. Export GAMS Files for DPT.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 13. Run GAMS.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 14. PASS Summary for Report.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 15. PASS Full Summary for Exhibits.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 16. PASS Detail Sheets.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 17. Export PASS Data to Excel.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 18. Export Suppliers Data to Excel.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 2. Create Databases.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 3. Insert Sets.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 4. Insert Transmission.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 5. Insert Generation.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 6. Insert Loads.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 6B. Adjustments Before Price Export.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 7. Export GAMS Files for Forward Prices.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 8. Run price simulation.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 9. Insert Market Prices.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 91. Export Parameters File.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DO | 92. Log Error Message.txt | See "Run PASS 20251217.docx" for complete descriptions of PASS Stata do files | |
| \Confidential\PASS\DPT | Data.gdx | DPT Model Input | |
| \Confidential\PASS\DPT | Data.xlsx | DPT Model Input | |
| \Confidential\PASS\DPT | PASS022.gms | PASS GAMS program to conduct DPT analysis | |
| \Confidential\PASS\DPT | PASS022.lst | PASS GAMS Log | |
| \Confidential\PASS\DPT | PassAECBalance.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | PassAECLog.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | PassCapDetail.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | PassParms.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | PassPriorityDetail.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | PassPutLog.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | PassTCDetail.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | PassTCLog.gms | PASS GAMS Program called by PASS022.gms | |
| \Confidential\PASS\DPT | read_gen.txt | DPT Model Input | |
| \Confidential\PASS\DPT | read_other.txt | DPT Model Input | |
| \Confidential\PASS\DPT | read_sets.txt | DPT Model Input | |
| \Confidential\PASS\DPT | read_tx.txt | DPT Model Input | |
| \Confidential\PASS\DPT | rep_stata.log | STATA Log for Running GAMS | |
| \Confidential\PASS\DPT | repaec.csv | DPT Model Output | |
| \Confidential\PASS\DPT | repalg.csv | DPT Model Output | |

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